



TWO WYOMING GIRLS

CARRIE L. MARSHALL



TWO WYOMING GIRLS

CARRIE L. MARSHALL

The Project Gutenberg eBook of Two Wyoming Girls and Their Homestead Claim: A Story for Girls

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Two Wyoming Girls and Their Homestead Claim: A Story for Girls

Author: Caroline Louise Marshall

Illustrator: Ida Waugh

Release date: May 15, 2010 [eBook #32383]

Most recently updated: January 6, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/32383

Credits: Produced by D Alexander and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK TWO
WYOMING GIRLS AND THEIR HOMESTEAD CLAIM: A STORY FOR
GIRLS ***

TWO WYOMING GIRLS

And Their Homestead Claim

A Story for Girls

BY

MRS. CARRIE L. MARSHALL

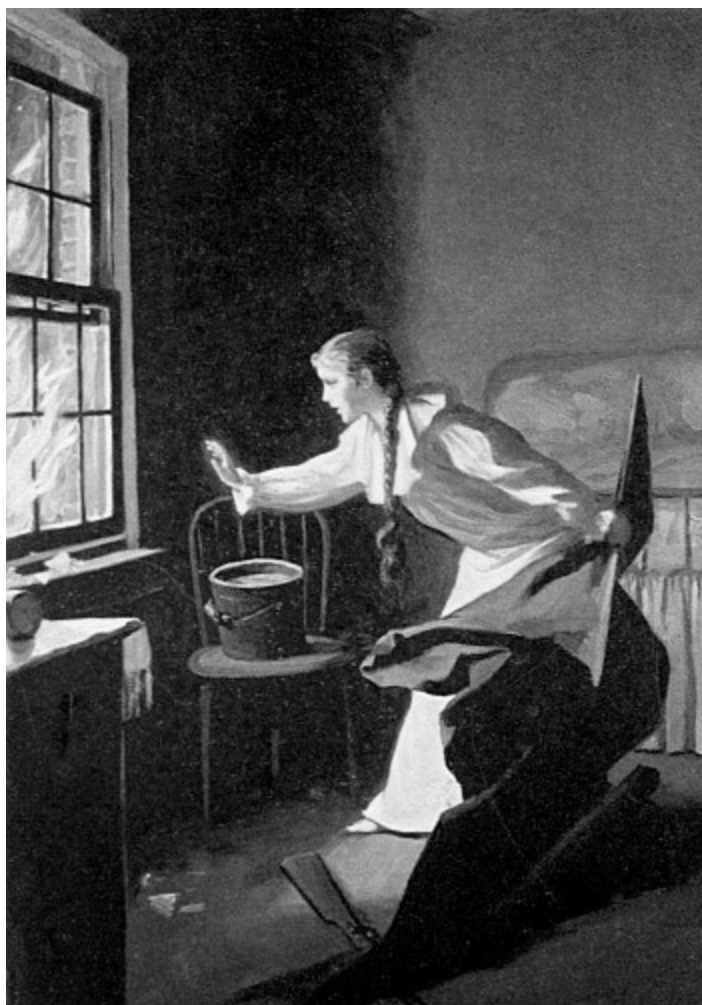
Author of "The Girl Ranchers," Etc.

ILLUSTRATED BY IDA WAUGH



**THE PENN PUBLISHING COMPANY
PHILADELPHIA MDCCCXCIX**

COPYRIGHT 1899 BY THE PENN PUBLISHING COMPANY



**THE FLAMES REACHED TOWARD ME
GREEDILY
(Page [63](#))**

CONTENTS

CHAP.		PAGE
I	I GO ON AN ERRAND	<u>7</u>
II	THE WILL OF THE WATERS	<u>23</u>
III	AT THE MOUTH OF THE SHAFT	<u>37</u>
IV	A PLOT FOILED	<u>44</u>
V	AN EXCITING EXPERIENCE	<u>57</u>
VI	A VISIT FROM MRS. HORTON	<u>68</u>
VII	SURMISES	<u>77</u>
VIII	“BEST LAID PLANS”	<u>92</u>
IX	AN IMPORTANT ANNOUNCEMENT	<u>108</u>
X	RALPH AND I GO BLACKBERRYING	<u>118</u>
XI	THE CATTLE BRAND	<u>130</u>
XII	ON THE TRAIL OF A WILDCAT	<u>145</u>
XIII	JOE DISAPPEARS	<u>158</u>
XIV	AT THE STORAGE RESERVOIR	<u>172</u>
XV	CHASED BY WOLVES	<u>183</u>
XVI	A SLEEPLESS NIGHT	<u>194</u>
XVII	A QUEER BANK	<u>207</u>
XVIII	A VITAL POINT	<u>227</u>
XIX	MR. HORTON MAKES US A VISIT	<u>240</u>
XX	GUARD MAKES A MISTAKE	<u>253</u>
XXI	A FRIEND IN NEED	<u>261</u>
XXII	AN OPEN WINDOW	<u>273</u>
XXIII	ALONE ON THE CLAIM	<u>284</u>
XXIV	HUNTING FOR GUARD	<u>294</u>
XXV	GUARD’S PRISONER	<u>304</u>

TWO WYOMING GIRLS

CHAPTER I

I GO ON AN ERRAND

A fierce gust of wind and rain struck the windows, and Jessie, on her way to the breakfast table, dish in hand, paused to listen.

“Raining again!” she exclaimed, setting the dish down emphatically. “It seems to me that it has rained every day this spring. When it hasn’t poured here in the valley, it has more than made up for it in the mountains.”

“You are more than half right,” father said, drawing his chair up to the table. “Is breakfast ready, dear? I am going to work in the mines to-day, and I’m in something of a hurry.”

“Going to work in the mines!” Jessie echoed the words, as, I am sure, I did also. I was sitting in the corner dressing little Ralph, or, to be strictly accurate, trying to dress him. No three year-old that ever lived could be more exasperating than he sometimes was during that ordeal or could show a more pronounced distaste for the bondage of civilized garments.

Jessie made haste to dish up the breakfast, but she inquired: “Do you remember, papa, what that old miner who was here the other day told us about mines in the wet season? About what was liable to happen sometimes, and did happen here once, a good many years ago?”

“I don’t know that I do,” father answered, glancing toward Ralph and me, to see if we were ready. As we were anything but that, he continued; “I guess I won’t wait for you children.”

“Don’t, please!” I exclaimed, “Ralph is a perfect little buzz-saw this morning. Keep still, Ralph!”

“Me want to do barefoot! Me want to wade in ’e puddle!” cried the child, pulling one soft little foot out of the stocking that I had just succeeded in

getting upon it.

“Ralph!” I cried, angrily: “I’ve a good notion to spank you!”

“Don’t, Leslie!” father interposed, mildly; “I remember so well how I liked to wade in the mud-puddles when I was a little shaver; but it’s too early in the season, and too cold for that sort of sport now. So, Ralph, my boy, let sister dress you, and don’t hinder.”

Ralph always obeyed father’s slightest word, no matter how gently the word was spoken; so now he sat demurely silent while I completed his toilet.

“What was it that your friend, the miner, said, Jessie?” father asked, as Jessie took her seat and poured out his coffee.

“He said that there had been so much rain on the mountains, and that the Crusoe mines were on such a low level that there was some danger of an inrush of water, like that which ruined the Lost Chance, before we came here.”

“I recollect hearing something about the Lost Chance,” father said, going on with his breakfast indifferently. “There may have been water crevices in it. The accident was probably caused by them—and neglect.”

“I don’t see how it could be all due to neglect,” Jessie persisted. “The miner said that the springs and rivers were all booming full, just as they are now. People never thought of danger from the water, because it was so often warm and dry in the valley—as it is, you know, often, even when it is raining hard on the mountains. The miner said that the men went on with their work in the mine, as usual, until, one afternoon, the timbered walls of the tunnels slumped in like so much wet sand. What had been underground passages became, in a moment, underground rivers, for the water that had been held back and dammed up so long just poured in in a drowning flood. He said that the rainfall seeped through the bogs up on the mountains, and fed underground reservoirs that held the water safely until they were overtaxed. When that happened the water would burst out, finding an outlet for itself in some new place. The only reason that any one of the force of thirty men usually employed in the mine escaped was that the accident

occurred just as they were putting on a new shift. I remember very well what he told us.”

“I see that you do,” father responded, with a thoughtful glance at her earnest face, “but I reckon he rather overdid the business. These old miners are always full of whims and forecasts; they are as superstitious as sailors.”

“What he told was not superstition; it was a fact,” replied Jessie, with unexpected logic.

Father smiled. “Well, anyway, don’t you get to worrying about the Gray Eagle, daughter. It’s rather damp these days, I admit, but as safe as this kitchen.”

“Do you really think so, papa?” Jessie asked, evidently reassured.

“Well, perhaps not quite as safe,” father answered, with half a smile. “It’s a good deal darker for one thing, you know, and there are noises—”

He lapsed into that kind of listening silence that comes to one who is striving to recall something that has been heard, not seen, or felt, and I was about to insist upon a further elucidation of those subterranean sounds when the door opened and a man, whom father had hired for the day, put in his head:

“Say, Mr. Gordon, I can’t find a spade anywhere,” he announced.

“Well, there!” father exclaimed, with a disturbed look, “our spade was left at the mine the last day that we worked there.”

“That’s too bad!” the man, who was a neighbor, as neighbors go on the frontier, said regretfully. “I can go back home and get mine, but the team’s hitched up; it’s stopped raining, an’ there’s a load of posts on the wagon. Seems ’most a pity for me to take time to go an’ hunt up a spade, but I reckon I’ll have to do it. I never saw the man yet that could dig post holes without one.”

“Oh, no, Reynolds, don’t stop your work for that; I’ll have to bring mine down; it’s about as near to get it from the Gray Eagle as to go to one of the

neighbors; you just go on with your work.”

Reynolds withdrew accordingly, and, as the door closed upon him, father said:

“I’m anxious to earn every dollar I can to help fence that wheat field, before Horton’s cattle ‘accidentally’ stray into it. I was out to look at it this morning. The field looks as if covered with a green carpet, it’s coming up so thick. I count it good luck to be able to get Reynolds to go on with the fence-building while I work in the mine, for I can exchange work to pay him, while the pay that comes from the mine is so much cash.”

“And when we get our title clear, won’t I shoo Mr. Horton’s cattle to the ends of the earth!” I said, resentfully, for we all understood well enough that the reason that father was so anxious to earn money was to pay for the final “proving up” on his homestead claim, as well as to build fences. “I’m teaching Guard to ‘heel’ on purpose to keep track of those cattle,” I concluded, audaciously, for father didn’t approve of a policy of retaliation.

“Horton’s cattle are not to blame,” he said now, but the shadow that always came over his patient face at the mention of our intractable neighbor settled heavily upon it as he spoke.

“I know the cattle are not to blame,” I retorted, with a good deal of temper. “I just wish that their master himself would come out and trample on our corn and wallow in our wheat field, instead of driving his cattle up so that they may do it; I’d set Guard on him with the greatest pleasure.”

“Now, now, Leslie, you shouldn’t talk so!” father remonstrated gently.

But here Jessie, whose disposition is much more placid than mine, broke in, abruptly:

“I don’t blame Leslie for feeling so, father. Only think, we’ve been on this place nearly five years, and we’ve never yet raised a crop, because Mr. Horton’s cattle, no matter where they may be ranging, always get up here just in time—the right time—to do the most damage. The other neighbors’ cattle hardly ever stray into our fields, and when they do the neighbors are good about it. Think of the time when Mr. Rollins’s herd got into the corn

field and ate the corn rows down, one after another. Mr. Rollins came after them himself, and paid the damage, without a word of complaint. Besides, he said that it shouldn't happen again; and it didn't. When has Mr. Horton ever done a thing like that?"

"He's been kept busy other ways," father said, and his voice had none of the resentment that Jessie's expressed. "The last time that his cattle got in here I went to see him about it, and he said that the field was a part of the range, being unfenced, and that any lawyer in the United States would sustain him in saying so. He was quite right, too—only he was not neighborly."

"Neighborly! I should say not," Jessie exclaimed, with a lowering brow. "His horses have trampled down our garden and girdled all our fruit trees, even to the Seckel pear that mother brought from grandfather's."

"I know; it is very trying," father said, stifling a sigh; "but it can do no good to dwell on these things, daughter. An enemy of any kind does you more injury when he destroys your peace of mind, and causes you to harbor revengeful feelings, than he can possibly achieve in any other way. We must keep up our courage, and make the best of present circumstances, bad as they sometimes are. A change is bound to come."

"Me wants more breakfuss," Ralph broke in, suddenly, extending his empty milk-cup toward me, his chief servitor. I refilled it from the pitcher beside me, and as I absently crumbled bits of bread into it I sought enlightenment. "I never quite understood, father, why Mr. Horton is so spiteful toward us."

"It is easily understood, Leslie. He wants this homestead claim, and hopes to weary us into giving it up."

"He can find plenty of other claims," I argued.

"Yes; but not such as this. This is an upper valley, as you know, and just above our claim five mountain streams join the main river as the fingers of a hand join the palm, the main river being the palm. Every square foot of our claim can be irrigated, and it takes in about all of the valley that is worth taking—enough to control the water rights for all the land below us. That is the reason why Horton is trying so hard to dislodge us. He would

like to be able to make the ranchmen on the lower ranches come to his terms about the water.”

“But the law regulates the water rights,” said Jessie.

“It is supposed to do so, and does it, after a fashion, but no human laws have ever yet been able to satisfactorily regulate a mean man. It would be a great misfortune to the ranchmen below if Horton were to get a title to this place; he likes to make people feel his authority, and one effective way of doing that would be to worry people about the water supply, just when they needed it most, of course. I feel now that our danger of losing the place is past. It has been a hard struggle to bear up against nearly five years of such sly, petty persecutions. Horton is careful not to oppose us openly. When he’s found out, as he is occasionally, it always appears that he has been careful to keep within the letter of the law. Well, as Leslie says, we’ll get our title clear, and then the wind will be out of Mr. Horton’s sails. I’ve been afraid to make a move, or to do anything except curl down and study the homestead laws all this time. If I had come to an open rupture with him he might have gone down to the land office and told some story of his own invention to the agent that would injure me greatly, for land agents are only too ready to believe evil of land claimants, it seems to me. Now my notice for offering final proof is in one of the papers; it must be published three times, and the period of publication must not range over more than three months at the outside, so you see, at the farthest, if our proof is accepted, we shall have a deed to this place within three months. I do not see how we can fail to get it; we have complied with all the requirements.”

“Yes,” Jessie assented, gravely. “We have two cows, two horses, a cat, a dog, a clock, some chairs, some dishes, a table, a stove, and some poultry.”

Father smiled, the slow, serious smile that had replaced his cheery laugh since mother’s death two years before. “You are well posted on homestead laws, daughter,” he said, rising from the table. “Where’s my coat, Leslie, did you get it mended?”

For answer I took down a worn, light, gray coat from a nail behind the kitchen door.

“Look at that!” I said, pointing proudly to a very conspicuous patch on the elbow of one sleeve. An older seamstress would have felt, perhaps, that the patch asserted its existence almost too defiantly; it seemed almost to vaunt itself, but conscious of the rectitude of my intentions, if not of my work, I raised my face, expectantly, awaiting the praise that I felt to be my due. I was not disappointed. Father held the garment up to the light and examined the mending with critical approval.

“That’s what I call a good job, my little girl,” he said heartily, but Jessie, glancing at the proof of my housewifely skill, as evidenced by the coat, laughed.

“‘A tear may be the accident of a moment,’” she quoted, “‘but a patch is premeditated poverty.’ And such a patch! You could see it a mile away. Really, Leslie, it looks like Jeremiah Porlock’s cattle brand.”

I felt my face crimsoning with indignation, but was happily prevented from making the retort that sprang to my lips, as father murmured ruefully:

“Dear, dear, what a pity that Joe left the spade! It will just about spoil my whole forenoon to be obliged to stop and bring it down. However, there’s no help for it.”

“Yes, there is, papa,” I cried, springing to my feet. “I’ll go up with you and bring it back.”

It was characteristic of father’s gentleness toward us his motherless young daughters, that he had not once thought of the possibility of either of us acting, in this instance, as his substitute.

“It’s a long walk,” he objected, looking at me doubtfully.

“Long! Why, papa, I’ve taken longer walks than that, lots of times. It isn’t above a mile and a half; I could run every step of the way!”

“Me, too,” proclaimed Ralph, descending from his high chair in such haste that he fell sprawling on the floor. Disdaining, on this occasion, to weep for an accident that, under ordinary circumstances, would have opened the flood-gates of woe, he scrambled to his feet: “Me do wiv ’oo, ’Essie!” A

battered old hat of Joe's was hanging on the wall, within reach of his chubby hand; he snatched it down and set it quickly on his head, pulling down the wide brim until his brown curls and the upper part of his rosy little face were completely extinguished. "Me ready, 'Essie," he said. He was a comical little figure. Papa took him in his arms and kissed him. Then he set him gently on his feet again; "You can't go with sister to-day, my boy."

"'Ess," Ralph declared, with unusual persistence, "Me do!"

"No," father reiterated. He opened the door, and we slipped out, followed for some distance along the trail by the deserted youngster's ear-splitting shrieks. Father halted once, looking irresolutely at me as a peculiarly heart-rending outburst came to our ears. "I could easily carry him up there," he said, with a somewhat sheepish look, "but I suppose you couldn't fetch him home?"

"Come along, father," I retorted, slipping my hand under his arm. "Jessie will have Ralph consoled before you could get back to the house, and, when we started, you were in some doubt as to whether I could carry a spade home from the mine."

"That's true," father confessed. "But hasn't the boy got a pair of lungs, though? I doubt if I was ever able to yell like that. I dare say it's partly owing to the climate; it's very healthy."

CHAPTER II

THE WILL OF THE WATERS

Crusoe was the generic name of the collection of rough shanties that clustered about and among the various shaft-houses. Not all of the mines had attained to the dignity of shaft-houses and regular hours, many of them, indeed, being mere prospect-holes, but all were named, and a student of human nature might have accurately gauged the past experience or present hopefulness of their respective owners by some of the curious freaks of nomenclature.

The shaft-house of the Gray Eagle was the last but one at the upper extremity of the ravine along which Crusoe straggled. Father and I, hurrying past the cabins, had nearly reached it, when a loud call from the open doorway of one of the larger cabins brought us to a halt.

“There’s old Joe!” father said, glancing at the individual who had shouted; “I was in hopes that I could slip past without his seeing me.”

“No such good luck as that,” I said, with what I felt to be uncharitable impatience; “I almost believe that Joe sits up nights to watch for you. It’s a shame, too, for him to try to work in the mines. Just look at him!”

“I’ve looked at him a good many times, Leslie, dear, but he would be in a ten times worse position if I were to tell him that I am old enough to take care of myself. Since the day I was born he has spent his life in watching over me.”

From all accounts that was strictly true. The white-wooled old negro who, in his shirt sleeves, now came limping down the pathway toward us, had once been a slave on grandfather Gordon’s estate. When freedom came to all the slaves, old Joe—who was young Joe then—declined to accept of any liberty, or to follow any occupation that might take him away from his

master's oldest son, Ralph Gordon, our father. The negro's mission in life, as he understood it, was simply to keep an eye on the young man, for the young man's good. The flight of years did not lessen his sense of responsibility any more than it did his devotion, which was immeasurable. But, curiously enough, he seemed to prefer, on the whole, not to reside with the object of his adoration. It was enough for him if he could but hover around in father's vicinity, and this he did with such tireless persistency that in all the changes, the shifting scenes of his Western life, the one thing that father owned to being absolutely sure of was, that no matter where he went, or how quietly, the place that knew him presently became familiar also with the white wool and shambling figure of old Joe.

"I 'clar ter goodness!" groaned Joe, reaching us at last, and hobbling on beside us, "I didn' 'low fur t' wuck ter-day; my rheumatiz is tuck dat bad!"

"Don't work, then, Joe; the mine is as wet as a sponge. You'll be the worse to-morrow for going into it," remonstrated father, kindly.

"No; I reckons I's wuck ef yo' does; hit ain' out o' place, noway, fur me ter crope inter a hole like dat; but w'at fur yo' keep w'aln' at wuck in de mine? 'Pears like a gen'leman might fin' more fittin' kine o' wuck dan dat."

"The kind of work neither makes nor unmakes one, Joe," returned father, good-humoredly; "but I'm not going to do this sort of work much longer. I'm calculating on opening up the ranch in fine shape, with your help, when I get the title to it."

"W'en yo' 'low fur ter git dat titull?"

"In about three months. You'll have to come and live with us then, Joe, so as to be on hand to help us."

"Yes," the old man assented, with unexpected readiness, "I 'spect I shall. I'se mighty good farmer, yo' knows, Mas'r Ralph. Hit goin' take nigh a week ter tell all dat I knows erbout raisin' ob watermillions an' goobers. Yo' 'low dat goobers grow in dish yer kentry, Mas'r Ralph?"

"Yes, indeed. Why not?" father returned, cheerily, evidently glad of old Joe's implied willingness to take up his abode with us.

We presently entered the shaft-house. Rutledge, the mine superintendent, was standing by the shaft, and the hoisting-cage, with its first load of ore from the dump below, was moving slowly upward.

“You’re late,” was his greeting.

“A trifle late,” father returned, pleasantly, adding, “you can dock my day’s wages for it if you like.”

“I know that without you telling me, but I shouldn’t like,” Rutledge said, crossly. We all knew him slightly, and I had thought him a pleasant young gentleman, but he was looking sullen to-day, almost angry, it seemed to me. We stood there waiting, and the cage had reached the surface and automatically dumped its load before Rutledge spoke again.

“I thought you weren’t coming, in spite of your promise,” he then said, looking toward father. “No one could have blamed you if you had shown the white feather—”

“Say, yo’ heah me!” broke in old Joe, suddenly and savagely, his voice quivering with indignation. “Ole Cunnel Gordon’s son ain’ one o’ de kine w’at done breaks promises, ner yit w’at’s a-showin’ w’ite fedders. Ef yo’s lookin’ fer dat kine of a man, git a lookin’-glass an’ study de face dat yo’ sees in hit, den maybe yo’ fine ’im!”

Rutledge smiled, although he still scowled disapproval.

“That’s all right, Joe; there are no cowards around the Gray Eagle shaft-house, but I couldn’t blame any one for keeping out of the mine to-day—not but what it’s safe enough, as far as I can see—I’ve just been down.”

For an instant his words startled and thrilled me. Could it be that there was so much danger in working in the mine then? I glanced at father. He was just stepping into the cage, and his face was as serene as if Rutledge’s discourse had been of some possible disturbance in the moon. The look of displeasure on Rutledge’s face deepened as I caught hold of one of the ropes and swung myself lightly into the cage, following father and Joe. Delaying the signal for descent, Rutledge said:

“While it may be safe enough down there, it isn’t exactly like a lady’s parlor, Gordon—not to-day, anyway.”

“Oh, Leslie is just going down on an errand,” father explained. “But, Leslie, perhaps you had better wait here and let me send the spade up to you.”

“And make you walk from your tunnel clear back to the hoisting cage again!” I remonstrated. “Why, Mr. Rutledge, I’ve been down lots of times, you know, and I’m not at all afraid.”

The superintendent had looked relieved when he heard that my stay in the mine was likely to be a short one. I wondered, inconsequently, as the cage started on its downward passage, if he had thought that I was going down on a tour of inspection. There would have been nothing for him to fear from any one’s inspection; he was a good superintendent. “Don’t stay long, Miss Leslie,” he called down after us. I could no longer see his face, but his voice sounded anxious, and father remarked:

“Rutledge seems quite uneasy, somehow.”

“Dese yer minin’ bosses, dey knows dey business,” muttered old Joe. “Dey knows dat de rheumatiz hit lays in wait, like a wile beas’ scentin’ hits prey. ’Spect’s Mas’r Rutledge he hate fur ter see a spry young gal like Miss Leslie git all crippled up, same’s a ole lame nigger.”

“Yes; it must be that he feared Leslie would get the rheumatism,” father said, in a lighter tone. Old Joe’s explanations and reasons for things were always a source of unfailing delight to him. The cage reached the bottom of the shaft and we stepped out. By the light that was always burning at the tunnel’s mouth father and Joe each selected a miner’s lamp from the stock in a corner, and, as father was lighting his, he said: “You had better carry a lamp, too, Leslie.” I picked one up while father slipped the bar of his under his cap band. Then he glanced at my big hat. “You’ll have to carry yours in your hand, child; there’s no room for so small a thing as a miner’s lamp on that great island of straw that you call a shade hat.”

The Gray Eagle was a quartz gold mine. Tunnels drifted this way and that, wherever deposits of the elusive metal led them; sometimes they even made

turns so sharp as to almost double back on themselves. I was glad to see that the point where father and Joe halted, at last, to pick up the tools that they had thrown down when they quit work in the mine, was within sight of the twinkling yellow star that marked the location of the hoisting cage. The place seemed less eerie somehow, with this means of escape signaled in the darkness. I had been, as I told Mr. Rutledge, in the mines a good many times, but never had its darkness seemed so impenetrable, so encroaching, as on this morning.

“It seems to me that our lamps don’t give so much light as usual, or else what they do give does not go so far,” I remarked to father as I lingered beside him a few moments, watching him work.

He was using a drill on the face of the rock wall in front of him. He suspended operations now to say: “I noticed that myself. The air is thick and damp; the light is lost much as it is in a fog.” Then he called my attention to an object lying on the ground at his feet. “There’s the spade; I guess you’d better be going back with it, dear; Reynolds will be needing it.”

Accordingly, with the spade in one hand and the lamp in the other, I started to retrace my steps to the hoisting cage. The sound of the drill that father was now plying vigorously followed me, becoming muffled, rather than fainter in the distance as I proceeded. From the various tunnels, branching off to the right and left, came the sound of other drills, and, occasionally, the plaintive “hee-haw” of one of the half-dozen or more little Andalusian mules used in hauling the loaded cars to and from the ore dumps near the hoisting cage. With all these sounds I was more or less familiar, but to-day, underneath them all, it seemed to me that there were others, myriads of them. To my lively young fancy the silence teemed with mysterious noises; low groans and sighing whispers that wandered bodiless through dark tunnels, dripping with a soft, unusual ooze. Knowing that Reynolds was in a hurry for the spade I hastened along, listening and speculating, until coming opposite one of the side extensions I was suddenly taken with the whim to see if its walls were as damp as those of the tunnel that I was then standing in. I turned into it accordingly, but stopped doubtfully after a few yards. Holding the lamp aloft I looked inquiringly along the walls. Damp! I understood now why my father wore a coat, a circumstance that had already

impressed itself upon my mind as being very unusual among these underground workers. The water was almost running down the sides of the rocky tunnel, and the light of my lamp was reflected back at me in a thousand sliding, mischievous drops.

“Where does it all come from?” I thought, laying my hand on the face of the rock before which I stood. My hand had touched it for a single heart-beat, no more, when I felt the color go out of my face, leaving me with wide, staring eyes, while I stood trembling and ghastly white in the breathless gloom. Like one suddenly bereft of all power of speech or motion I stared mutely at the black wall before me. I had felt the rock move!

Standing there in that awful darkness, hundreds of feet underground, I understood what had happened, what was happening, and, dumb with the horror of that awful knowledge, stood motionless. All the stories that I had ever heard or read of sudden irruptions of water in mines, of dreadful cavings-in, flashed into my mind, and then, breaking the paralyzing trance of terror, I turned and ran toward the main tunnel. I tried to utter a warning shout as I ran, but my stiffened lips gave forth no sound. Happily, as I reached the main tunnel, the light at the foot of the shaft was in direct range with my vision, and between the shaft and myself I plainly saw a man hastening toward it. He was wearing a light gray coat. A quick glance toward the spot where I had left father and Joe showed nothing but darkness. They had both left. The hoisting cage was down, and, as I raced toward it, the man in the gray coat scrambled in. Even in my terror and excitement I was conscious of an unreasonable, desolate sense of desertion when I saw that. Yet, underneath it all a lingering fragment of common sense told me that father would believe me, by this, safe above; he had told me to go—and I had not obeyed him.

Behind me, as I ran, arose a shrill and terrible chorus, a crashing of timbers, yells and shrieks of men, the terrific braying of the Andalusian mules, and above all, a new sound; the mighty voice, the swelling roar of imprisoned waters taking possession of the channels that man had inadvertently prepared for them. I reached the hoisting cage so nearly too late that it had already started on its upward journey, when, seeing me, one of its occupants

reached down, caught both my upstretched hands and swung me up to a place by his side. It chanced, providentially, that the cage was at the bottom of the shaft when the inrush of waters came, and it had been held there for a brief, dangerous moment while the men nearest the shaft fled to its protection. It rose slowly upward, not too soon, for in an incredibly short time an inky flood rolled beneath it; rolled beneath, but seemed to keep pace with it as it arose. The water was coming up the shaft.

CHAPTER III

AT THE MOUTH OF THE SHAFT

Rutledge was standing by the windlass as the cage drew slowly up into the light. The men sprang out, not forgetting to lift me out with them, and the superintendent craned his neck, looking down into the black hole from which we had ascended. "Keep back!" he shouted, as some of the men crowded about him. "Keep back; the water is coming up the shaft. We'll soon have a spouting geyser, at this rate. How many of you are there?" He glanced over the group and answered his own question, in an awed voice: "Seven—and the girl—God help us! Only seven!"

I had been so blinded by the fierce white glare of sunlight, following on the darkness of the shaft, and so dazed by the awful nature of the calamity that had befallen us that at first I comprehended almost nothing. The events of the day recorded themselves automatically upon my mind, to be clearly recalled afterward. In a numb, dazed way I saw a man in a light gray coat creep stiffly from the cage, last of all, and, as he staggered away up the dump, I took a step toward him, looked in his face, and recoiled with a wild, heart-broken cry.

The wearer of the coat was old Joe. Facing around, I looked on the rescued men, my heart beginning to beat in slow, suffocating throbs—my father was not among them.

For a moment I was quite beside myself. Like one gone suddenly mad, I sprang at the negro, and, seizing his arm, shook it furiously, crying:

"Father, father—where is my father? What have you done with my father?"

The old man began to whimper, "I ain' done nuffin'! I wish't I had! I wish't hit was me dat done gone to respec' dat ole Watkin's Lateral, den I'd 'a' been drownded, an' he wouldn't!"

“Watkin’s Lateral?” echoed one of the men who had so narrowly escaped. “Was Gordon in there? That’s where the water burst through first. I thought that some one might have gone in there to test the walls, and they’d given way.”

“You are probably right, Johnson. Not but what the walls would have caved in, just the same, whether they were struck or not.”

Little heed as I paid, at the moment, to what was going on or being said, yet it all impressed itself upon my mind, to be recalled afterward, and afterward I knew that this last observation of Mr. Rutledge’s was intended to exonerate father from any charge of carelessness in going into that place at just that time. But every employee of the Gray Eagle knew that Watkin’s Lateral—a long, diagonal passage, with which the main tunnel was connected by a number of side extensions—was a treacherous place in which to work at all times, and must, of necessity, have been trebly so this morning. Loosing my frenzied hold of old Joe, I crouched to the ground, while Joe sank down on the dump, covering his face with his gnarled old hands. “He made me tuck an’ put on his coat, he did, an’ tole me fur t’ start fur home; I was dat racked wid de misery in my back!” he moaned.

The men were again clustering about the shaft. I got up and went and stood beside them. A hollow roar came up from the depths into which we gazed. The black water had risen, and risen, until, touched by a ray of sunlight, it threw back at us a sinister, mocking gleam, as the eye of a demon might. And father was down there in that black grave! That was my one coherent thought as, after the first wild look, I suddenly grasped one of the ropes of the cage that still swung above the shaft’s mouth, and swung myself aboard. My reckless hand was on the starting lever when Mr. Rutledge, with a cry, and a spring as quick as my own had been, landed beside me. He snatched my hand from the lever. “Are you mad?” he asked, sternly, “What are you going to do?”

“I am going down to my father; I am going to bring him up!” I cried wildly.

As though the words had held a charm to break the spell of silence, they were followed by a babel of groans, of outcries and entreaties. It seemed

that all the surface population of Crusoe were already on the spot; all, and especially the women, were wild to go to the rescue of the doomed men below. Doomed! Ah, they were past that now—all of them—all! It was this solemn thought that suddenly calmed me, that made me yield quietly to Rutledge's guiding hand as he drew me from the cage. "There are men here," he said. "Stand back, all of you women." He took his place in the cage again; then he looked around on the assembled men.

"Dick," he said, signalling out a square-built Scotch miner, "stand beside the hoist, and do exactly as I tell you."

"I wull that!" returned the miner, taking the station indicated.

"I'm going down as far as the water will allow," Rutledge explained. "Who comes with me?" A dozen men volunteered instantly. Rutledge selected two who stepped into the cage beside him.

"There may be fire-damp—gas," the Scotchman said, warningly.

"I know; there is, probably; I'll look out for that. Lower away!" Rutledge had lighted one of the miner's candles which was suspended by a cord from a crack in the bottom of the cage. We above leaned over that dreadful well and watched the tiny flicker of light as the cage swung down and down toward the sinister eye that came steadily up as it went down. The tiny flame burned bravely for a space, then it went out as suddenly as if snuffed out by invisible fingers while the water below moved and sparkled as it might have done if the owner of the demoniac eye had laughed. "Choke damp!" said the Scotch miner succinctly, and began hoisting up.

I was crouching on the ground with my face hidden on Joe's shoulder when the cage came up again. The men sprang out silently, and the hush on the waiting throng seemed to deepen.

"We will set the pumps at work as soon as it can be done; that is the only thing left for us to do," I heard Rutledge say, and his voice sounded far away to my reeling senses as it might have sounded had I heard it in some dreadful vision of the night. Then he came and knelt down beside me; he

took my hands in a close grasp. “Go home, Leslie,” he said, “go home and do not come back. We will do all that can be done.”

Not many hours thereafter the pumps were at work, lifting the water out of the mine—a Herculean task, but not so long a one, or so hopeless, as had been anticipated by many. Soon fresh mounds of earth began to appear in the lonely little hillside cemetery; mounds beneath which the rescued bodies of the drowned miners were reverently laid. Among them was one where father lay peacefully sleeping by mother’s side, and leaving him there at rest, we turned sadly away to take up again the dreary routine of our every-day life.

CHAPTER IV

A PLOT FOILED

It was a full month after the mine accident, and things had settled back as nearly into the old routine as was possible with the head of the household gone. I doubt if Jessie and I could have carried the burden of responsibility that now fell upon our unaccustomed shoulders had it not been for Joe. The day after father's funeral he walked quietly into the kitchen with the announcement:

"I'se come ter stay, chillen! Whar yo' gwine want me ter drap dis bun'le?"

The bundle was done up in a handkerchief—not a large one at that—and it contained all of Joe's worldly possessions. Jessie gave him the little bedroom off the kitchen, and there Joe established himself, to our great satisfaction. He was not less reticent than usual, but there was immense comfort to us, even in Joe's silence. The only explanation that he ever gave as to his intentions was contained in the brief declaration:

"Yo's no 'casion fur t' worry yo'se'ves no mo', chillen; I'se come ter tek holt."

And take hold he did. Early and late the faithful black hands were toiling for the children of the man whom he had so devotedly loved.

On this particular morning Jessie and I were seated in the kitchen busily employed in doing some much-needed mending, when I dropped my work and said to Jessie: "I believe something is taking the chickens, Jessie."

Jessie glanced at the garment that I had let fall, a torn little dress of Ralph's. "Do you?" she said.

"Yes; I'm sure there are not so many as there should be."

“Don’t you count them every night?”

“Yes, I do; but they should be counted oftener. At mid-day, too, I should say.” I submitted this proposition deferentially, but with a covert glance at the clock; it was nearly twelve, and I did so dislike mending.

“Very well,” Jessie said, “count them a dozen times a day if you think best, of course.”

The elation with which I arose to comply with this generous permission was tempered somewhat by a little haunting sense of meanness. “Still,” I reasoned, “when one’s home depends on such things as cats, dogs, and chickens, one cannot take account of stock too often. Besides, Jessie likes to mend, at least I’ve never heard her say she does not, but I have heard her say that she doesn’t like to tend poultry.”

When I re-entered the house, after conscientiously enumerating every pair of yellow legs on the place, and finding, somewhat to my chagrin, that the tally was the same as that of the previous evening, I found Jessie sitting at the table with her face hidden in her hands. Afraid that she was crying I at first pretended not to notice. We had more than enough cause for tears. I picked up the discarded little dress and, in a spasm of repentance, murmured ostensibly to Ralph, who was playing near the table, but really for Jessie’s benefit: “Sister is going to mend the pretty blouse that you tore on the oak bush after she gets this dress done.”

“’En w’en oo’ puts it on me, me do in ’e oak bush an’ tear it adain,” the child declared, cheerfully.

“You naughty boy!”

“’Es; me notty boy,” with which announcement he went and leaned against Jessie’s knees. Jessie looked up; she was not crying, but her face was haggard with pain.

“I’ve got a dreadful toothache,” she said, and then I remembered that she had been very restless during the night. “I’m afraid I shall know no peace until it is out,” Jessie went on, “and it’s half a day’s journey to a dentist.”

“And Joe has taken both the horses to go up into the Jerusalem settlement after that seed-corn, and he can’t get back before to-morrow night!” I exclaimed, in consternation. As I sat looking at her with eyes more tearful than her own there came to our ears the welcome sound of wheels, and a wagon stopped at the gate. I sprang up and ran to the door, with some faint hope, for the moment, that Joe had returned. It was not Joe who was sitting immovable on the seat of the light wagon that was drawn up before the gate, but my astonishment would not have been so great if it had been. The small, bronzed-faced, wiry individual who sat still, calmly returning my inquiring gaze was none other than our persevering enemy, Mr. Jacob Horton. I did not fancy our caller, but thinking that he would not have called if he had not some reason for so doing, I walked out and down the path toward him, saying, “Good morning, Mr. Horton.”

“Mornin’, Miss Leslie. Folks all well?”

“Not very well; at least, Jessie isn’t. She’s got a dreadful toothache.”

“Toothache, eh? That’s bad. Nothin’ like yankin’ out fur an achin’ tooth. That’s my experience, and you may pass it along to Miss Jessie for what it’s worth.”

“I don’t know what good it will do her if I do,” I replied, rather irritably, for Jessie was sobbing now, and the sound hurt me almost as much as a physical pain could have done.

“Why, the good it will do is that that old nigger of yours—Joe, you call him—will tackle up, she’ll tie on her bunnet, hop into the wagon, and away for Dr. Green’s office in Antonito, and she’ll set as still as a mouse while the doctor yanks out that tooth; that’s the good it’ll do.”

“Yes, that might all be if Joe wasn’t away with the team.”

“Wal’, that does rather spoil my program. Goin’ to be gone all day, is he?”

“Yes; maybe for two or three days. He’s gone up to the Archer settlement on the Jerusalem trail.”

“Oh, has he? Wal’, now!”

Mr. Horton had been sitting all this time with the reins in one hand, his hat in the other. He now replaced the hat on his head and stood up. He remained standing so, motionless, for more than a minute, gazing steadfastly at his horses' ears, while his brow puckered and his small eyes narrowed like those of a person in deep thought. Finally he exclaimed:

"Say, I tell you how we'll fix it. You all get in here with me and come over to my house. Maria, she'll be sure to think of something to ease that tooth the minute she claps eyes on ye; then, in the mornin', she or I'll take ye over to the doctor's office, and bring ye home afterward. Hey, what do you say, Miss Jessie?" for Jessie had by this time come out of the gate, with Ralph clinging to her hand.

Jessie, the pain of her aching tooth dulled for the moment by sheer amazement, said that he was very kind. She said it almost timidly. We had had so little reason hitherto to look for any neighborly kindness at Mr. Horton's hands.

"Then ye'll go?" Mr. Horton insisted.

Jessie looked inquiringly at me. Her face was swollen and her eyes red with crying.

"Yes, Jessie, do go. There's no knowing when Joe will be back, and you—"

"Why, you'd better all come," Mr. Horton interposed again. "There's two seats in the wagon—plenty of room. Here, where's the little shaver's hat? Get your hat and climb in here, youngster."

Ralph, who was enterprising and fearless, obeyed without protest. Peremptorily declining Mr. Horton's invitation to sit with him, he took his station on the back seat, and from that vantage urged his sisters to make haste.

"Come, 'Essie, us yeady."

Jessie ran in and got her hat, tossed her old coat over her shoulders without stopping to put her arms in the sleeves, and, by aid of the wheel, mounted to the seat beside Ralph. I, too, had put on my hat, but waited to secure the

windows, and then to get the door-key. Mr. Horton, sitting silent on the front seat, observed my proceedings with interest; "You're awful careful, ain't ye?" he said, at length, and, in spite of his friendliness, it seemed to my sensitive fancy that there was a sneer in his voice. However, that did not greatly trouble me, for, from my slight speaking acquaintance with him before this, I had come to believe that he never spoke without one, so I replied, cheerfully:

"Yes; I guess I am careful enough."

I had locked the door, and was approaching the wagon when Mr. Horton asked:

"Where's your dog—you've got one, ain't ye?"

"Guard? Yes, he's with Joe. Why?"

I stopped short as I suddenly realized what Joe's absence for the night meant.

"Why, I can't go, Jessie; I shall have to milk both the cows to-night!"

"Oh, that's true!" groaned Jessie. She started up.

"I'm sorry we have detained you at all, Mr. Horton, but Leslie can't stay here alone all night, and the cows must be milked. Come, Ralph, we must get out."

As Ralph slid obediently off his seat, Mr. Horton laid a detaining hand on his arm. Ralph wriggled himself loose, looking defiant.

"Wait!" Mr. Horton urged. "It's too bad for you to have to keep on sufferin' all night, Miss Jessie, when you might be helped."

"Oh, I know it!" Jessie moaned, sinking back on the seat and covering her face with her hands.

"I've never had the toothache myself, but I know it must be dreadful. By the way, where are the cows?" Mr. Horton stood up and looked around as if he might spy them in the tree-tops or anywhere. "I do'no—I wisht' 'twas so

I could spend the time—" he muttered reflectively. Then, suddenly: "How long will it take ye to milk 'em? I might wait."

"Oh, no! No indeed! I couldn't think of asking you to do that on my account!" I exclaimed, feeling very grateful, nevertheless, for the interest he displayed. "The cows haven't come up yet; besides, it would do no good to milk them now, at noon, for this evening," I explained, although Mr. Horton, being a cattleman, should have known that without my telling him.

"I've thought what I can do," I said, after a moment. "You and Ralph go with Mr. Horton, Jessie, and after the chores are done this evening I'll slip over to Crusoe to Mrs. Riley's." Mrs. Riley being the kindly Irish-woman with whom old Joe usually boarded when working in the mines.

"That's a good plan," Jessie said. "I couldn't bear to leave you here alone all night."

Mr. Horton had seemed considerably nonplussed when he found that I was not coming with him; he now brightened visibly, remarking: "Yes, you can do that; lonesome work for a young gal stayin' alone all night; no tellin' what might happen," and then, with that curious fatality that so often induces people to say exactly the wrong thing for their purpose, he added: "I should 'a' thought your nigger would 'a' left the dog here to purtect you young women whilst he was gone. But niggers is always thoughtless, and yourn is no exception."

Inwardly resenting both the tone and words, I instantly resolved, in a spirit of loyalty to Joe, to remain where I was that night. Why should I not, indeed? I had never spent a night alone in my life, but I would let Mr. Horton know that I was not afraid to do it—I would let him know afterward—just at present I nodded my head in apparent acquiescence with his views, and bidding good-by to the trio, walked away toward the corral, intent on beguiling them into the belief, should they look back, that I was anxiously awaiting the arrival of the cows in order that I might the sooner get away myself. In the silence that followed upon the last faint rumble of their disappearing wheels I thought of something else. Something that made my blood run cold with a sickening apprehension of the calamity that had so

nearly befallen us. A moment more and, the numb fit of terror passed, I was dancing down the corral path, saying jubilantly to myself: “Oh, ho, Mr. Horton! But it isn’t left alone! The homestead isn’t left alone. I’m here, I’m here!”

Jessie was half crazed with pain, no wonder that she had forgotten, but why should it have escaped my mind, until almost too late, that, under the homestead laws, the laws by which we hoped to obtain a title to this beautiful valley ranch, the house must not be left untenanted for a single night, until the deed to it was in the claimant’s possession. We had heard so much about the homestead laws from poor father that we accounted ourselves quite able to comply with them all—yet—how nearly we had come to leaving the house vacant that night!

And it was Mr. Horton, of all others, who had urged us to do so, and he understood the homestead laws; no one better.

The thought of our narrow escape was still with me when, towards evening, I heard the tinkle of old Cleo’s bell, coming musically down the mountain side, and went out to the corral to let down the bars. “After all,” I thought, looking back at the house as I stood waiting by the bars, “it might not have been a complete success for Mr. Horton if he had got us all away from home for the night. The house and furniture would be pretty good proof to the land agent of the honesty of our intentions.”

CHAPTER V

AN EXCITING EXPERIENCE

I had never been left entirely without human companionship before, not even for a night, and I soon began to wonder at the amount of loneliness that can be compressed into a few hours. Before the afternoon was half spent I was mentally reviewing the history of Robinson Crusoe, and was feeling an intense sympathy for that resourceful castaway.

I lingered over my evening tasks, and, sooner than seemed possible, dusk came and night was at hand, so at last I reluctantly closed and made fast the kitchen door. Reluctantly, for to-night, this common and necessary precaution seemed, somehow, to cut me adrift from all chance of human aid, and by this time my mind was running on wild tales of bandits, of lonely camps, and the far sweep of the cattle ranges where, in darkened hollow or at the foot of shadowy buttes, great gray wolves lay in wait for their midnight prey, indifferent as to whether the prey consisted of cattle or cattleman.

Still, I am sure that I was not really cowardly; it was only the unusual situation that set me thinking of these things. Father's light rifle hung in its accustomed place over the kitchen fireplace, and, as a last precaution, I took it down, and, after ascertaining that it was properly loaded, put it near the head of the bed, within reach of my hand. To be expert with firearms is almost a matter of course for girls on Western ranches, and I was an unusually good marksman. As it would, to my fancy, but intensify the emptiness and loneliness of the house if I were to light a lamp, I decided to go straight to bed without a light, and, if possible, forget my troubles in sleep. But I had hardly reached this sensible conclusion when I became convinced that I was thirsty. It is not in the least probable that I should have even thought of needing a drink if it had not suddenly occurred to me that there was no water in the house. I had used it all, and had neglected to fill

the pail again. There is no surer provocative of thirst than the knowledge that there is no water to be had, and, as I thought the matter over, my lips grew dry and my throat parched. It was unendurable. In desperation I slipped on the shoes that I had just taken off, and, taking the empty pail from the kitchen sink, unlocked the door and made a hurried trip to the spring, a few rods west of the house.

Returning with a brimming pailful, and disdaining to acknowledge, even to myself, that my knees were shaking, I set the pail on a chair by the bedroom window. I was determined to have water close at hand, in case my thirst became torturing during the night. The cat was mewling plaintively on the kitchen doorstep. I re-opened the door and let her in, then re-locked the door and, disrobing, crept quickly into bed. Curled down snugly under the blankets I was almost dozing when a sudden recollection caused me to laugh softly to myself, there in the darkness. In spite of my terrible thirst I had entirely forgotten to take a drink after the water was at hand. "I'll get up after a while if I find that I can't get along without it," I told myself, sleepily, and with the sense of amusement still upon me, I was far away into dreamland.

I suppose that very few people have escaped the unpleasant, breathless sensation of awakening suddenly and completely under the spell of some unknown challenge, a warning of some impending danger passed by the alert mind to the slumbering senses of the body. I had slept far into the night when I awoke, seemingly without cause, to find myself sitting upright in bed, listening intently. For a moment I heard nothing but the soft padded foot-fall of the cat as, stealing from her place on the foot of the bed, she moved restlessly about the room. "It must have been her springing off the bed that awoke me," I thought, nestling back into the pillows again. I closed my eyes, but opened them quickly as a soft rustling outside of, and almost directly underneath the bed-room window, came to my ears.

The window-shade was pulled down, but it was hung several inches below the top of the window, which had been left open for ventilation. Through this uncurtained space the moonlight streamed into the room; by its light I saw the cat retreating into a corner farthest from the window, her tail swelled out like that of a fox, her hair bristling, and her yellow eyes glaring

vindictively. She disliked strangers, and commonly resented their presence in just this manner. I wondered, as my eyes followed the cat's movements with growing apprehension, if she would act this way because of the vicinity of any large prowling animal. I was sure now, as I crouched tremblingly under the blankets, that the increasing noise that I heard was not made by any harmless midnight prowler. If it had been, the cat, being a great hunter, would have shown an eager desire to get outside the window, instead of away from it. Accustomed to the knowledge that there were wild animals in plenty up on the mountain slopes and in the encircling forests above us, and having abundant reason to know that they often made stealthy visits to the valley settlements at night, I soon reasoned myself into quietude. Whatever the beast might be, I was in no personal danger; the cows were safe in the high-walled corral, and the poultry-house securely locked. Reassured, as I recalled these facts, I did not get up to make any investigation as to the cause of the noise. "If it's a bear, it isn't mine," I told myself, drowsily; "as Joe says, 'I ain' los' no bear 'roun' yer.'"

I was half asleep again when a curious sensation, as of a bright light playing over my closed eyelids caused me to open them suddenly. Then I bounded out of bed, uttering a scream that might, I should think, have been heard a mile. A broad sheet of yellow flame was streaming up beside the house and over the uncurtained window space. Obeying an impulse as irresponsible as the one that had caused that useless scream, I seized the loaded rifle at my bedside, and sent a bullet whistling and crashing through the window panes. The impression that some prowling wild animal was about was probably still strong upon me, and, in any case, the shot was not without effect. My shriek and the report of the rifle rang out almost at the same instant. Following them came a cry, a smothered oath, and the sound of running footsteps. Throwing down the yet smoking gun, I ran to the window, tore down the obstructing shade with one sweep of my impatient hand, and leaned forward, scanning the hillside. The flames reached toward me greedily through the opening that my bullet had made, but, although their hot breath half blinded me, I saw a man running swiftly for the shelter of the hillside pines. I glanced toward the rifle—I was a good shot, then. "Thou shalt not kill," I said aloud, but it had occurred to me also, that the gun was not loaded. An instant more and I was throwing water on the fire

from the pailful beside the window ledge. After all, as I soon found, the bullet had done more apparent harm than the fire, for the heap of inflammable rubbish underneath the window was quickly drenched and the fire extinguished. To make all doubly secure, however, I reloaded the gun and with that faithful friend in hand brought water and poured over the rubbish until it ceased even to smoke. The heap was composed of pine needles, pine cones, and resinous pitch pine, and once fairly started would have set the house on fire, past all saving, in a very short time. When the blackened pile was so thoroughly drenched that I could poke around in the ashes with my bare hands I gave up pouring water on it, went back into the house, locked the door, tacked a heavy blanket up over the dismantled window, and, shivering with cold and excitement, again crept into bed. As I lay with my finger on the trigger of the rifle, with its muzzle trained on the window, I was surer of nothing than that there was no more sleep for me that night. But, soothed by the sensation of returning warmth, and by the feeling of security that the touch of the rifle gave, I closed my eyes—not to sleep, but the better to think. Sleep! I could not sleep. Nevertheless—

The sunlight was pouring into the adjoining room when I again opened my eyes. Night with its terrors was a thing of the past. I heard the imprisoned cows lowing for their milk-maid and realized with a pang of self-reproach that I had slept later than I ought. Sitting up in bed I looked around, blinking sleepily. The light from the window was effectually excluded by the thick blanket, and my slumber had been so peaceful that I had scarcely stirred; my relaxed hand had merely dropped away from the trigger of the rifle lying beside me. The cat was in her old place at my feet, and I smiled to see her trying to thrust an inquisitive paw into the muzzle of the gun. Finding the hole too small for that purpose she wriggled around lazily until she had brought an eye to bear on the cavity that she seemed to suspect might contain a mouse. When I had dressed and gone outside I was filled with wonder at the narrowness of the escape that the house had had. There had been no rain for weeks; scarcely a drop, indeed, since the dreadful accident that had left us fatherless—and everything was as dry as tinder. Once started, a fire would have devastated the whole valley. In the retrospect the danger that we had escaped seemed even more terrifying than in the hurry and excitement of the fire itself. And—how came that heap of

combustible stuff under the window? Who was that man whom I had seen running up the hillside as if pursued by the furies?

The morning's chores done, I procured broom and rake and set about clearing away the unsightly heap from under the window. I was raking industriously, when my eye was suddenly attracted by a small glittering object near the outer edge of the pile. Stooping, I picked it up. It lay in the hollow of my hand, and I stood looking at it for a long, long time. "All things come to him who waits." The origin of the fire was no longer a mystery, but there were other things. We had suffered nearly five years of petty, relentless persecution, and had never, never by any chance, been able to produce any direct evidence against our enemy. The wind sweeping through the pine boughs on the hillside above had, to my fancy, the sound that a great fire makes; a great fire that, rioting unchecked, leaves suffering and death in its wake. "Much harm would have been done to others besides us if I had not been here to put the fire out," I thought, gravely regarding the thing in my hand. "Much harm; and the law punishes any one convicted of setting a fire, here in the mountains in a dry time, very severely." Then I went into the house to put the glittering trifle safely out of sight.

CHAPTER VI

A VISIT FROM MRS. HORTON

I had not looked for Jessie and Ralph to return before night, but the article that I had found was scarcely hidden when, chancing to glance down the road, I saw Mr. Horton's team, with the light wagon attached, trotting briskly toward the house.

Only Jessie, Ralph, and Mrs. Horton were in the wagon, and it startled me at first to observe that Ralph was driving. My astonishment changed to amusement as they drew nearer, and I saw that Mrs. Horton's capable hands held a firm grip of the lines, just far enough behind Ralph's not to deprive him of the glory of the idea that he was doing all the driving.

"'Oo! 'oo, dere!" he called imperiously, bringing the horses—with Mrs. Horton's help—to a standstill before the gate. Jessie sprang out and turned to lift the little driver to the ground, while we all began talking at once. But our mutual torrent of questions was abruptly checked by the contumacious conduct of that same small driver, who deeply resented Jessie's invitation to him to come off his perch. "Me is doin' tek care of 'e 'orses," he declared, scowling defiance at his sister. "Mis 'Orton, 'oo dit out if 'oo p'ease!"

No better description of Mrs. Horton could be given than to say that she was all that her husband was not—the dearest soul. She laughed as she surveyed the conceited little fellow and then said seriously: "How in the world am I to get out if you don't get out first and help me down?"

Ralph was unprepared for this emergency, but the objection appeared to him reasonable; he slid slowly off the seat—he was so short that it seemed a long time before his tiny toes touched the bottom of the wagon-box—and began climbing laboriously down, over the wheel. When he had at length reached the ground Mrs. Horton stood up and with the reins held securely in one hand she gained the hub of the near wheel. From that vantage she

reached down to meet Ralph's upstretched mite of a hand, and so was gallantly assisted to alight.

To my delight Mrs. Horton announced that she had come to spend the day with us. She led the team to the barn and we proceeded to unharness them without assistance from their late driver, who had already forgotten his intention and his dignity in a romp with his friend and playmate, the cat.

"I suppose your tooth stopped aching and you decided not to have it out," I said to Jessie, as we were helping Mrs. Horton.

"No," Mrs. Horton explained, cheerfully; "by the best of luck, Dr. Green chanced to be passing our house last night, soon after Jake brought Jessie. We called him in, and as he had his forceps—toothers, my little brother used to call them—with him, he had that aching tooth out in no time."

"I'm afraid it hurt you dreadfully, didn't it, Jessie?" I inquired, sympathetically.

"Not so much as I thought it would; not so much as the aching did," Jessie replied. "People are so cowardly about such things!" she added, and the sly look that Mrs. Horton bestowed on Jessie's sister behind her back, awoke a suspicion in my mind that, perhaps, Jessie herself had betrayed some shrinking dread before the operation took place.

"How glad I am that you didn't have to go clear over to Antonito," I said. "You wouldn't have been home for hours yet, and Mrs. Horton wouldn't have been making us a visit."

"And Mrs. Horton would a good deal rather be making you a visit than driving these horses to Antonito, I can tell you!" said that lady. "They're quiet as lambs until it comes to cars and engines, and the sight of them scares them both nigh to death, and the railway track runs along right beside the highway for a mile before you get into Antonito. I'd have been obliged to drive Jessie over, for the hired man is gone, and Mr. Horton met with an accident to one of his hands last night, and couldn't have driven."

"An accident! How did it happen?" I inquired, with feigned carelessness.

“Why, I declare, I can hardly make out how it did happen!” exclaimed Mr. Horton’s wife, with a troubled look. “There, Jessie, that’s hay enough to last them a week, and I don’t expect to stay that long. You see,” she went on, slipping the harness deftly off the nigh horse, and tossing it down on the pile of hay, “nothing would do Jake last night but he must go up to the north pasture to salt the cattle. I told him there was no need—they were salted only last Sunday—but go he would, and go he did. It got to be so late before he came back that I got real uneasy about him. It’s a good bit to the north pasture, but I knew it ought not to keep him out so very late. Why, it was after twelve o’clock when he came in at last, with his clothes torn, and his hand done up in his handkerchief and just dripping with blood! Jessie and Ralph had gone to bed, hours before, and I was thankful that she wasn’t up to see it, for it fairly scared me, and I’m not a mite nervous, generally. I expect I was the more scared because of Jake’s way of taking it. He’s as steady as iron, most times, but last night he was all kind of trembly and excited. He tried to explain to me how the accident took place, but I couldn’t make out hardly what he did mean. It appears, though, that he was coming home along the ravine—where it’s always dark, no matter how bright the moonlight—and he jabbed his hand, as he was walking fast, up against a sharp jack oak stub—at least, he thought it must have been some such thing—and he got an awful cut. You wouldn’t believe, if you didn’t see it with your own eyes, that a stub of any kind could make such a wound! There’s a long, slanting cut clean through the palm of his hand. I wanted him to let me look in it for splinters, but he’s real touchy about it; wouldn’t even let me bathe it,” she concluded sadly.

Everybody liked Mrs. Horton, and a good many things that her husband did would have been less easily condoned by their neighbors if she had been as little of a favorite as he, and one of the things that people liked best, while finding it most incomprehensible, was that she believed in him and his good intentions most implicitly.

“I don’t see how he could possibly have run against an oak stub in a ravine,” observed Jessie, musingly. “Oaks, and especially jack oaks, grow only on the dry hillsides.” Jessie is very observing when it comes to a

question of the flora of a country, and what she said was true, as Mrs. Horton hastened to admit.

“I never thought of it before, but I believe that’s so,” she said. “It might have been something else, but Jake himself said that there wasn’t any other kind of wood that he knew of, tough enough and hard enough to make such a cut as that.”

Having cared for the horses we three started for the house. “Did you have a good bed at Mrs. Riley’s?” Jessie now asked, bestowing direct attention on me for the first time. We were just entering the house, and before I could reply Jessie cried out in surprise at the unfamiliar aspect of the bed-room, where the heavy quilt still excluded the daylight from the window.

“Why, what is that for?” she asked, perceiving the cause of the semi-darkness.

I had purposely refrained from telling my story until now. Now I told it, to the consternation of my auditors. Jessie could scarcely credit the evidence of her senses, and Mrs. Horton said feelingly:

“Thank God that you have a brave heart and good sense, Leslie! If you hadn’t thought of that clause in the homestead law in time, and had gone away last night, I tell you this settlement would have been in mourning this morning! Seems to me that I just couldn’t bear for you children to lose this place now—this place that your poor pa had set his heart on! And to think that such an accident should take place so near the time of your proving up makes it so much the worse, for, if the house had gone, I don’t believe you could have got your title. No, not if you had taken down a dozen witnesses to testify to the burning. The law is strict. I doubt if the agent would have the power to give you a deed unless there was a house standing on the land at the moment that the deed was issued, no matter if he wanted to ever so badly.”

She was full of sympathy and kindness, poor soul, and, listening to her exclamations and condolences, I was sorry for her. Jessie was right: there were no jack oaks in the ravine down which Mr. Horton must have passed on the way from the north pasture to his home.

CHAPTER VII

SURMISES

Mrs. Horton and Jessie walked around the house to the bed-room window, and stood surveying the pile of rubbish beneath it, wondering greatly why a fire should break out in that place.

“The only way I can account for it is that a spark from the chimney must have fallen into this pile and set it afire,” Mrs. Horton observed, turning bits of the pile in question over with the toe of her shoe. “I’m not blaming you, Leslie, but it is true that young folks can’t be too careful with fire. I wouldn’t be a mite surprised now, if you just filled the kitchen stove full of dry stuff and set it off when you built a fire to get your supper.”

“Leslie always does use lots of kindling,” interposed Jessie, who was, it must be admitted, more careful about small savings than I.

“You may depend on it, then, that that’s just how it happened,” Mrs. Horton went on, while I remained silent. “You see, when you start a fire like that, lots of live sparks are carried up the chimney, and it’s just a mercy that there are not more houses burned than there are on account of it. I say it for your good, Leslie, when I say that I hope this will be a lesson to you; you’ve had a narrow escape. My! but it makes me shudder to think of it!”

As she stopped talking to shudder more effectively I ventured to make an observation that, it was strange, had occurred to neither Jessie nor herself:

“It took that spark—supposing the fire was started by a spark from the chimney—a long time to fall, didn’t it? It was after twelve when the fire broke out, and I had supper at six, besides—” but there I checked myself. The more I thought the matter over, the more desirable it seemed that I should keep to myself the dreadful certainty that I felt in regard to the origin of the fire. If people liked to believe that it was caused by some negligence

or carelessness of mine, it would only complicate matters, beside robbing them of a comfortable conviction, for me to tell that I had had no fire on the previous evening. Yet such was the case. I had made my solitary meal of bread and milk.

“What a girl you are, to be sure!” Mrs. Horton exclaimed, in genuine admiration, as we turned back into the house. “Now, why couldn’t Jessie or I think of that! Twelve hours to fall! No, it would have been six hours falling, wouldn’t it? You said the fire broke out about midnight. Well, you can think of more things and keep more quiet about them than any ten men that ever I saw. When I think of anything I like to tell of it, and I expect likely that’s the reason that I never think of real smart things; I don’t hold on to them long enough; I pick them before they’re ripe.”

Jessie went to the stove and lifted a lid to peep inquiringly into the fire-box. “I’m not so sure that the fire wasn’t started as Mrs. Horton says,” she declared. “This stove holds fire for a long time, you know, Leslie. A gust of wind might have come up and made such a draft that the embers started to burning again.”

“If all the world were apple-pie, and all the sea were ink, and all the trees were bread and cheese, what should we have to drink?” was my not irrelevant thought. In strict accordance, however, with the character for sagacity that Mrs. Horton had just given me, I said nothing; but Mrs. Horton assented to the proposition with energy enough for both. Ralph was giving unmistakable signs of sleepiness. Mrs. Horton sat down and took him on her lap; the small head drooped on her shoulder while she went on to the creaking accompaniment of the old rocking chair. “I’ve just thought of another way in which that fire might have been started”—she evidently had it upon her conscience to furnish a satisfactory solution of the mystery—“I have been noticing that you keep matches in that china saucer over the mantel-piece, and it’s right alongside the window-sill. Now, girls, I don’t want to seem to find fault with any of your arrangements; but I do like an iron match safe, with a heavy lid, better myself; then there’s no danger of their getting out, and you can’t be too careful about such things. Suppose, now, that one of those mountain rats that are always prying around, getting into every crack and crevice that they can wedge themselves into—suppose

one of them had come into the house, and crept out again with a lot of matches—they'll eat anything—and suppose that rat went through the rubbish pile and rubbed against—”

But this line of reasoning proved too much for Jessie, who, with good cause, prided herself upon her housekeeping.

“There isn't a hole big enough for a rat to crawl through in the house!” she declared, with some warmth.

The rooms were all lathed and plastered. Mrs. Horton looked around. “One might come in at a window,” she suggested, with less confidence.

Knowing the truth, and having in my possession the means of proving it, if need be, I took a somewhat wicked pleasure in this game of wild conjecture. It was, at all events, a satisfaction to be able to veto this last proposition.

“There were only two windows open, Mrs. Horton, and they were open only a few inches at the top,” I said.

“A rat might climb up the side of the window, and come in that way,” was the reply to this. “But”—her face suddenly brightening as a new solution of the mystery flashed upon her mind—“I don't think it was a rat, after all, and I'll warrant I know now just how it happened. Last night was Wednesday night, you know, and they always have those dancing-parties out at Morley's tavern, beyond the Eastern Slope, of a Wednesday night. Lots of those Crusoe miners go to them, and they all smoke. Now what'll you chance that as one of them was coming home—they have to go right past here—he didn't light a match for his cigar, and when he was through with it, fling the match right down against the house, or, maybe, he threw the stub of a cigar down?”

“It might be, I suppose,” Jessie admitted, rather reluctantly. She was evidently disposed to abide by her own theory of reviving embers and falling sparks.

“Oh, I'm well-nigh sure, now that I think of it, that that was the way it happened,” Mrs. Horton insisted, pausing to brush Ralph's damp curls back

from his forehead. “You see, I wouldn’t feel so positive that it was done in just that way if it wasn’t for an experience that we had, here in the valley a long spell ago.”

“You refer to the time when the great forest was burned?” Jessie inquired rather absently. She had seated herself at the sewing machine and was busily running up the seams of Ralph’s new kilt.

“Yes; that’s the time. It was before you came here. And the fire was set in the way I spoke of. A couple of young men—they weren’t much more than boys—came up from town, and they were just at that age when they thought it a smart thing to be able to smoke a cigar without turning sick after it. They were staying at the hotel, and one day they went with a party from there up to see the marble quarries. There’d been an awful dry spell; it had lasted for weeks, and everything was just as dry as touch-wood. There were notices posted all along the roads and trails, forbidding folks building camp-fires, or anything of that kind. The boys, after they had been to the quarries, started home ahead of the others, and on foot. I don’t reckon that they’d got above a quarter of a mile from the quarries when they pulled out some cigars and matches, intending, of course, to have a smoke. Well, they had it, but it wasn’t just the kind they’d expected. First one, then the other, threw down their lighted matches, after they’d got their cigars to going. The wind was blowing hard in their faces and toward the quarry, as it happened, and the next thing they knew they heard a great roaring, and as they said afterward, two pillars of flame seemed to spring right out of the ground, one on either side of the trail, and to reach so high that they almost touched the tree-tops. In less time than I’m taking in telling of it they had reached the tree-tops, and then the two little pillars of fire became a great blazing ocean of fire up in mid-air. You know how ’tis with pine needles and cones; they make a blaze as if the end of the world had come. No wonder the poor boys were scared! It was right in the thickest part of the woods, and what with the fire roaring away before the wind on either side of them, and the clouds of smoke and sparks roaring away above the burning tree-tops, it must have been an awful sight. They were in no particular danger themselves, because the fire was going away from them, but as they stood there, blistering in the heat, they thought of their parents—their parents, who were right in the path

of the flames, and in the way they acted up to that thought, you may see the difference in folks. One of them—Dick Adams, his name was—pulled his hat down over his eyes, shook out his handkerchief and tied it over his mouth to save his lungs, and said to the other, ‘If anything happens to our folks we are the ones to blame for it; come on and help;’ and with that he gave a leap down the trail as if he would overtake the fire itself. But the other boy, he wasn’t made of that kind of stuff. He just turned and ran the other way, and folks did say that he never stopped running until he reached town, twenty miles away. When poor Dick, blackened with grime and smoke, with his hair singed and his burnt shoes dropping off his feet, staggered into the open space about the quarry, there were the folks, and even the horses, all safe. They hadn’t started when they saw the fire coming, and so, knowing that they were safe where they were, they stayed. The fire swept past them on either side, and all they had to do was to wait till the trail got cool enough to travel over. There was no great damage done after all, though a great many trees were destroyed, but so were acres and acres of underbrush, and that was a big help to stockmen. Dick was pretty well done up, but he didn’t care for any more cigars, and his father paid the fine that the township’s trustees assessed against him, cheerful on that account, though he said he was sorry he couldn’t save the timber. Now, Leslie,” she concluded her story, abruptly, “if you’ll just move those hats a little I’ll lay the baby on the bed.”

After I had complied, and Ralph’s head was on a pillow instead of her arm, she came to Jessie’s side and stood regarding her work thoughtfully.

“You’re real spry on the machine, aren’t you?” she at length remarked, admiringly. “Now me, I’m as slow!” She looked around the room and continued, with seeming irrelevance: “I s’pose the furnishings must have cost you a good deal?” Her tone was very gentle.

“Yes,” Jessie returned, comprehending her meaning with the quick intuition that grief gives. “Yes; they did.”

“Well, he’s at rest. You can visit his grave. They’re worth all they cost and more, but I was thinking now if you felt like taking in a little sewing to help along until—”

“Why, I’d like to do it, dear Mrs. Horton!” Jessie interrupted, looking up with sparkling eyes. “I’ve never thought of it before, but if I could get it to do I would be so glad! Every little toward the proving up is just so much gained.”

“That is what I was thinking. I can let you have quite a little work myself, and I know there are others who will be glad of a chance to get sewing done. I declare, I’m glad I thought of it! It will be so nice for you to do something to help out right here at home. And,” she went on, her kind eyes shining, “maybe you can learn to be a dressmaker—”

“No, no!” interposed Jessie, who had her future comfortably mapped out in her mind. “I mean to be a teacher.”

“Do you? That’s a good, respectable trade, too, and a teacher you shall be if I can do anything to help you get a school.”

Jessie smiled up at her gratefully. Mrs. Horton might not, perhaps, have great influence in educational circles, but the highest authority among them could not have had a kinder heart. But something that Mrs. Horton had said set me thinking of quite another matter.

“If you were here so long ago,” I observed, suspending my task of shelling peas, and looking earnestly at our visitor, “why didn’t Mr. Horton take up some land? He could have taken anything, almost then, and I—we—I have sometimes thought that he kind of wanted this place,” I concluded, weakly.

Mrs. Horton’s gentle face flushed; she was really fond of her husband, who, to be sure, was very careful not to let any knowledge of his underhanded doings come to her ears.

“To tell the truth, Leslie,” she said, “I’ve thought now and again myself that Jake was looking after this place. It’s a beautiful place; there isn’t another as pretty in the valley, but when we first came here folks were not thinking of taking up land—no, indeed. Cattle ranges were what they were after, and they couldn’t abide the settler that put up fences. No; Jake let his chance of taking the place slip, and your father took it up; and that was right; he wasn’t a cattleman, and he needed the land to work. Don’t you fret about

Jake's wanting it. He don't need it, for one thing, for we're real well to do, if I do say it, and it would be a pretty unneighborly thing for him to grudge the place to you now. You see, Jake's ways are different. He makes folks think, often, I make no doubt, that he's set on getting things when he isn't, really. I expect he'd feel quite hurt if you were to lose this place."

"Unless he got it himself," was my silent amendment.

"We could buy the ranch where we are," Mrs. Horton went on, "and I wish Jake was willing to do it; I'm like your father was; I want a home of my own, but Jake says he doesn't like that place as well as he does another that he has in mind."

"What place is that?" asked Jessie.

"I don't know, really, Jake's no hand to talk over business matters with me; no hand at all, and so I don't worry him. I just let him take his own gait." And a very bad gait it was, if she had but known it, poor woman!

No more was said about the land, the remainder of the day passed pleasantly, and it was nearly night-fall when Mrs. Horton again climbed into the wagon-seat and headed the horses toward home. Good-bys had been exchanged when, suddenly, she drew in the restless horses to say: "You tell old Joe, when he comes back, how that fire got started; tell him that he must be more careful, these dry times, how he lets such a lot of dry stuff get lodged against the house." And, with that admonition, she was gone.

CHAPTER VIII

“BEST LAID PLANS”

Joe came home the next day, and his indignation, when Jessie told him of the fire, and of the manner—presumably—in which it originated, was nearly as scorching as the fire itself. Nothing in the whole affair seemed to rouse his wrath to such a pitch as did her recital of the theories that she and Mrs. Horton had evolved to account for the threatened disaster.

“W’at sort of fool talk dat?” he inquired, contemptuously, when Jessie had concluded.

“Why, Joe, the fire must have started in some such way!” Jessie insisted.

“Honey, yo’s done got a forgibbin’ sperrit; yo’ not only forgibs yo’ inimy, like what de Bible say fur ter do, but yo’ eben furgits dat yo’ has one!”

“Oh, Joe! Surely you cannot think that it was the work of an incendiary?”

“Ob a ’cindery? No, hit ain’ dat.”

“What do you think, then, Joe?”

“W’at I t’ink? Some low-down sneak sot hit afire. Dat’s w’at I t’ink. An’ I wouldn’ hab ter hunt long afore I done laid my han’s on him, neider.” Jessie looked so shocked, and so cast down, that, chancing to catch the old man’s eye, I shook my head at him warningly. Joe understood. His beloved master Ralph’s tactics had been those of silence and Joe was willing to follow them to the end. But he muttered scornfully: “’Cindery? Dat a likely idee; w’en I nebber lef’ a heap o’ stuff like dat ag’in’ nobody’s house en all my life! Look like I’d go fur ter doin’ hit now, w’en dish yer house hole my own fambly!”

He seated himself in the corner with a bit of harness that he had brought up to the house to mend, in his hand, but presently he began searching anxiously for some mislaid tool.

“What have you lost, Joe?” I asked.

“W’y I ain’ right shore as I done los’ anyt’ing, chile, but de needle an’ t’read w’at I put in dis cheer, ag’in’ I wanted ’em, ’pear to hab crope away some’ers; likewise dat ar leetle case knife w’at I cuts leather wiv’. Dey’s gone, an’ I doan see dat chile Ralph ’round’ nowhere’s.”

Just at this point the door was pushed a little farther open and a cheerful voice proclaimed: “Here me is, Doe!”

The voice was followed by its owner, little Ralph, but such a curious spectacle the boy presented that the occupants of the room stared at him a moment in amazed silence. Jessie was the first to recover her power of speech and remonstrance:

“Ralph! Oh, what have you been doing, you naughty, naughty boy!”

It was evident that the little trespasser had not realized that his recent occupation had been in any way objectionable. His lips began to quiver, but he stood his ground manfully.

“Me isn’t a notty, notty b’y, Jeppie. Me is a yittle ’orse, an’ ’ese are ’e yittle ’orse’s ley bells.”

“Sleigh bells! Didn’t you know any better than to pull up all of Joe’s cantaloupes and string them on to threads—how you could do it I can’t imagine—to hang around your shoulders?”

“Dey isn’t ’antelopes, Jeppie; dey’s ley bells.”

“How did you do it? Oh, you naughty—”

“Me did it wiv Doe’s little knife an’ Doe’s needle an’ t’read; an’ me hurted me’s han’s, me did.”

The recollection gave him the excuse that he was longing for. The string to one of his odd sets of sleigh-bells broke as he started across the room, with outstretched arms, for Joe, and he left a trail of small, hard, green melons as he ran. "Doe!" he cried, as the old man lifted him tenderly to his breast, "me hurted me han's!" The howl of anguish with which he repeated the statement was partially smothered by reason of the sufferer's face being buried in Joe's neck. "Jeppie say me is notty, notty b'y!" he continued, sobbing.

"Miss Jessie," the old man said, with dignity, looking disapprovingly at his young mistress over the boy's shaking shoulders, "yo' means well, honey; I ain' a doubtin' ob dat, but yo' done got er heap ter learn 'bout managin' chillen. Yo's done hurted pore little Ralph's feelin's mighty bad!"

"His feelings ought to be hurt!" Jessie persisted, indignantly. "A boy who is old enough to do such a piece of mischief as that is old enough to know better. And, Joe, it isn't right for you to encourage him in it."

"Honey, hit ain' likely, now, is hit, dat any one has dish yer pore little feller's good more at heart dan I has, now is hit?"

"No, Joe, it isn't."

"Berry well, den; now yo' listen at me. Ef I had a t'ought ob hit w'en I was a plantin' dem dere little yellor seeds I'd put out a patch on purpose for dis chile ter 'a' had fur a marble quarry, or fur sleigh-bells, or w'atebber he tuck a notion fur. But I didn't t'ink of hit, an' de chile did. Dat's all!"

It was utterly useless to argue against such self-abnegation as this, but Jessie could not forbear saying: "Think of the trouble you have taken with that melon patch. You've scoured the whole valley, high and low, for tin cans to cover the vines when a frost was threatened, and you've spent days in hoeing and weeding them."

"And dere ain' a purtier patch ob melons, er a more promisin' one, in de whole State, ef I does say hit!" Joe declared with pride.

"Don't be too sure of that, Joe. You haven't seen it since Ralph has been over it."

Joe shifted the child's position, so that the tear-stained little white face rested against his own, to which it formed a wonderful and beautiful contrast. "W'at melons dese yer little han's been a-pullin' up ain' no loss t' nobody," he said; "an' I wants de chile t' 'joy hisself."

A subsequent examination of the melon patch established the truth of Joe's words. At the moment, however, the idea that Ralph gathered was that he had done a rather commendable thing than otherwise. "Shall me pull up 'e rest of 'em?" he asked hopefully, snuggling closer to the black face. Joe stole a sheepish look at Jessie, whose eyes were dancing with amusement.

"Not jess yit, wouldn't go fur t' pull 'em, honey, chile. Wait twell dey's growed 'bout as big as er coffee-cup, an' den jess bring yo' little toofies tergedder on de inside o' one of 'em. Yo's et oranges, an' yo's squalled hard w'en dey was gone, 'cause dere wan't no mo' of 'em. But yo' won't look at a orange when yo' kin git a cantaloupe."

"Den me lets 'em drow," Ralph declared magnanimously, and it is but fair to the child to say that he kept his word.

"Come and gather up all your sleigh-bells, then, Ralph," Jessie admonished him.

Climbing down from Joe's lap he set about the clearance, awkwardly enough. The abbreviated skirt of his little dress was about half filled—he had made a kind of bag of it by gathering the folds tightly in one hand while he picked up melons with the other—when there came a knock at the door. Dropping the spoil that he had already secured, Ralph ran across the room to admit the caller, the melons rolling in every direction. Joe glanced at them apprehensively, and then gave his undivided attention to the harness mending.

The visitor who entered the room on Ralph's hospitable invitation was our near neighbor, Caleb Wilson. Mr. Wilson glanced at the array of hard little spheres on the floor and laughed.

"I'll bet a cent you've been up to mischief, youngster," he said, nodding to me as I handed him a chair.

He looked smilingly at Ralph, who retreated to Joe's side, and made no answer.

"Ralph, do you hear Mr. Wilson?" Jessie sternly inquired.

"'Ess; me hears him."

"Why don't you answer him, then?"

"'Tause he didn't ask me nuffin'."

Joe's sombre face lighted up; his white ivories gleamed out suddenly like a flash of sunlight through a storm cloud. To Joe's mind few people had a right to question the doings of a Gordon, of any age or degree, and Mr. Wilson was not one of the favored few. Our genial neighbor laughed.

"That's right, my little man; I didn't. I made a statement, and you seem to be sharp enough already to see the difference."

He had been carrying a covered tin pail in his hand. He now set it on the floor beside his chair, while Jessie, who had it much at heart that her little brother must be properly trained, remarked:

"Ralph has been very naughty."

"He'll come out all right; don't you go to worrying about him, Miss Jessie," Mr. Wilson admonished her, cheerfully. "He's nothing but a baby, anyway," he continued, "but what even a baby can want of all those little green knobs of cantaloupes is more'n I can tell, but seeing 'em calls to my mind a fruit speculation of mine, last summer."

"I thought you were a cattleman?" I interrupted, involuntarily.

Mr. Wilson glanced down at the pail beside his chair. "Well, I am, Leslie, but a cattleman doesn't have to be sensible all the time. I had a kind of spell last summer when I wasn't sensible, and while it was at its height I got hold of a pile of young tomato plants and set 'em out. You see, as everybody else, pretty nigh, is in the cattle business, too, there ain't much fruit raised around here, and so I 'lowed I'd be able to dispose of my tomato crop to good advantage. Along in August the crop was ready to market, and it was a

hummer, no mistake. The construction gang and the engineers were working on the big storage reservoirs out beyond Turtle Shell Buttes then, just as they are now. There's a lot of men employed there and I knew that there was the place to go with my tomatoes."

"What, away out on the plains, beyond the valley? That must be twenty miles away," Jessie remarked, as Mr. Wilson paused to chuckle over some amusing reminiscence.

"It's all of that; maybe more. But you must remember that driving over the plains is like driving over a level floor. Distance doesn't count for much when the roads are always smooth and even. Well; one afternoon Tom and I filled the bottom of the wagon-box with a soft bed of fresh alfalfa hay and then we piled tomatoes in on top of it till they came clean up to the edge of the top bed. Of course if the roads had been rough it ain't likely that even a cattleman would 'a' thought of taking such a load in that way; as it was, I reckon there wasn't a tomato smashed in transit. I didn't get quite as early a start as I'd 'lowed to, so it was just noon when I reached the camp."

"I should have thought that you would lose the way," I said. My mind had conjured up a vivid picture of the far stretches of unfenced plains that lay between our mountain-walled valley and the great water storage system where a single lake already sparkled like a white jewel on the gray waste of plains. "There are wolves, too," I added, suddenly.

"Yes; there are wolves, but they don't eat tomatoes. And, as for losing the road, all that I had to do was to follow it; it stretches out, plain as a white ribbon on a black dress. As I said, it was noon when I reached camp. All hands had struck work and gone to dinner, so I thought I'd wait till they got through before I sprung the subject of tomatoes on them.

"There ain't a tree nor a shrub bigger than a soap weed within a mile of the reservoirs, and as I didn't want to set and hold the horses all the time, I unhitched 'em and tied 'em to the wagon-box; one on each side. I knew that they wouldn't eat the tomatoes, and, as there was plenty of horse feed in camp, I 'lowed to buy their dinner when I run on to some one to buy it of. It

turned out, though, that the horses didn't understand about that; they had a scheme of their own, and they worked it to good advantage.

"I strolled off, and pretty soon I got mighty interested in lookin' at the works; it's a big enterprise, I tell you! I was gone from the wagon a good deal longer than I'd laid out to be, and I don't know as I'd 'a' woke up for an hour or two, but I heard a fellow laughin' over that way and so I went over to see what was goin' on. Well, I found out." Mr. Wilson paused impressively and glanced around at us. Joe was listening with such absorbed attention that his work had slipped unheeded from his hands and Ralph had again secured the harness needle and was awkwardly re-stringing his imitation sleigh bells. "What was it?" I asked.

"Why, you see, I'd plumb forgot about the alfalfa hay, but the horses had remembered, and they nosed through the fruit until they come to it, and they hadn't lost a minute's time, either. When the hay'd given out in one place they'd worked through at another until they struck bed rock again. The whole load was just a mass of tomato jam; the juice was running out of the box in a stream, and the horses were red with it from hoof to forelock. There wasn't a bushel of whole fruit left. I jerked out the tailboard and dumped the mess on the ground, while about forty men stood around just yellin' and hootin' with delight. They got more pleasure out of it than they could possibly 'a' got from eatin' the tomatoes. The cook came out of his little tent alongside the big dining tent, to see what the racket was about, and when he got his eyes on the fruit he was powerful mad. He said he'd 'a' given a dollar and a half a bushel for the load. He wanted me to promise to come with another load the next day, but I'd had enough of fruit raisin'—specially when the horses did the heft of the raisin—I wouldn't 'a' faced that yellin' crowd again for a hundred dollars. No, sir! I come right straight home, and I sent word 'round among the neighbors to come and help themselves to all the tomatoes they could lug home; what they didn't take the frost did, and that was the end of my experiment in fruit raising."

"It was just too bad!" I exclaimed, feeling that I ought to say something sympathetic.

“Oh, I don’t know,” returned our neighbor, in his comfortable way. “It was all my fault. A man’s got to keep his wits about him, no matter what he undertakes to do, and I left mine at home that day. My wife’ll think I’m lost, wits and all, if I stay much longer, that’s a fact.”

He rose to his feet, and, after bidding us a cordial farewell, started for the door. Then the pail on the floor caught his eye to remind him that his intractable wits had again strayed. “Well, I declare for it! I come nigh forgetting what I stopped for. Seems like a good way to come for milk, doesn’t it? We had company come unexpected, and nothing would do Sarah but I must ride over here and ask you for some milk. Condensed milk is good enough for us, but Sarah says it ain’t good enough for company.”

Jessie had already taken the pail and started for the pantry; when she reappeared with it filled, she said, demurely:

“I thought that you said you were a cattleman, Mr. Wilson.”

“Oh, bless you! Don’t you know the old saying about a shoemaker’s wife? Lots of folks that can count their cattle by the thousand head would be glad if they could be sure of as much nice milk and butter as you girls get off your two cows, Miss Jessie. It’s management, you see.”

“You mean want of management, don’t you?” returned Jessie, smiling.

Mr. Wilson’s jolly laugh floated back to us as he went down the walk toward the horse that was waiting for him at the gate, and then I roused myself to observe that Joe was again hunting for his tools. He presently rescued them from Ralph’s destructive little hands, and set to work, only pausing the while to remark:

“I reckons dat ar watah sto’age camp gwine be a ’mighty good place fur to sell we all’s melon crap at.”

CHAPTER IX

AN IMPORTANT ANNOUNCEMENT

The Hortons' place was some five miles below ours, if one followed the main road, but they were often passing the house on their way to and from the little country store and post-office. So it was not surprising that Mrs. Horton should reappear in a few days with a large bundle of sewing of her own for Jessie to do, and the intelligence that she had interviewed several of the neighbors, some of whom had said that they would gladly employ Jessie.

"You are so good, Mrs. Horton," Jessie exclaimed gratefully. "It will be a real help to us if we are able to earn a little in this way."

"Maybe you won't feel so anxious to do it when you see what I've brought," the good woman said, as she proceeded to untie her bulky bundle. "You see," she explained, "Jake nearly tore the coat from his back when he went up to salt those cattle the other night. He seems, from what I can make out, to have had a regular circus with himself, and I'm so busy, what with the housework and being obliged to do all the trading—for Jake never will go to the store if he can get out of it—I've had no time to mend it. I put it right in here with the other things, hoping that you or Leslie wouldn't mind mending it for me."

My very spine seemed to stiffen at the idea of mending the clothing that had been torn while its wearer was making a futile attempt to burn our house, but Jessie, knowing nothing of all this, and naturally trustful, replied tranquilly:

"Certainly, we will, Mrs. Horton, if you think we can do it well enough."

"Oh! anybody can do it well enough. If I had my way with it I'd put it into the stove and have done with it," she announced frankly. "It's seen its best

days. But it appears to me that the longer Jake wears a thing the better he likes it. What a figure he would have made in the days of Methuselah, to be sure!”

She shook the coat out and laid it on the table. Jessie turned it over, examining some gaping rents, evidently of recent make. Finally,

“Here’s a button gone,” she said. I felt my face grow white, while Mrs. Horton explained placidly:

“Yes; and that’s a pity, for the buttons are worth more than the coat. They’re quite curious, if you’ll notice. I never saw any like them before he got that coat. I think myself that that little brass leaf stuck on to the front of them looks fussy on a man’s coat buttons, but Jake thinks they’re so tasty. He was wonderfully put out when he found that he’d lost one of them. The land sake, Leslie!” she broke off suddenly as her glance fell on me. “Are you sick, child? Why, you are as pale as a sheet! Isn’t she, Jessie?”

Jessie, glancing up from the tattered coat, in alarm, confirmed this statement, and they were both anxiously inquiring if I felt sick, and how long since the attack came on, and if I hadn’t better go right to bed, when a diversion was created by the entrance of Joe. Joe had the weekly county paper open in his hand; he could read a little in a halting and uncertain fashion, but did not often trouble himself to do it. “There must have been something of special interest to him in this issue,” I thought, and was not left long in doubt as to what it was.

“Heah we is!” he exclaimed, gleefully, extending the paper toward Jessie; “heah’s our third and las’ notice ob provin’ up!”

“Oh, is it there?” cried Jessie, seizing the paper, and running her eye quickly over the item indicated by Joe’s stubby black finger. Mrs. Horton, brushing her husband’s cherished coat from the chair where Jessie had dropped it to the floor, seated herself, leaning forward in anxious attention, and even Ralph, abandoning a furtive attempt to put the cat in the water-pail, came and leaned against her knees, while Jessie read aloud:

“Before the United States Land Office at Fairplay, Chico County, on August 30th, 18—, will appear, viz.: Ralph C. Gordon, who enters Homestead claim, No. 4571, for the W. 1-2, W. 1-4, Section 34, and S. 1-2 Section 33, Township 22 S., Range 68 W.

“Ralph C. Gordon names the following witnesses to prove his continuous residence upon, and cultivation of said land, viz.:

“W. H. Wright, S. H. Stearns, C. L. Wilson, all of Chico County.

“W. W. BAYARD, Register.”

We all listened to the reading with breathless interest. When it was concluded Mrs. Horton observed: “Wright, Stearns, and Wilson, they’re your witnesses, are they?”

“Yes; father selected them, you know,” Jessie replied.

“They’re good men, all of them, but, I declare, I wish that your pa had thought to put Jake on, too! It would have given me a good excuse to go down with you when the day comes. Not but what I mean to go anyhow, for that matter. Well, now, your date is set. It wasn’t set before, was it?”

“No; the other notices read: ‘On a day to be hereinafter named, etc.’”

“August 30th,” Mrs. Horton repeated, musingly; “let’s see, this is the 15th. You’ve got two weeks and a day yet to wait. It don’t give a great amount of time to get money in, but it’s a relief to know when it’s coming off, isn’t it?”

Joe had been sitting in his corner, saying nothing, but, just at this point, I saw him roll his eyes scornfully at our neighbor, and wondered if it could be that the old man was jealous of her openly expressed interest in the little family to which he laid prior claim. “Yes,” Jessie said, replying to Mrs. Horton’s question: “It is a great relief, and, after all, we’ve done about all that we can to make ready for it.”

“I’m not doubting that, still, I wish, now that we’ve thought of it, that you did have time to earn a little more by sewing. How much are the witnesses’ fees?”

“Six dollars each; it will take eighteen dollars for that alone,” Jessie told her.

“Eighteen dollars! and I don’t suppose you can have much more than that on hand!” Mrs. Horton’s face lengthened. “I wish I had it to lend you,” she remarked, at last. “You could pay me in sewing; but Jake—”

We had heard of Mr. Horton’s views on the money question. He always ran bills at the store because, he said, a woman couldn’t be trusted with ready cash. “Give a woman her head and she’ll spend all a man has on knick-knacks!” was an observation with which even his chance acquaintances were unduly familiar. How often, then, must his poor wife have heard it.

Pitying her halting effort to give a good excuse for not having the sum needed—when they were so wealthy—and still loyally shield her tyrant, I said: “I’m sure the witnesses will not be at all hard on us; they will be willing to wait a little if necessary, don’t you think so, Jessie?”

But before Jessie could reply, Joe interposed: “Mr. Wilson, he done say he goin’ gib me a chance for to wuck for him w’en I wants to; mebbe I goin’ want ter wuck out dem witness fee; no tellin’.”

This was ambiguous, but we well understood that the old man did not like to talk of business matters before strangers—as he regarded every one outside the immediate family.

“Your first notice came out along in the spring, didn’t it?” Mrs. Horton inquired.

“In April,” Jessie replied, and was silent, a dreamy look in her eyes, while I vividly recalled the stormy day when father came back from a visit to the post-office with the paper containing the first notice in his hand. I heard the April rain beating against the window panes while father told us children—for Jessie and I were children then; it was so long ago, measured by heart-beats, oh! so long ago—that our notice was out and the witnesses named.

Joe broke a little silence by remarking: "Dere's ten acres ob as fine w'eat as ebber growed out doahs, a waitin' to be cut an' threshed atwixt dat day an' dis."

"Ten acres!" Mrs. Horton echoed. "What a help that'll be to you! I do hope you'll get it taken care of all right."

"I'se goin' tek keer ob hit; yo' needn't fur to fret about dat. I'se goin' at hit, hammer an' tongs, day arter to-morry mornin'."

"Why not to-morrow?" Jessie inquired eagerly; "Leslie and I can help you."

"I reckons dere can't nobody help me much w'en I'se done got a broken reaper to wuck with."

"Oh, that's too bad! How long will it take to get it fixed?" Jessie asked.

"I'se done get hit fixed to-morry, sure, den—we see."

"Leslie and I will help you," Jessie repeated. "The wheat is worth more than any sewing that we can do. If we can get it marketed it will pay up all our bills, nearly, won't it, Joe?"

"I spec' maybe hit will, honey," Joe returned, grinning complacently. "Doan you chillen fret about nothin'," he continued earnestly. "Dem bills all goin' be paid up, clean to de handle."

I confess that I felt far less sanguine than he appeared to be on that point.

"Isn't it a mercy that our corn and wheat have been let to grow in peace this year?" I said, after Mrs. Horton had taken her leave. "It's the first year since we have been here that such a thing has happened."

"I hope it will be the last year that we will have to try raising a crop without a fence," Jessie replied. For our fence building had stopped abruptly with the digging of some post holes on that day in April. Pumping the water out of the mine had been an expensive piece of work, and all the valley people who had lost relatives in the accident, many who had not, indeed, had come gallantly to the Gray Eagle's aid when that task was undertaken. Because of the aid that we had furnished, our fence was still unbuilt.

CHAPTER X

RALPH AND I GO BLACKBERRYING

“Chillen’s, dere’s lots ob blackberries on de hill above de w’eat fiel’,” Joe stopped to remark, as he was about starting for the blacksmith shop with the reaper, the next morning.

“They’ll have to stay there as far as I’m concerned,” returned Jessie, who was busily engaged in sewing up the gaping rents in Mr. Horton’s coat; “I haven’t time to gather them.”

“Me do det ’em!” exclaimed Ralph, starting up from the floor, where he had been vainly trying to fasten some paper boots on Guard’s paws. Guard did not object, but, when a boot was, after much trouble, partially secured, he took it in his mouth and calmly pulled it off. “Me do dit ’ackburries yite now,” reiterated Ralph.

“No,” said Jessie, “Ralphie can’t go.”

Thus summarily enjoined, Ralph began to roar, as a matter of course. Joe, who had already started to climb into the reaper seat, came back and looked in at the door, the better to look reproachfully at us.

“I doan like dish yer sperrit ob money-gettin’,” he declared, frowning. “Denyin’ a little chile all his innercent pleasures fo’ de sake ob scrapin’ a few censes togedder!” he exclaimed severely.

Jessie laughed, with a suspicious little catch in her voice; it was hard to be misunderstood, if only by blundering, faithful old Joe. “I really must not spare time to go with him, Joe,” she said in self-defense, “but perhaps Leslie had better go. It will do you good, dear,” she added, mindful of my inexplicable paleness on the preceding day.

“I don’t need being done good to, Jessie, but evidently Ralph does, so I’ll take him out,” I said, while old Joe nodded approvingly.

“Dat’s right; dat’s right, honey, chile,” he declared, and again betook himself to the waiting team and reaper. Freed from the danger of being compelled to wear boots, Guard had gone outside and placed himself by the doorstep, where he was, to all appearances, peacefully dozing when Joe started. But, before the team had turned the shoulder of the nearest hill, he arose, stretched himself lazily, and trotted slowly down the road after them.

Soon after Joe’s departure, Ralph and I, baskets in hand, started for the blackberry patch. Ralph’s basket was a little toy candy pail, which he assured Jessie he should bring to her “filled way up on ’e top wiv burries.” The blackberry vines grew along the upper edge of the wheat field. We stopped when fairly above the field to admire the square of yellow grain spread out below us, the bended heads of wheat nodding and swaying in the light breeze, and the tall stalks now and then rippling in soft, undulating waves, as if a gentle wind had moved over a sea of gold. Next to the wheat stood the corn in file after file, the leaves rustling and the tasseled heads held bravely aloft. Green uniformed soldiers of peace and plenty they seemed to me, bidding defiance to want and famine. I might better say that I stopped to admire the grain fields, for Ralph had no æsthetic enthusiasm. His one desire was to reach the “’ackburry” patch and begin stuffing them into that little red mouth of his.

“Tum on, ’Essie,” he said, tugging at my hand impatiently as I lingered. “Me’s so hungry.”

“Yes; it must be half an hour at least since you had breakfast,” I replied unfeelingly, but turning my back on the fields nevertheless and hastening on.

There were, as Joe had said, lots of blackberries, as we found on reaching the spot. I helped Ralph to fill his little bucket and he trudged along at my side, eating steadfastly, but sometimes suspending even that fascinating employment to cling to my skirts and shrink closer to me as we came upon a particularly luxuriant cluster of vines. They were so tall and arched so

high above his sunny little head, and the prickly vines extended away and away in vistas that must have seemed so endless to his small stature that it was no wonder if he felt somewhat overawed at times.

We were well up on the hillside, and the fields below us were hidden from our view, when he suddenly announced that it was time to go home.

“Oh, no, Ralph,” I said, “see, sister hasn’t got her basket nearly full yet. Here’s some nice large berries; let me fill your bucket again.”

“No; ’eys sour. Me don’t like ’ackburries any more!”

“I don’t wonder!” I thought, recalling the number of times that I had filled the small bucket, and he had emptied it, but I remained discreetly silent. The little fellow had been humored so much since father’s death—and, perhaps, before—that the moment he was opposed he cried, so now he began to whimper forlornly: “Me ’ants to do home, ’Essie!”

“What for, dear?”

“Me’s s’eeepy.”

That appeared very probable, too, but I disliked to return with a half-filled bucket when the berries were so abundant and fairly begging to be picked. Looking around, inquiringly, I saw, under a clump of bushes at some little distance, an inviting carpet of cool green grass. Taking the child in my arms I carried him over and laid him down on the grass, putting my apron under his head for a pillow. “There, Ralph, isn’t that nice? I’ll stay right close by you and you can sleep here in the bushes like the little birds.”

Ralph smiled sleepily, nestling his head closer into the impromptu pillow. “’Ess,” he murmured drowsily, “’is nice; now me is a yittle yay bird.” He meant no reflection on himself in the comparison. His acquaintance with jay birds was limited, but he recognized them when he met them, and considered them very good fellows. The cool breeze fanned him; the leaves rustled, their airy shadows playing over his face, and Ralph was sound asleep almost as soon as his drowsy eyes closed. I watched him for a moment and then hastened back to my chosen corner of the blackberry patch and resumed picking.

Unconsciously, as I worked, I pressed in among the tall vines until at length the recumbent little figure on the grass was quite hidden from sight. That did not really matter, for I was easily within call. No sound coming from that quarter I gradually became more and more absorbed in my task. It would be very nice, I thought, to carry a brimming bucket full of berries down to the house on my return. Once or twice I suspended operations to stand still and listen under the startled impression that I had heard some unusual noise. Convinced each time that there was nothing; that I was mistaken, I continued picking, but I remember that I did glance up once at the cloudless sky, wondering, in an idle way, why I should have heard thunder.

The bucket was quite full and I was backing carefully out from a thick cluster of canes, having a respectful regard for their sharp thorns, when, suddenly, the air was rent with a wild shriek, coming from the direction of the grassy plot where I had left Ralph. Shriek after shriek followed. I had heard those high piercing notes too many times to be left in an instant's doubt; the shrieks were his. Tearing my way out of the bushes, regardless now of thorns and scratches, I bounded into the open. The scene that presented itself, when I could get a view of what was going on, almost took away my breath. The entire hillside, and the fields below, were literally swarming with cattle. Not the tame domestic herds of peaceful Eastern meadows, but the wild, long-horned, compactly built, active, and peculiarly vicious beasts known in Western parlance as "range stock."

Ralph had been awakened, none too soon, perhaps by the trampling of hoofs, perhaps by the low bellowing that I had absently attributed to unseen thunder clouds. However it was, he had started up, as he afterward sobbingly expressed it, "To make 'e bad tows do away, so 'ey not hurt 'Essie."

In pursuance of this design he had advanced toward the foremost of them, shouting and waving his big straw hat in one hand, while attempting to wave my apron in the other. The apron was long and he was short, and the effort to wave it in self-defense resulted in his becoming wound up in it, falling, and rolling bodily down the hillside, in the face of some half dozen wild-eyed steers, who were coming up it. It was then that he screamed, and

I appeared on the scene at the very instant that one of the steers, awakening from what appeared to be a momentary trance of surprise, advanced toward the screaming little bundle, bellowing and pawing the ground. The immense black head, crowned with a pair of great horns, curving like a Turkish scimitar, and with a point as keen, was lowered; the savage animal was on the very verge of charging on the helpless child, when my screams drew his attention toward me. He paused, lifted his head, stared at me, and, retreating a step or two, began pawing the ground again, at the same time sending forth a hoarse challenge which seemed to proclaim his readiness to engage me and all my race in a hand to horn conflict if need be. His bit of bovine bravado had given me time to reach Ralph. I caught him up and thrust him behind me. Clutching my skirt tightly, he brought his scared little face into view for an instant to exhort me. "Don't 'e be 'fraid, Essie, me knock 'e pie out o' 'at bad tow if her touches 'oo!" Then he shrank back, creeping under the friendly shelter of the blackberry canes until he was, as I afterward found, quite lost to view. It all took place so quickly that I had scarcely time to realize the danger before I was called upon to act. If I had turned to run, in the first instance, the great beast would have been upon me, and, in less time than it takes to tell it, I should have been ground and trampled out of human semblance. As I stood my ground he hesitated, challenged again, and, as others of the herd started toward him, charged.

In spite of the signal service that it rendered me, I cannot conscientiously recommend a twelve-quart tin bucket, filled with blackberries, as a reliable weapon of defense. There would be only about one chance in a hundred, I should think, of its proving useful in just the way that mine did. When the steer charged I was, in fact, quite wild with terror; it was instinct alone that prompted me to attempt a defensive use of any article in my hands, and if that article had been a feather duster I should have made the same use of it. The lowered head and sweeping horns were within six feet of me when I threw blackberries, pail and all, full in the creature's face, at the same time giving frantic voice to the wild, high-pitched, long-drawn cry that the cow-boys use in rounding up their cattle. The blackberries did not trouble him; what did trouble him was that, by one chance in a hundred, the handle or bail of the bucket caught on the tip of one horn, and, as feeling it and, perhaps, bewildered by the rattle of tinware, the steer threw up his head, the

bucket slid down the horn, lodging against the skull, and wholly obscuring one eye. Undaunted by this mishap the steer backed off, lifting his head high, shaking it and bellowing; then suddenly he lowered it, grinding head and horns into the ground, with the evident intention of pulverizing the strange contrivance rattling about his forehead. The attempt resulted in his getting his nose into the trap where only a horn had been before. Maddened with fright he took to his heels, careering down the hillside, and through the fields at top speed, followed by all the herd.

I had retreated, of course, the instant that I had discharged the bucket at my foe, and was cowering under the canes beside Ralph when the finale came.

CHAPTER XI

THE CATTLE BRAND

We were saved, but my heart swelled with grief and anger, as, creeping out from our shelter, I stood up and looked down on what had so lately been a field of waving grain, ripe for the harvest.

Torn, trampled, beaten into the earth, scarcely a stalk was left standing, and the corn field was in no better shape. Poor little Ralph, with a dim, childish comprehension of the calamity that had befallen us, was crying bitterly. Lifting him to my shoulder I started toward the house, the desolated fields were out of sight behind us, when Jessie came hurrying up the trail.

“What has happened?” she inquired anxiously. “I thought I heard Ralph scream, and I am sure I heard you giving the round-up call; I thought I heard cattle, too.” She took Ralph, who was still crying, from my shoulder and carried him in her arms. “Don’t cry, precious,” she said. “Tell sister what has frightened you?”

“’Essie frowed all ’e ’ackburries at ’e bad tow, an’ ’e bad tows walked all over our pitty torn ’talks, so ’ey don’t ’tan’ up no more,” he sobbed incoherently. Jessie looked at me with dilating eyes. We were by this time entering the house, where I was not surprised to find Mrs. Horton again awaiting us, for I had already observed the Horton equipage in the front yard.

“Leslie!” Jessie was exclaiming, as we crossed the threshold. “Don’t tell me that the cattle have been in our fields; it isn’t possible!”

“I guess it is,” I said recklessly, unreasonably resenting our neighbor’s placid face. “If you find it hard to believe, just go and look for yourself. There isn’t a stalk of grain left standing,” and I proceeded to give the details of my late adventure and experience.

Jessie seemed like one dazed. She sank into a chair, holding Ralph, who was willing, for once, to be held tightly in her arms, and spoke never a word.

“What I want to know,” cried Mrs. Horton, her face fiery with indignation, “is, whose cattle were they? It’s a low shameful, mean, trick; I don’t care who did it! Oh, to think of all you’ve had to suffer, and of all that those fields of grain stood for to you, and then to think—I don’t feel as if I could hear it!” she broke off, abruptly, her voice choking. I, avoiding her eyes, looked out of the window through which I saw, indeed, only the trampled fields, invisible to any but the mind’s eye from that window.

“I hope you can collect damages,” Mrs. Horton broke out again; “and I guess you can if you can prove the ownership of the cattle. Did you notice the brand?”

Feigning not to have heard the question, I still gazed silently out of the window, but Mrs. Horton was not to be put off so easily; she repeated the inquiry, her voice suddenly grown sharp with anxiety. “Did you notice the brand, Leslie?”

“Yes.”

“Well?”

She would not be put off, and, for a wicked moment, my heart was hot against all that bore her husband’s name.

“The brand was, ‘R, half-circle, A,’” I said, and bolted out of the house to hide myself and my boiling indignation in the hayloft, but, as I went, I heard Mrs. Horton sobbing out an explanation to Jessie:

“Jake started out early this morning, long before sun-up, it was, to drive the cattle from the upper range to the north pasture—he said. I told him I was afraid that he couldn’t handle such a big bunch alone—there’s nigh three thousand of them, if there’s a dozen—but he thought that he could, and they must have got away from him after all!”

Jessie made no comment, but lying at full length in the seclusion of the hayloft, I thought of the relative positions of the upper range, where Mr. Horton's cattle usually grazed, and the north pasture, and knew that, in order to reach our fields, the herd must have "strayed" at least five miles out of their proper course.

I was still lying in the hayloft when, as my ears informed me, Mrs. Horton came out, climbed soberly into her wagon, and drove away. With my eyes shut I still seemed to see her drooping head and shamed face. I had so far recovered my reason by this time that I could feel for her; she believed in her husband. He would soon be able to convince her that what had occurred was due to an unavoidable accident; the cattle had broken away from their one herder, and she would expend her indignation on the fact that he had attempted to drive them alone, and—she would try to make him pay damages. She would fail. One did not need an intimate acquaintance with her husband to know that.

The sound of approaching wheels aroused me from my unhappy meditations. Joe was returning. I sprang up, slid down the ladder, and went out into the yard to meet him. Mr. Wilson, the ranchman, who was to be one of our witnesses, was with him. Joe had found him at the blacksmith shop, and, as his homeward route led past our house, had invited him to ride with him. The two were talking earnestly as the horses stopped before the barn door. Mr. Wilson had been away from home for some weeks, and we had been somewhat worried lest he should not return in time for our proving up. Evidently Joe had just been telling him this, for, as I came near them, he was saying in his hearty way: "No, sir; your young ladies needn't 'a' been a mite worried for fear of my not getting around in time. I was bound to come when they wanted me, and wife's been keeping me posted about their notice. I told her I'd leave whatever I had on hand and come in time, whether or no." He was a large man. Joe had resigned the reaper seat to him and had ridden home himself standing on one of the cross-bars. He was slowly and cautiously backing down from the high seat as I stopped beside the reaper. When his feet were fairly on the ground he turned to greet me: "Why, what's been happening to you, little girl? Joe, you didn't tell me that one of your young ladies was sick!"

Joe had begun unharnessing the team; he was tying up the lines, but dropped them as Mr. Wilson spoke, and came around to my side; just then, too, Jessie joined us; she stood with one hand on old Joe's shoulder, while I again told of the incursion of cattle on our fields. I think that she feared some terrible outburst of rage from the old man who had toiled so faithfully in those fields, and had taken such honest pride in the rich promise of an abundant harvest. If so, her fears were groundless. Joe's sole remark, as he went on with the work of caring for the horses, was:

"Mought jess as well a' spared de trouble ob gettin' de reaper fixed, hit 'pears."

Instinctively, I felt that he was so sure, he understood so well by whose agency the ruin had been wrought that he disdained to ask a question. What had taken place was simply a thing to be borne, like martyrdom.

But Mr. Wilson was not committed to a policy of silence; he had a good deal to say, and what he said was directly to the point.

"Crops plumb ruined, you say, Miss Leslie?"

"Oh, yes; entirely; I think the whole herd must have been there; not feeding quietly so much as tearing through—"

"You say the whole herd? Know of any herd, now, that you could spot?"

"It was Mr. Horton's herd; we all know his brand."

"R, half-circle, A; yes. Now, young folks,"—he paused to roll his eyes impressively from one to the other of us—"I'll tell you what you want to do about this affair. You want to keep still; to keep still!"

"And be ruined!" cried Jessie, her eyes flashing.

"And not be ruined! There's where the fun's going to come in, Miss Jessie. 'Spose you go to work now to try to prove malicious mischief on the part of Horton in driving his cattle into your fields, for that's what he's deliberately done, no doubt of that, why all he's got to do is to take his stand on the law and say that you had no business to sow grain on the range and expect cattle

to keep out of it; you've no title to this place, and your grain fields are not even fenced. Horton's got the law on his side, you may be sure of that, but he hasn't got the right, and some day he'll find it out; he'll find it out to his cost, no matter what the law says, now you mark my words!"

"There hasn't been a year since we've been here that Mr. Horton's cattle—always Mr. Horton's cattle—haven't destroyed our crops," Jessie said, her voice trembling.

"And it has always been an 'accident,'" I added, "but I did think that maybe there would be no such accident this year; it couldn't have occurred at a time when it would be more effective."

"No, you may count on that; that's just the reason why it hasn't taken place before this. Now, the rest of us folks around here don't propose to see you two girls and that purty little orphan boy drove off of this place that you've tried so hard and so bravely to keep, but we've all got to sing low until you get your title. Then, Mr. Man, let that—well, I won't call names—just let Mr. Horton try his little games and he'll find that there are laws that will fit his case. The reasons that that man hasn't landed in the penitentiary before this are, first, that the Lord was mighty lenient toward him when he went a courtin' and induced that good woman to become his wife; second, he's so sly. There's never been a time yet when a body could produce direct, damaging evidence against him. It's all 'accident.'"

I thought of that small shining object that I had picked up in the rubbish the morning after the fire was set under our window. It would have been hard, indeed, to produce more damaging or convincing evidence than that, but Mr. Wilson had just been enjoining a strict silence in regard to Mr. Horton and his works upon us, so I kept the thought to myself.

"Your father was a good man," Mr. Wilson continued. "He had one big advantage over Horton from the start—he was able to hold both his tongue and his temper even when Horton, by his acts, kept him so short-handed that he was unable to build the fence that would have saved his crops and so helped to defeat Horton. The fencing will cost about three hundred dollars. When I sold off that big bunch of steers, two years ago, I offered to lend

him money to fence his claim, but, no sir, he wouldn't touch a cent—seemed to have a kind of prejudice agin' borrowing money, even of me. Another thing about Horton is," went on our friend, who seemed to have made an exhaustive study of his subject, "that he must brag about what he's going to do before he does it. That's how every one knows, in reason, that he is the one who has made you all this trouble. He hasn't scrupled to say that he's bound to have this place, by hook or by crook, whatever happens—and so he looks out for it that things happen. But there is one thing that I will say for him, and it's kind of curious, too—let him once be fairly and squarely beaten, so that there's no way but for him to own up to it, and you needn't ask for a better or more faithful friend than he is; but he's like—" Mr. Wilson lifted his hat and scratched his grizzled head, casting about for a simile; his eye fell on Guard. "Why, he's like a bull-dog, you might say—he'll hang on until beaten, and then he's yours to command ever after."

Jessie was greatly cast down; she looked at Guard and accepted the simile mournfully.

"There's no hope of our ever being able to do anything that will make him admit himself beaten," she said, "so, I suppose, we must resign ourselves to enduring his enmity as best we can."

"I ain't calculating on his keeping up this racket after you get your title," Mr. Wilson declared, hopefully; "he's dead set on getting this land now. He's made his brags that he would have it, but when it's once passed out of his reach, he'll kind of tame down, I'm thinking. Now, about your fences," he continued, with a sudden, cheery change of tone: "they're going up. Don't you worry about the loss of your crop, but Joe, you just whirl in and go to plowing those fields again for fall wheat; nothing better for raising money on than fall wheat; and by the time it's sprouted, we'll have it fenced, snug and tight; we will, if I have to mortgage my farm to do it! But I shan't have to do that. I can raise the money for you somehow."

Jessie was sitting on the wagon-tongue. She looked gratefully up into the ranchman's weather-beaten face.

“I think you’re just awful good, Mr. Wilson, but—would it be right for us to let you lend us the money when we know how opposed poor father was to anything of that kind?”

This was a vital question. I leaned forward, awaiting the answer, while Jessie listened with parted lips, as she might if our good neighbor had been some ancient oracle, whose lightest word was law. Mr. Wilson regarded us steadfastly for a moment, then scratched his head again.

“Well,” he said slowly, at last, “I s’pose, setting aside all questions of circumstances, that when the Bible said: ‘Honor thy father and thy mother in the days of thy youth,’ it meant to reach clean down to the things that your parents wanted you to do—or not to do—whether they was alive to see it done or not. I do s’pose that that was what it means, and your father he was sure set against borrowing.”

Stooping, he picked up a straw, and began biting it meditatively, while we two pondered his plain interpretation of a very plain text. Suddenly he dropped the straw, and looked at us with a brightening face:

“Why, say, you can give a mortgage on your own land, when you get your title, and your father, nor the Bible, nor nobody else, would say there was anything wrong in your neighbor’s helping you out, if so be that you couldn’t lift the mortgage when the time come. Not that there’ll be any danger of that, with the price that wheat always brings in this grazing country.”

He went away shortly after, leaving us much comforted. Joe had housed the un-needed reaper in the shed and was examining the plow before he had been gone an hour. Some bolts needed tightening and Jessie offered her services as assistant.

“We’ll get ahead of Mr. Horton yet!” she exclaimed, hammering away at the head of the bolt that she was manipulating, under Joe’s direction, as vigorously as though it might have been the head of the gentleman in question.

CHAPTER XII

ON THE TRAIL OF A WILDCAT

Joe went at the plowing the next morning and kept at it with dogged perseverance for several days. Jessie and I, busy with the sewing, at first paid little attention to him, but after a few days the look of settled exasperation on his sable countenance, as he returned to the house at the close of his day's work, drew my attention.

"Joe," I said to him one morning, as he was about starting for the field, "what is the matter? You look discouraged."

"I ain' discouraged, so my looks is deceivin', den; but I is kine o' wore out in my patience."

"Why; what about?"

"Hit's dat 'ar Frank horse; nothin' gwine ter do him, but he mus' stop in de furrer, ebbery few ya'ahds, an' tun aroun' in de ha'ness ter look at me. 'Pears like he can' be satisfy dat I knows my own business, but he's got to obersee hit. Hit done gets mighty worrisome afore de day's out," he concluded with a heavy sigh.

"Why don't you whip him for it?" demanded Jessie indignantly.

"W'ip nuffin'! Hes a saddle hoss; he's nebber been call' on fer to do such wuck afore, an' he doan know what hit means."

"I guess if he attended to his business he'd find out in time," Jessie insisted. But Frank, whatever other faults he had, had none under the saddle; he was, moreover, old Joe's especial pet. One of the work horses had died during the preceding winter, which was the reason that this one was called upon to perform labor that he evidently regarded with distrust, if not active disapproval.

So now the old man replied to Jessie's observation with unusual sharpness:

"De whole worl' is plum' full ob plow hosses, so fur's I kin see. Yo' done meets 'em on de road, and in de chu'ch and de town meetin's, and on de ranches; yes, sir; yo' kin fine a plow hoss twenty times a day where yo' meets up wid a saddle hoss once in six mont's w'at is a saddle hoss, and not a saw-hoss wif a bridle on. Ef somebody's got fer to poun' dat Frank fer to make him drag a plow aroun', hit'll be somebody odder dan me w'at does hit! I done cut dem wicked ole clumsy blinders, w'at is a relict ob ba'barism, ef dere ebber was one, offen his bridle, so's 't dem bright eyes ob his'n kin see w'ats goin' on aroun' him, an' now I ain' gwine spile a good saddle hoss ter make a poor plow hoss. Hit's too much like tryin' ter make a eagle inter a tame ole goose," the old man concluded soberly.

"Well, then, I suppose we'll have to give up the fall plowing, just on account of Frank's whims!" Jessie retorted, nettled.

"No," Joe returned patiently; "I'se done gwine ter keep at hit, we's get hit done somehow; if not dis year, den de nex'. I 'clar fur hit, sometimes I done been tempted fur t' hitch one ob de cow beasts up along o' Bill an' tryin' de plowin' dat way."

"Isn't there some way of making Frank keep straight without whipping him?" I asked, my sympathies being about equally divided between man and horse.

"Oh, yes! I done thought a hun'nerd times dat ef dere was only some small, active boy w'at would ride him whilst I—"

I sprang to my feet, tossing aside the pieces of gingham that were destined to form a new shirt for Mr. Horton: "Here am I, Joe, take me!"

"You!" Joe's mild eyes looked me over, and gleamed approvingly. "You is little, you is active, an' yo' has de bravest heart, and de unselfishest sperrit—" he said, half soliloquizing, until I interposed, laughingly:

"Come, now! Stop calling me names and say that I'll do!"

“Dat yo’ will, honey, chile, but I nebber thought ob askin’ yo’ to do sech wuck as dat! Hit ain’ fittin’ nohow!”

“Fitting! Anything is fitting that is honest, and will help us out, Joe. Still, I am rather glad that the fields are quite out of sight from the road.”

“Dat’s w’at dey is. Come on, den. Frank gwine wuck like a hero, now, ’cause he done think hit’s saddle wuck w’at he’s a doin’.”

“And I’ll work all the harder at the sewing,” Jessie said, smiling approval of this novel arrangement, and hastily rescuing Mr. Horton’s unfinished shirt from Guard, who had been trying to utilize it for a bed. “There, now, see that!” she added, looking at me reproachfully. “How could you be so careless, Leslie? Guard has been lying on Mr. Horton’s new shirt!”

“It is new, and Mr. Horton has never worn it, so I don’t think it will contaminate Guard,” I retorted, perversely, as I turned to follow Joe, who had already started for the fields.

With me perched upon his back, the long, awkward, pulling lines discarded, and his movements directed by a gentle touch of the bridle reins against the side of his neck, Frank worked, as Joe had said he would, like a hero. The other horse, being of a meek and quiet spirit, had made no trouble from the outset; he was content to follow Frank’s lead, so we got on famously with the plowing from the day that I was installed as postillion.

“I always supposed that plowing was such a monotonous kind of business,” I remarked to Joe one day, taking advantage of the opportunity offered by his stopping the team to wipe away the perspiration that was streaming down my face. For the day was very warm, and we had been working steadily.

“If mon’tonus means hot, honey chile, I reckons yo’s right,” responded Joe. “Yo’s purty face is a sight to behole; red as a turkey cock’s comb, hit is, an’ dat streaked wif dirt dat dey doan nuffin’ show natteral but yo’ eyes.”

“One good thing, Joe, I can’t look any dirtier than I feel,” I replied wearily, and with a longing glance toward the river that rippled silver-white and cool at the foot of the hill beneath us. Joe saw the glance.



WE GOT ON FAMOUSLY WITH THE PLOWING
(Page [150](#))

“Hol’ on, honey,” he exclaimed, as I was about starting the team again. “Dere’s de lines looped up on the back band; I’ll jess run ’em out an’ finish up dish yer bit alone.”

“Do you think you can?” I asked, wavering between a longing to rest and my sense of duty.

“T’ink I kin? Dat’s good, now! Yo’ run along down to de ribber an’ hab a good paddle afore hit gits too late.”

Accordingly I slid off of Frank’s back while Joe, gathering in the slack of the lines, clucked encouragingly to him to go on. Instead of doing that the

horse wheeled around in the furrow until he had brought my retreating figure into view, then stopped and gazed inquiringly after me.

“Joe,” I called back, halting, “maybe I’d better not leave.”

“Yo’ jess run right erlong, Miss Leslie, honey; dis hoss gwine ter go all right jess soon’s he make up he mine whar yo’ is gwine.”

Glancing back again presently, I found that Joe was right. Frank was working with promising sedateness.

It was deliciously cool down underneath the shadow of the cliff, on the banks of the shallow, bright river. Guard had followed me from the field; he, too, enjoyed the cool water and proceeded to make the most of it. After I had bathed my hot face and hands I sat on the bank and watched him as he splashed about, making sudden, futile darts at the tiny fish that swarmed around him when he was quiet, and went scurrying away like chaff before the wind, the instant that he moved. I had just risen to my feet, intending to start to the house, when Guard suddenly sprang out of the water with a growl. At the same instant the direful squawking of a frightened chicken broke on my ears. The squawking, close at hand at first, receded rapidly. Evidently some animal had caught one of our flock of poultry and was making off with its prize.

There was a wildness of rocks and gnarled cedar trees on the steep mountain slope above us, just beyond the bend in the river, and toward this wild quarter, judging by the outcries—fast lessening in the distance—the animal, whatever it might be, was bearing its prey. I was drenched with a shower of water drops as Guard shot past me, taking the trail with an eager yelp, while I, no less eager, and with as little reflection, ran after him. The dog had cleared the underbrush on the river bank, as I rushed out, and was racing across the little interval, or clear space between the river bank and the first jumble of rocks where the abrupt rise of the mountain slope began. Just in front of him, so close it seemed the next leap would surely enable him to seize the creature, glided, rather than ran, so swift and stealthy was the motion, some large animal, bearing a white chicken in its mouth. A tiny

trail of white feathers drifted backward as the animal ran, while the helpless white wings beat the air frantically on either side of the unyielding jaws.

The poor chick might be badly hurt, but it could still squawk and struggle. Indignation gave me renewed strength. I ran forward, shouting, “Sic him, Guard, sic him!” and the next instant my foot caught under a projecting root and I fell headlong to the ground. It really seemed for a blank space as if my fall must have jarred the earth. There was a whirling dance of stars all about my head; the ground rolled and heaved underneath me; sky, earth, and trees swam together, joining that whirling dance of stars. It must have been a full minute before I was able to sit up and weakly wonder what had happened. It all came back to me as a cold, moist nose touched my hand and a sympathetic whimper broke the silence. I turned on Guard reproachfully.

“Why did you leave that thing to come back to me, sir? You could have caught it if you had kept right on after it, and you might have known I’d get along all right without your help. Now, do you go and find it, sir!” and I pointed imperatively, if rather vaguely, towards the jumble of rocks. The chicken’s cries had ceased; there was now nothing to guide the dog, even if he understood, which I, having great faith in his intelligence, believed he did. He ran along the trail for a few yards, stopped, gave a joyful bark, and came running back to me with a stick in his mouth.

I had been trying to teach him to retrieve, and my order, “go find it,” suggested that pastime to him. When he laid the stick at my feet, wagging his tail and looking up in hopeful anticipation of the praise that he felt to be his due, I could not find it in my heart to withhold it. Besides, the chicken thief was, no doubt, safe in his lair at this time, so, abandoning the hopeless pursuit, we made our way homeward.

When Joe came in, and I related our adventure to him, he said: “Yo’ may t’ank yo’ sta’hs, Miss Leslie, dat yo’ done got dat tumble w’en yo’ did! Dat feller wif de black coat, trimmed in yeller, was a lynx—dat’s his’n’s dress ebbery time—an’ I’d ’a’ heap rudder meet up wif a mountain lion, any day, dan one ’o’ dem ar! Land, chile! Ef hit had ’a’ been me, down dar by de ribber, I’d ’a’ helt Guard to keep him still, an’ I’d ’a’ kep’ out o’ sight. Dat’s w’at I’d ’a’ done, honey.”

“Do you recollect, Leslie,” Jessie chimed in, “what Mrs. Loyd told us about her encounter with a lynx, last year? She said that she was in the house one day, when she heard a great outcry among her chickens, right close at hand, in the yard. She ran to the door, and there was a great lynx, chasing the chickens around. The minute the door was opened, they ran toward it, and into the house. The lynx was right behind them, but it stopped as the chickens crowded around her, and she seized the broom and struck at it. Instead of running, it stood its ground and showed its teeth, bristling up and growling. She dropped the broom and sprang into the house, slamming the door shut just as the lynx hurled itself against it. She said that she was almost scared to death. She locked the door, and scrambled up into the loft—she said that she was afraid the cat would take a notion to break in at one of the windows—and the creature stayed outside and killed chickens as long as he pleased, while she stayed up there, trembling, until her husband came home. She said that the next time a bob-cat wanted one of her chickens it could have it, for all of her.”

“I would hate to have Guard get hurt,” I said, looking affectionately at our follower.

CHAPTER XIII

JOE DISAPPEARS

The plowing was done—had been done for some days, indeed—and the time set for our offering final proof was close at hand. But Jessie and I, going about our household tasks with sober faces, had hardly a word to say to each other.

We had looked forward to this coming day with such eager expectation, but now that it was so near, we shrank with dread from facing it. A trouble so great as, under the circumstances, to deserve to be ranked as a calamity, had befallen us. Joe was gone. He had left us without a sign, at the time, of all others in our whole lives, when we most needed him. On the evening of the day that the plowing was done he had retired, as usual, to his little room off the kitchen, and when we awoke in the morning he was gone. That was all. But it was enough. It was a fact that seemed to darken our whole world. It was not alone that we missed his help; we had believed in his fidelity as one believes in the fidelity of a mother, and he had left us without a word of explanation or regret.

The subject was so painful that, by tacit consent, we both avoided it. It would have been better, I think, to have expressed our views freely, for, as we could dwell on nothing else, we seldom spoke at all, and that added to the gloom of the situation.

Joe had been gone several days, and we had been silently struggling in the Slough of Despond, when I awoke one morning filled with a new and ardent resolution, which I proceeded to carry into instant execution.

Jessie was always the first one up. I heard her moving about in the kitchen, and, making a hasty toilet, joined her there. She was grinding coffee in the mill that was fastened securely to the door-jamb. It was, I believe, the

noisiest mill in existence; its resonant whi-r-rr was like that of some giant grist-mill. Jessie suspended operations as I drew near to remark:

“You’re up early, Leslie.”

“Yes; I’ve thought of something, and—”

“It’s the early thought that is caught, same’s the early worm,” my sister remarked, unfeelingly. Then she added: “Excuse me a minute, Leslie, I must get this coffee ground, and can’t talk against the mill.”

When the coffee was in the pot on the stove, she turned to me again:

“Now what have you thought of that is so wonderful?”

“It isn’t wonderful, Jessie. It’s sensible.”

“It amounts to the same thing.”

“Not in this case. First, I think we ought to stop grieving over Joe’s desertion.”

Jessie’s bright face clouded instantly:

“It is cruel!” she protested.

“I don’t feel as if we ought to say that, Jessie. Joe has been a good, true, faithful friend to us, and he loved father; we, ourselves, loved father no more than Joe did—”

“Why, Leslie!”

“It is true, Jessie. I feel it, someway, and I am not going to blame Joe any more; not even in my own thoughts. It does no good, and it makes us very unhappy. Let’s try to be cheerful again, Jessie, and make the best of it.”

“We must make the best of it whether we are cheerful or not.”

“Very well, then; one of the first things that we must do, if we are to depend on our own efforts, is to market that cantaloupe crop.”

“What, you and I, Leslie?” Jessie sat down with the bread knife in one hand and a loaf of bread in the other, the better to consider this proposition.

“Just you and I, Jessie. We cannot afford to hire an agent, supposing that one was to be had for the hiring, which is by no means likely. We’ve been eating the melons for days; they are just in their prime, and I know that Joe counted on making quite a little sum on his cantaloupe crop, but if we wait now, hoping for his return, the melons will be ruined; they will be a total loss.”

“You needn’t offer any more arguments, Leslie. I’m glad you thought of it; it’s a pity that I never think of any such thing myself until the procession has gone by. Now let me see, have I got your morning thoughts in order? First, Charity. Toward Joe. Second, Resignation—all capitals—Toward Joe. Third, Labor. For ourselves. Is that right?”

“Yes; if you like to put it that way.”

“You shall have it any way you please, Leslie dear, and I will help you.”

“After breakfast, then, we will harness up the team and drive the wagon into the melon patch, then—we will fill it.”

“Yes, and what then?”

It was like taking a plunge into cold water. I am sure that I was not intended for a huckster, but I managed to respond with some show of courage:

“Why, then I will drive over to the store and sell what I can, and then I will go about among the neighbors with the rest.”

“Will you?” Jessie breathed a sigh of relief. “That will be enterprising, anyway. I should dreadfully hate to drive about peddling melons myself, but there’s such a difference in people about things of that sort.”

Jessie is so exasperatingly prosaic, at times, that she makes me feel either like crying, or like shaking her. On this occasion I was fortunately hindered from doing either by Ralph, who suddenly appeared, demanding to be “dwessed.” After breakfast we harnessed the horses—we could either of us

do that as well, and quicker than Joe—then we drove into the enclosure where the olive-tinted little spheres lay thick on the ground and proceeded to fill the wagon-box. The patch was small, but the melons grew in great profusion, and it did not take long. Within a couple of hours I was traveling along the highway, perched upon the high spring seat of the wagon-box, with Guard beside me. Guard was, according to my idea, very good company, and it was, moreover, desirable that he should learn to ride in a wagon and to conduct himself properly while doing so. It was a very warm morning and as the sweet, cloying odor of my wagon load of produce assailed my nostrils, I could not but think of the famous couplet, “You may break, you may shatter the vase if you will, but the scent of the roses will hang round it still!” My route through the settlement might be traced, I fancied, by the fragrance that the melons exhaled.

My first stop was at the store where I disposed of a satisfactory quantity of melons, but after leaving the store the business dragged wearily, and I found myself obliged to take promises to pay in lieu of money from the women of the household when the masculine head chanced to be absent. They always explained, quite as a matter of course, that “he” had left no money with them. It appeared to me, as I patiently booked one promise after another, that “he” could not have kept hired help very long if their wages consisted of nothing more tangible—after the matter of food and lodging was eliminated—than those that fell to the lot of “his” womenfolk. I had observed, with some annoyance, when I first started out, that one of the wagon wheels had a tendency to make plaintive little protests, as if it objected to being put to any use. I could by no means fathom the reason for it, but by mid-afternoon the protest had grown into a piercing shriek. A shriek that even Guard shrank from with an indignant growl.

Less than one-fourth of my load yet remained unsold. I was most anxious to clear it all out, but that ear-piercing sound was becoming maddening. “The wagon must be conjured,” I thought, recalling some of Joe’s fancies. Coming to a place at last, where two roads met, I halted the team and sat considering the question of a return home or a trip to Crusoe, which place I had not yet visited, when the sight of a horseman far down the left-hand road decided me to go in that direction. The horseman was well mounted

and going at a good pace. “I don’t care!” I told myself, recklessly, “I’m going to overtake him and make him take some of these melons if I have to pay him for doing it.”

But there was no occasion for my hurrying the horses. When the man on ahead caught the sound of my rapidly-advancing shriek he promptly drew up beside the roadway and awaited my approach, and then I saw that the rider was Mr. Rutledge. He recognized me at the same moment and exclaimed:

“Why, Miss Leslie, is that you?”

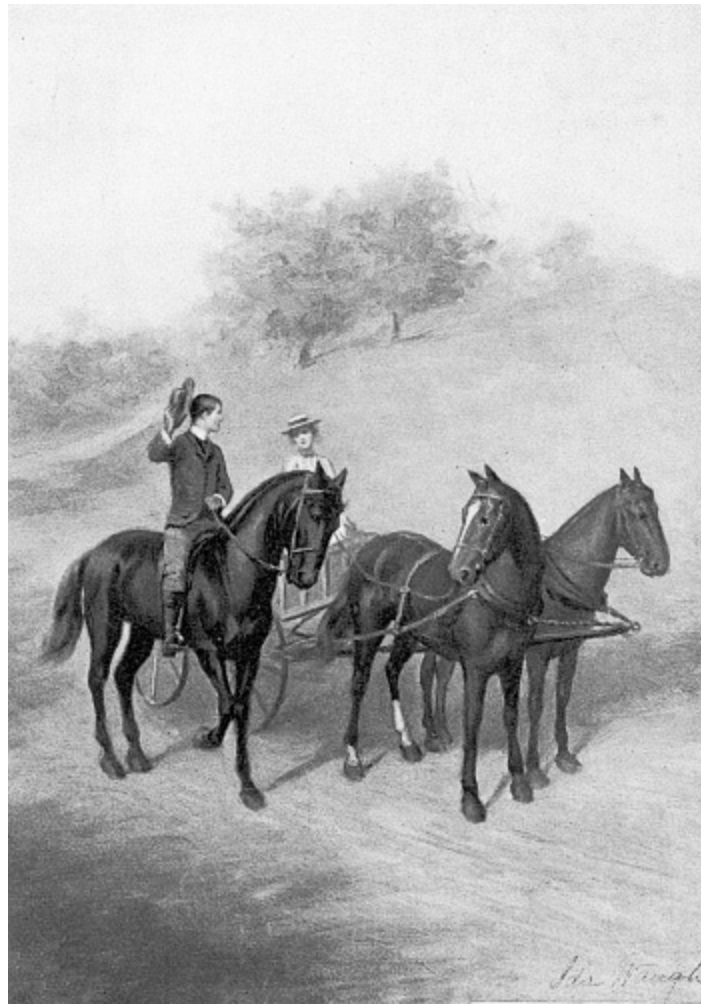
“Yes,” I said, meekly, but I felt my face grow red, and was conscious, in spite of my good resolutions, of a sudden resentment against Joe. Why had he left me to do such work as this?

Mr. Rutledge, drawing close to the wagon, ran an inquiring eye over my merchandise.

“Been buying melons?” he asked, adding: “I didn’t know that there was anything of the kind for sale in the valley.”

The observation did not seem to require an answer, and I was silent while he reached into the box and selected one of the smaller melons and held it up laughingly, as if defying me to retake it.

“Findings is keepings!” he said, gayly.



HE DREW UP BESIDE THE ROADWAY
(Page [166](#))

“Also, pilferings,” I returned, triumphantly. After all, I should not be compelled either to urge a sale or to offer a bribe.

“Call it pilfering if you have the face to, but in return for this bit of refreshment I am going to give you some advice.”

“Well?”

“The next time that you take your colored attaché’s place as teamster, make sure that he has greased your wagon wheels. You may not have observed it, but their protests against moving are simply diabolical.”

“Oh, is that what causes that noise?” I asked, leaning down from the seat the better to peer at the wheels in question.

“Certainly; Joe should not have allowed you to go out with them in such shape.”

The laughter had died out of my heart and my voice, but a stubborn, foolish pride held my tongue. I could not tell the mining superintendent, who would have been one of the best of customers, that the melons were for sale, or that Joe had left us. “If I tell him that Joe is gone,” ran my foolish thought, “he will understand that I am peddling melons.” Gathering up the lines, I started the horses quickly, lest he should ask where I got my load. Mr. Rutledge drew his horse aside, waiting for me to pass.

“Be sure to tell Joe about the wheels, when you see him!” he called after me, as the complaining shriek again rent the air.

“Yes,” I returned, “I will;” and added to myself: “When I see him.”

In my anxiety to escape questioning I had forgotten that a person who is riding in a wagon whose wheels need oiling cannot shake off a well-mounted horseman so easily. Underneath the weird outcry of the wheels the steady pit-a-pat, pit-a-pat of the black horse’s hoofs came to my ears, and I glanced back to see Mr. Rutledge close to the hind wheel. Unless he stopped entirely he must of necessity be close at hand. The road that Mr. Rutledge must take in order to reach the mining camp branched off from the one that we were following, at a little distance, and I understood very well that, considering the distance, he did not think it civil to gallop on ahead of me. But suppose he should yet ask me where the melons came from—just suppose it. Should I tell a lie, or should I tell him that I was not even acting as teamster to oblige another? I took up the whip—then I dropped it back into its socket. I had always known myself for, in my quiet way, rather a proud girl, but—it—but—it was not this kind of pride, and I had never before felt myself a coward. Because Mr. Rutledge was a gentleman, was it any worse that he should know—

I drew in the reins sharply, and the team came to a standstill. The sudden cessation of that fearful noise called to mind a line or two that Jessie is fond

of quoting: “And silence like a poultice comes, to heal the blows of sound.”

Mr. Rutledge again halted his horse, and turned on me an inquiring look. My throat was dry and husky, and my voice sounded strange in my own ears as I said, in answer to the look:

“I wanted to tell you, Mr. Rutledge, that we raised these melons ourselves, and we are trying to sell them.”

“Are you?”

His tone was very gentle. He regarded me and my dusty, wayworn outfit silently for a space, then he said, this time with no laughter in his voice:

“I take off my hat to you, Miss Leslie”—he suited the action to the word—“and I thank you for teaching me anew the truth of the old saying: ‘True hearts are more than coronets, and simple worth than Norman blood.’”

He replaced his hat with a sweeping bow, touched the black horse lightly with a spurred heel, and was gone. The tears were in my eyes as I watched the little swirl of dust raised by his horse’s hoofs settle back to place. I had not deserved praise, but it was something to feel that others understood how hard and distasteful was this bitter task, and I was glad to remember that he had not added to my humiliation by offering to buy my melons. I meant to sell them all before returning home now, and I did, but it was a long day’s work, and when I reached home I had only five dollars to show for it. “He” had been chiefly absent from home, and I had booked many promises.

Jessie and Ralph met me at the gate as I drove up. Jessie was interested and anxious.

“Why, you have sold all the melons!” Jessie exclaimed, glancing into the wagon-box, and narrowly escaping being knocked over by Guard, as he sprang down from the seat. “You have had good luck, Leslie.”

“Good luck doesn’t mean ready money in this case, Jessie, and that is what we need. There’s just about one more load of melons, and to-morrow we’ll take them out to the storage camp.”

“That may be a good plan,” Jessie admitted reflectively, “but it’s a long drive.”

“Yes, we must get an early start, and we must not forget to oil the wagon wheels,” I said, but I did not mention my meeting with Mr. Rutledge.

CHAPTER XIV

AT THE STORAGE RESERVOIR

By nine o'clock the next morning we were on our way to the water-storage camp, twenty miles away across the plains.

The wagon-box was piled high with the last of our cantaloupe crop. Jessie and I had risen at daylight to pull them. We had been careful to leave a vacant space in the front of the wagon, and this, fitted up with his favorite little chair and plenty of blankets, made a snug harbor for Ralph. The little fellow was wild with excitement and pleasure at the prospect before him. There was room, besides, in the harbor for a well-filled lunch basket, a jug of water, and, if he became tired of walking, for Guard. The dog trotted on beside the wagon, alert and vigilant, until we were well outside of the valley, when, intoxicated, perhaps, by the sight of such boundless miles over which to chase them, he gave himself up to the pursuit of prairie dogs. An entirely futile pursuit in all cases, but Guard seemed unable to understand the hopelessness of it until some miles had been covered and he was panting with fatigue. The wary little creatures always kept within easy reach of their burrows, a fact which Guard did not comprehend until he had scurried wildly through a half-dozen prairie dog towns in succession. But when the conviction did force itself upon him their most insistent and insolent barking was powerless to arrest his further attention. He had learned his lesson.

I had put the rifle and a well-filled cartridge-belt into the wagon thinking that I might get a shot at a jack-rabbit or cotton-tail, but Guard's experience impressed me as likely to be mine also should I attempt to kill such small game with a rifle, and I left the gun untouched.

The plains were gray with dust and shimmering in the heat. Clouds of the pungent alkali dust were stirred up by the horses' feet and by the wagon

wheels—we had oiled the wheels after an extravagant fashion, I’m afraid, for I do not remember that Joe ever used up an entire jar of lard, as we did, for that purpose—and our throats were parched, our faces blistered, and our eyes smarting before half the distance to the camp was passed over. The wind, what little there was of it, seemed but to add waves of heat to the torturing waves of alkali dust. Ralph, after whimpering a little with the general discomfort, curled down in his nest and dropped off to sleep, but there was no such refuge for Jessie and me.

“It’s a dreadful thing to be poor!” Jessie exclaimed, at last. There was a desolate intonation in her voice, and my own spirits drooped. The horses dropped into a slow walk.

“We shall have one advantage over Mr. Wilson, whatever happens,” Jessie presently continued.

“How is that?” I inquired. It did not look, at the moment, as if we were ever destined to have the advantage of any one.

“We shall not find the men at dinner; they will have had their dinners and gone to work again.”

“We may find them at supper,” I said, giving Frank an impatient slap with the lines. The blow was a light one, but it took him by surprise, and, as was his wont, he stopped and looked back inquiringly, seemingly anxious to know what was meant by such a proceeding. Jessie snatched up the whip, and I laughed as I invited Frank to go on. “Don’t strike him, please, Jessie! You don’t understand Frank, and he doesn’t understand the meaning of a blow; he thinks, when he is doing his work faithfully and gets struck, that it must have been an accident, and he stops to investigate.”

“Dear me! How much you know—or think you do—about horses,” Jessie returned wearily. “You’re worse than old Joe.” She dropped the whip back into its socket with a petulant gesture. “I’m sorry we started, Leslie. Here we’ve been on the road six or eight hours—”

“A little over three hours, Jessie.”

“Well, we’re not in sight of the promised land yet, and I’m nearly roasted; I shall just melt if we keep on this way much longer.”

“Me is melted; me is all water!” cried Ralph, waking up suddenly, and immediately giving way to forlorn tears. The tears plowed tiny furrows through the dust that clung to his moist cheeks, and had settled in grayish circles underneath his eyes. Jessie looked down at the piteous little figure and her own ill-temper vanished.

“Come up here and look round, you poor hot little mite!” she exclaimed, extending one hand and a foot as a sort of impromptu step-ladder. Ralph clambered up with some difficulty and looked around as directed, but the prospect did not have an enlivening effect on him.

“Where is we?” he demanded, turning his large, dust-encircled eyes on each of us in turn.

“On the plains,” I responded briefly. I was driving; the load was heavy, and the horses, worn with fatigue and the heat, lagged more and more; therefore my anxiety grew, and I had no time to waste on trivialities.

“One need not ask why it never rains here, though,” I suddenly observed, “for behold! Jessie, there is the thing that makes rain unnecessary.”

A glimmer of white had been, for some minutes, slowly growing on the horizon. I had thought at first, that it must be a mirage, but it kept its place so steadily, without that swift, undulating, gliding motion that these familiar plains spectacles always present that I presently became convinced that the white glimmer was a lake, and so that we were within a few miles of our objective point.

“Sure enough, that’s the lake!” Jessie exclaimed, after a long look. “Well, that’s some comfort,” was her conclusion. Ralph stood up on the seat between us and looked, too:

“Me wants a dwink!” he cried, after making quite sure that the white shimmer in the distance was that of water.

Jessie slid off the seat and got hold of the water-jug and tin-cup, then she tried to fill the cup, but the result was disastrous.

“You’ll have to stop the horses, Leslie, I shall spill every drop of water at this rate.”

As the wagon came to a standstill, and while Ralph was drinking, Guard suddenly appeared from his place underneath the wagon—he had thus far declined all invitations to ride—and putting his fore feet on the front hub, looked up, whining beseechingly:

“Dard wants some water, too,” Ralph said.

“He’s got to have it, then,” I declared, and climbed quickly out of the wagon.

“I hope you don’t intend to let him drink out of the cup!” Jessie exclaimed.

“No; hand me the jug, and I’ll pour the water into his mouth.”

“Oh, he can’t drink in that way!”

“Just hand me the jug and see.” She complied, and Guard justified my faith in his intelligence by gulping down the water that I poured into his open mouth, very carefully, scarcely spilling a drop.

In the end we decided to get out and eat our lunch in the shade of the wagon, especially as Ralph was plaintively declaring:

“Me so hundry!”

“We’ll give the horses a chance to eat while we’re selling the melons,” I remarked, as much for Frank’s benefit as anything else, for he had turned his head, and was watching us with reproachful interest, as we sat at our meal. He must have thought us very selfish.

Lunch over, we climbed back into the wagon again, after re-packing the basket. Guard also signified his willingness to ride, now, and we went on, much refreshed by the brief stop and the needed lunch which had hardly lost its consolatory effect when, between one and two o’clock, we drew up

before the door of the cook's tent, on the eastern bank of the great water-storage reservoir. The cook was busy, but signified, after a hasty inspection, that our load was all right.

"Better take it in," he added, nodding toward one of the three men who were lounging about in the vicinity. I suppose that this friendly young gentleman must have been the commissary clerk, or something of that sort. He called a man to take care of our horses, and chatted with us pleasantly, while another man unloaded the melons. He urged us to come into the dining-tent and let the cook "knock us up a dinner," but this we declined on the plea that we had already dined, and were extremely anxious to take the homeward road as soon as possible.

"It's so late, you see," Jessie observed, consulting father's big silver watch, which she carried.

"We have already been here some time; how late is it, Jessie?" I asked.

"Why, it's nearly four!" Jessie made the statement in a tone of dismay, adding: "How late it will be before we get home!"

"I can drive home a great deal faster than we came," I said.

"How far have you got to go?" inquired the clerk, who had told us that his name was Phillips.

"Twenty miles."

"That's a good bit; but it's a moonlight night."

"Dear me! We don't care if it is," Jessie returned, rather crossly; "we want to get home."

"You'll get home all right," Mr. Phillips assured her, easily. "I'll have Tom put your horses in at once and here's the money for your load." He counted out a fascinating little roll of bills, adding, as he tendered the amount to Jessie, who promptly pocketed it, "I hope you'll excuse my saying that you appear to be a plucky pair of girls. If you've anything more to market—" Jessie shook her head:

“There was a reason; we were obliged to sell the melons,” she ended, lamely. The horses, fed, watered, and evidently greatly refreshed, were, by this time, on the wagon. Mr. Phillips helped us in, and, while doing so, his glance fell on the rifle lying under the seat. He took up the gun and ran his eye over it approvingly.

“Either of you shoot?” he inquired.

“My sister shoots pretty well,” Jessie told him, adding: “We really must be starting, and we are a thousand times obliged to you for your kindness.”

“And particularly for buying the melons,” I could not forbear saying.

Mr. Phillips laughed: “The boys will say that it was you who conferred the obligation, when it comes to sampling those melons,” he said. I had gathered up the lines when he added, suddenly: “Wait!” I waited, while he stepped back into the tent. He re-appeared directly, carrying a half dozen big mallards and a couple of jack-rabbits: “You’ll let me make you a present of these, won’t you?” he asked, smiling, persuasively, as he tossed them into the wagon-box. “I was out hunting this morning, and I had good luck, as I always do.” We thanked him heartily for his gift and drove off feeling not only a good deal richer, but much happier than when we had started out.

CHAPTER XV

CHASED BY WOLVES

The horses trotted along briskly for a few miles, but they were tired from two days of hard work, and, in spite of their eagerness to reach home, their pace slackened. I did not urge them. It would be, as Mr. Phillips had said, a moonlight night; the rays of the rising moon were already silvering the deepening dusk. Ralph was again asleep in his snug harbor, with Guard lying quietly beside him.

“The cows will be waiting at the corral bars when we get home,” Jessie remarked once, “but it is going to be so light that we can do the chores nearly as well at midnight as we could at mid-day, so there is really no need of hurrying. We’ve had good luck to-day, haven’t we, Leslie?”

“Yes,” I answered, “we have,” but I spoke absently. I was listening to again catch a sound that had just reached my ears; faint, far off, but welcome; it was one that we seldom heard in that mountain-guarded valley where our days were passed.

“Did you hear that, Jessie?”

“What?”

“The whistle of a locomotive engine; there it is again! How far off it seems!”

“Sound travels a long way over these plains; there’s nothing to intercept it—but I didn’t hear it.”

“Listen. It will sound again, perhaps, when the train reaches another crossing. It must be way down on the Huerfano. There, didn’t you hear that?”

“Yes; do keep still, Guard.”

Guard, aroused from his nap, was sitting up and looking around with an occasional low growl.

“Seems to me that they must have railway crossings pretty thick down on the Huerfano,” Jessie remarked, after a moment’s silence. “That makes three whistles—if they are whistles—that we’ve heard within as many minutes.”

“That’s true, Jessie—I hadn’t thought of that. It may not be an engine. It sounds louder, instead of diminishing as it would if—keep still, Guard! What in the world is the matter with you!”

For answer, Guard, with every hair on his back erect and standing up like the quills of a porcupine, got up, and wriggled himself under the seat on which we were sitting, making his way to the end of the wagon-box, where he stood with legs braced to keep himself steady, his chin resting on the edge of the tailboard, and his eyes fixed on the darkening roadway over which we had just passed. Every now and then he gave a low, sullen growl, and, even from where we sat, and in the increasing gloom we could see that his white fangs were bared.

“How strangely Guard acts!” exclaimed Jessie, with a sudden catch in her voice, and a dawning fear of—she knew not what—in her eyes. At that instant the sound that I had taken for the far-off, dying whistle of a locomotive, came again to my ears; nearer, more distinct, in increasing volume—a weird, melancholy call—a pursuing cry. The lines were in my hands, and at that instant the horses suddenly sprang forward, faster, faster, until their pace became a tearing run, and then some words of my own, spoken weeks before, flashed into my mind, bringing with them a mental illumination.

“There are wolves!” I had said. I was conscious of an effort to steady my voice, to keep it from shaking, as I thrust the lines into Jessie’s hands. “Try to keep the horses in the road, Jessie; do not check them. I am going back there by Guard.”

“What for?” Jessie’s tones were sharp with apprehension, and again, as if in explanation, came that pursuing chorus. I sprang over the back of the seat, and knelt in the bottom of the wagon-box, securing the rifle and cartridge-belt. Jessie, holding the lines firmly in either hand, shifted her position to look down on me. Her face gleamed white in the dusk as she breathed, rather than spoke: “Wolves, Leslie?”

“Yes.” I had the gun now and staggered to my feet. “Watch the horses, Jessie.” Jessie nodded.

Ralph, roused by the rapid motion, had awakened. He struggled to a sitting posture. “What for is us doin’ so fas’?” he inquired, with interest.

Jessie made no reply, but she put one foot on his short skirt, holding him in place. Some intuition told him what was taking place, perhaps, what might take place. Claspings both chubby hands around Jessie’s foot to steady himself, he sat in silence, making no complaint. The brave spirit within his baby body had risen to meet the crisis as gallantly as could that of any Gordon over whose head a score of years had passed.

Reaching the end of the wagon, I crouched down beside Guard, with rifle poised and finger on the trigger, waiting for the pursuing outcry to resolve itself into tangible shape. I had not long to wait. Dusky shadows came stealing out from either side of the roadway. Shadows that, as I strained my eyes upon them, seemed to grow and multiply, until, in less time than it takes to tell it, we were close beset by a pack of wolves in full cry. The terrified horses were bounding along and the wagon was bouncing after them, at a rate that threatened momentarily to either shatter the wagon or set the horses free from it, but Jessie still kept them in the road. A moment more and the wolves were upon us, and had ceased howling; their quarry was at hand. I could see their eyes flaming in the darkness, and with the rifle muzzle directed toward a couple of those flaming points, I fired. There was a terrific clamor again as the report of the gun died away, and a score or more of our pursuers halted, sniffing at a fallen comrade. But one gaunt long-limbed creature disdained to stop for such a matter. He kept after the wagon. Guard was young and, moreover, this was his first experience with wolves. He had stopped growling, but his eyes seemed to dart fire, and as

the wolf that had outstripped its mates sprang up, with gnashing teeth, hurling himself at the tailboard in a determined effort to spring into the wagon, Guard attempted to spring out and grapple with him. I was leaning against the dog, ready to meet the wolf's closer approach with a bullet, and, in consequence, I felt the impetus of his leap before he could accomplish it. The gun dropped from my hand with a crash as I threw both arms around Guard, intent on holding him in the wagon. I was so far successful that his leap was checked; he fell across the tailboard, his head and forelegs outside. My grip about his body tightened as I felt him slipping. I pulled back mightily, and had the satisfaction of tumbling backward with him into the wagon-box, but not before he had briefly sampled the wolf. The creature's savage head and cruel eyes appeared above the tailboard, even as I dragged at Guard, who, not to be deterred by my interference, made a vicious lunge at the enemy, and fell back with me, his mouth and throat so full of wolf-hair and hide that he was nearly strangled. But that particular wolf had drawn off. I regained my feet and admonished Guard: "Stay there, sir! Stay right there!" I gasped, and again secured the gun. The wolves, on each side of us now, were running close to the front wheels and to the galloping horses, and one was again trying to leap into the box from the rear. The rifle spoke, and he fell motionless on the road, at the same instant I heard Ralph saying, imperatively: "Do away! Do away I tells 'oo!" I looked around. Ralph was on his knees—no one could have kept footing in that wagon-box just then—a pair of wolves were leaping up wildly beside the near wheel, making futile springs and snaps at him, and just then he lifted something, some dark object from the bottom of the wagon-box, and hurled it at them with all the power of his baby hands. Whatever the object was, its effect on the wolves was instantaneous. The pack had not stopped to look at the wolf brought down by my second shot, but they all stopped, snarling and fighting over Ralph's missile. A few took on after us, and then Ralph threw another; they stopped again at that, and then I saw that the child was throwing out the game that Phillips had given us. With another command to Guard to remain where he was, I crept back to the pile of game yet remaining, and tossed out what was left. Then I crept on to Jessie.

"Can you slow the horses down?" I shouted in her ear. "The wolves will not follow us again; they have got what they were after."

The horses knew me, and by dint of much pulling and many soothing words I had them partially quieted, but it took so long to gain even that much control over them that the wolves were far out of sight and sound behind us when I at length ventured to look back. The horses were walking at last, but it was a walk so full of frightened starts and nervous glances that it threatened at any moment to break into a run. By the moonlight Jessie and I looked into each others' white faces, and, with Ralph cuddled between us, clung together for a breathless instant of thanksgiving. Then—"Ose dogs was hundry," Ralph observed, philosophically, adding, as an afterthought: "Me hundry, too; is we mos' 'ome, 'Essie?"

"We'll be there soon," I answered, tremulously. We saw or heard nothing more of the wolves, which were of that cowardly species—a compromise between the skulking coyote and the savage gray wolf, known as "Loafers." A loafer very seldom attacks man, but he will, if numerous enough, run down and destroy cattle—sometimes horses. In this instance it was undoubtedly the scent of the game in the wagon that attracted them. Once attracted and bent on capture, they are as fiercely determined as their gray cousins, and but for the fortunate accident of Ralph's using a duck for a projectile they would have kept up the chase until the horses were exhausted, and they were able to help themselves.

It was after nine when we reached home, and never had home seemed a dearer or safer place. The chores all done, Ralph asleep in his little crib, and Guard sleeping the sleep of the just on the kitchen doorstep, Jessie and I sat down by the table to eat a belated supper, and count our hard-won gains. The melon crop was all sold, and it had netted us forty dollars.

CHAPTER XVI

A SLEEPLESS NIGHT

It was close upon the beginning of another day before Jessie and I got to bed, but, late as it was, I could not sleep.

Our pressing financial problem was so constantly in my thoughts that now, in my weariness, I found myself unable to dismiss it. We had collected some money, but not enough—not enough! I turned and tossed restlessly. Now that the time for proving up was so close at hand an increasing terror of failure grew upon me. It did not seem to me that I should be able to endure it if we were obliged to give up our home. Forty dollars! In the stillness of the night that sum, as I reflected upon it, dwindled into insignificance. I reviewed all of our monetary transactions that I could think of, and, adding up the sum total, half convinced myself that we must have made a mistake in the counting that evening.

“I’m quite sure that there’s more than forty dollars,” I told myself, turning over my hot pillow in search of a cooler side, and giving it a vigorous shake. “I’m quite sure! There’s the money for Mr. Horton’s mending, that was forty cents; and Miss Jones’s wrapper was two dollars; and that setting of eggs that I sold to Jennie Speers—I don’t remember whether they were two dollars or only fifty cents. Oh, dear! And there was Cleo’s calf; that was—I don’t remember how much it was!”

The longer I remembered and added up, and remembered and subtracted, the less I really knew. By the time that my fifth reckoning had reduced our hoard to twenty-seven dollars I would gladly have gotten up and counted the money again, but Jessie had it in charge and I did not know where she kept it. It was small consolation in the desperate state of uncertainty into which I had worked myself to reflect that I had only myself to blame for this. Being a somewhat imaginative young person, I had reasoned that if

burglars were to break into the house and demand to know the whereabouts of our hidden wealth it might be possible for Jessie, who knew, to escape, taking her knowledge with her, while I, who did not know, might safely stand by that declaration. It was rather a far-fetched theory, but Jessie had willingly subscribed to it. If not actually apprehensive of robbery, she was, perhaps, more inclined to trust to her own quiet temper, in a case of emergency, than to my warmer one. At the same time she understood very well that I had an unusual talent for silence. It was this talent that induced me to stay my hand late that night just as I was on the point of rousing Jessie and asking her where she had put the money. She was sleeping soundly and she was very tired.

“I’ll count it all over the first thing in the morning,” I thought; and with the resolution, dropped off to sleep.

It was very late when I awoke. Ralph was still sleeping, but Jessie had risen, and was moving quietly about the house. Above the slight noise that she made I heard distinctly the pu-r—rr of falling water, and knew that it was raining heavily. With the knowledge, the recollection that Joe had gone came back to me with an unusual sense of aggravation. Joe had always done the milking, and it had not rained since he left. Dressing noiselessly, in order not to disturb Ralph, I went out into the kitchen. Jessie looked up as I entered. “I’ll help you milk this morning, Leslie,” she said. “It’s too bad for you to have to putter around in the rain while I’m dry in the house.”

“There’s no use in our both getting wet,” I returned, ungraciously. “You’d much better finish getting breakfast and keep watch of Ralph. If he were to waken and find us both gone he’d probably start out a relief expedition of one in any direction that took his fancy. He’d be glad of the chance to get out in the rain.”

“Who would have thought of its raining so soon when we came home last night. There wasn’t a cloud in sight.”

“There’s none in sight now; we’re inside of one so thick that we can’t see out. I dare say we’ll encounter more than one rain-storm ‘while the days are going by’; but it would be handy if Joe were here this morning.”

“Yes, indeed! I only hope Joe’s conscience acquits him, wherever he is.”

“Oh, I am sure it does—if he has a conscience—for I suppose that’s what you would call his feeling obliged to worry about us,” I said, in quick defence of the absent friend whose actions I might secretly question, but of whom I could not bear that another should speak slightly.

I put on my old felt hat and took up the milk-pail. Jessie was busy over something that she was cooking in a skillet on the stove, but she glanced up as I opened the door, and a dash of rain came swirling in.

“Why, Leslie Gordon! Are you going out in this storm dressed like that? Here, put on my mackintosh.”

I had forgotten all about wraps, but a shawl or cape would have been better than the long mackintosh that Jessie insisted upon buttoning me into. It was too long; the skirts nearly tripped me up as I started to run down the path to the corral, and when I held it up it was little protection.

The corral where the cows were usually penned over-night was behind the barn. As I came in sight of it a feeling of almost despair swept over me. The corral bars were down, and the cows were gone! I hung the milk-pail bottom-side up on one of the bar posts. The raindrops played a lively tattoo on its resounding sides, while I dropped the mackintosh skirt, regardless of its trailing length, and stood still, trying to recollect that I had put up the bars after we had finished milking on the previous evening. Search my memory as I might, however, I could not find that I had taken this simple but necessary precaution, and, if I had forgotten it, it was useless to suppose that Jessie had not.

“It’s just my negligence!” I remarked, scornfully, to my drenched surroundings; “just my negligence, and now I shall have to hunt for those cows, and in this rain that shuts everything out it will be like looking for a needle in a haystack.”

I took down the pail, seeming to take down an entire chorus of singing water witches with it, and retraced my steps to the house. Even this simple

act was performed with some difficulty, for again I stepped on the mackintosh and nearly fell.

“You’ve been very quick with the milking, and breakfast’s all ready,” Jessie remarked, cheerfully, as I entered, and then, catching sight of the empty pail, she exclaimed, “Why, what’s the matter?”

When I told her, she said, reproachfully, “Leslie, of course I supposed that you would put up the bars after we had finished milking last night!”

I am afraid that I was cross as well as tired: “Why, ‘of course,’ Jessie? Why is it, can you tell me, that there is always some one member of a family who is supposed, quite as a matter of course, to make good the short-comings and long-goings of all the others? To straighten out the domestic tangles, to remember, always remember, what the others forget; to be good-tempered when others are ill-tempered; to—”

Jessie laid a brown little hand on my shoulder, checking the torrent of my eloquence; she laid her cheek against my own for a passing instant.

“That’s all easily answered, Leslie dear. The some one that you describe is the soul of a house. When a house has the misfortune not to have such an one in it, it has no soul; the other members are merely forms, moving forms, with impulses.”

I knew that she meant to compliment me, but I would not appear to know it.

“I suppose, then,” I returned, with affected resentment, “that I am a form with impulses. One of the impulses just now is to eat breakfast.”

“Me hundry; me eat breakfuss, too,” proclaimed a shrill, familiar voice at my elbow. I had already taken my seat at the table.

“Eat your breakfast, Leslie,” said Jessie; “I’ll dress Ralph. After breakfast, perhaps, I had better go with you after the cows?” She spoke with some hesitation. As a matter of fact, she does not begin to know the cattle trails as I know them.

“No,” I said; “I’ll go alone, Jessie; I can find them much quicker than you could.”

“They may not have gone far.” Jessie advanced this proposition hopefully.

“Far enough, I’ll warrant. I believe there’s nothing that a cow likes so well as to chase around on a morning like this; especially if she thinks some one is hunting for her.”

“You can take one of the horses—” Jessie began, and, in the irritated state of my mind, it was some satisfaction to be able to promptly veto that proposition.

“Oh, no, indeed! I shall have to go on foot. It seems you turned them out to pasture last night. I think you must have forgotten how hard it is to catch either of the horses when they are both let out at once.”

My sister had the grace to blush slightly, which consoled me a good deal. I hoped that, either as a soul or a form with impulses, she remembered that father or Joe had never made a practice of letting both horses out at once. When one was in the barn, his mate in the pasture could be easily caught. Otherwise, the catching was a work of labor and of pain. Once, indeed, when both had been inadvertently turned out together, father had been obliged to hire a cowboy to come with his lariat and rope Jim, the principal offender. When Jim, with the compelling noose about his neck, had been led ignominiously back to the stable, father had told us never to let them out together again, a warning that Jessie evidently recalled now for the first time.

“Dear me, Leslie! I’m dreadfully sorry!” she exclaimed, lifting Ralph into his high chair; “I just meant to save a little work, and I guess I’ve brought on no end of it!”

“Perhaps not; we’ll leave the barn door open. It’s so cold that they may go in of their own accord after a while.” And that was what they did do, along in the afternoon, when it was quite too late for them to be of any service that day.

My hasty breakfast finished, I got up from the table. "I am going right away, Jessie; it will never do to let the cows lie out all day."

"No," Jessie assented. She was waiting on Ralph. I had thrown the mackintosh over a chair near the stove. I had had enough of that, but I must wear something. Picking up the big felt hat, I went into the next room and looked into a closet where a number of garments were hanging. Back in the corner, partially hidden under some other clothing, I caught a glimpse of a worn gray coat—the coat that father had loaned Joe on that fatal morning months ago. The rain dashed fiercely against the window panes as it had on that morning, too, and the sad, dull day seemed to grow sadder and grayer. With a sudden, homesick longing for father's love and sympathy, I took down the coat. Tears sprang to my eyes at sight of the big, aggressive patch on the left sleeve. Father had praised me for that bit of clumsy workmanship at which Jessie had laughed. I resolved to wear the coat. "I shall feel as if father were with me," I thought, as I slipped it on. Going out at the front door I did not again encounter Jessie, but as I passed the kitchen windows I saw her glance up and look at me with a startled air.

It was still raining heavily and I started out on a fast walk. Crossing the foot-bridge below the house I ascended the hill on the other side. The cattle always crossed the river without the aid of the foot-bridge, however, and took this route to the upper range, where they were pretty sure to be now. I hoped that the pursuit would not lead me far among the hills. While thus in the open the situation was not unpleasant; I rather enjoyed the feeling of the rain drops in my face. Just as I gained the crest of the hill beyond the river I heard some one shouting, and, looking back, saw Jessie. She was out in the yard in the rain calling and waving the apron that she had snatched off for the purpose. With the noise of the rain and the rushing river it was impossible to make out what she was saying. I was sure, though, that she merely wished to remonstrate with me for not wearing the mackintosh. I waved my hand to let her know that I saw her, and then hurried on down the farther slope of the hill. I walked fast for a long distance without coming upon any trace of the cattle, and then I fell gradually into the slower pace that is meant for staying. As I did so my thoughts again reverted to the money-counting problem that had vexed me over night. In the re-assuring

light of day it did not seem so entirely probable that Jessie had been so mistaken in her count, and it did not so much matter that I had forgotten after all to ask her where the money was kept.

CHAPTER XVII

A QUEER BANK

In spite of obliterating rain, there were plenty of fresh cattle tracks along and by the side of the trail. It did not necessarily follow that any of the tracks were made by our cattle, still, they might have been, and with this slight encouragement, I hurried along, getting gradually higher, and deeper into the mountains. As I went I reflected bitterly on the perversity of cow nature. A nature that leads these gentle seeming creatures to endure hunger, thirst, and weariness, to push for miles into a trackless wilderness, if by so doing they can put their owners to trouble and expense. It was not often that our cattle ranged so far away from home, and it was with a little unconfessed feeling of dismay that, pausing to take stock of my surroundings, I suddenly discovered that I was close upon the Hermit's cave, and no signs of the strays yet. At the same time I made another discovery as comforting as this was disquieting. Guard, whom I had forgotten to invite to accompany me, was skulking along in the underbrush beside the trail, uncertain whether to show himself or not. When I spoke to him he bounded to my side. "Guard," I said, looking down at him thoughtfully, "it's raining harder than ever, and the wind is blowing; now that you are with me, I think we will just stop in the cave until the storm abates a little." Guard's bushy tail was wet and heavy with rain, but he wagged it approvingly, and toward the cave we started. There was a green little valley over the ridge, and I resolved when the storm slackened, to climb up and have a look into it. If the cattle were not there I should be compelled to give over the hunt for that day.

A sudden lull in the storm was followed by a blacker sweep of clouds and a resounding peal of thunder, the prelude to a pitiless burst of hail-stones. Pelted by the stinging missiles, and gasping for breath as I struggled against

the rising wind, I made for the cave with Guard close at my heels, and dashed into the gloomy cavern without a thought of anything but shelter.

The entrance to the cave was merely a large opening in a pile of rocks close beside the cattle trail, and the cave itself was famous throughout the valley solely because of its imagined history and its actual equipment. Because of its nearness to the trail there was little danger of its becoming a lair for wild beasts. People said that the spot had been the dwelling place of a man, educated and wealthy, who had chosen to live and die alone in the wilderness. How they came to know this was never quite clear, for the furnishing of the cave was there, offering its mute history to the first venturesome hunter who had penetrated these wilds years and years ago, just as it was offered to the curious to-day. The educational theory could probably be traced to the torn and yellowing fragments of a book that lay on the rude table opposite the cavern entrance. How many inquisitive fingers had turned its baffling pages, how many curious eyes had vainly scanned them in the course of the slow moving years in which the cavern held its secret? The book was written in a language quite unknown to us simple folk. For the theory of wealth the rusty, crumbling old flint-lock musket, leaning against the wall beside the table, was silver mounted and heavily chased. Beside the table was a rude bench made from a section of sawed pine. That was all, but impressive legends have been handed down, from one generation to another, on less foundation than the cave furnished to our valley romanticists. It was not even odd to us that no one in all these years had stolen or desecrated the pathetic mementos of a vanished life. People on the frontier have a great respect—a respect not necessarily enforced with lock and key—for the belongings of another. The mountings of the gun were of solid silver, but I doubt if even Mr. Horton could have justified himself to himself in taking it. I had been in the place once or twice and had turned over the untelling leaves with reverent fingers, but I had never felt any inclination to linger within the gloomy walls; the sunlight on the cattle trail outside had greater allurements, but now, beaten by the hail, I rushed in headlong, and in doing so nearly fell over the body of a man lying outstretched on the stone floor, just within the entrance. The man was evidently sleeping, and very soundly, for my tumultuous rush roused him so little that he merely turned on one side, sighed, and again relapsed into

deepest slumber. I stood in my tracks, trembling, undecided whether to dash out into the storm or run the risk of remaining in the cavern. The fierce rattle of the hail beating on the rocks outside decided me to do the latter. Noiselessly, step by step, I stole backward into the darkness of the cavern. My backward progress was checked at last by the corner of the table against which I brought up. I glanced down at it. It was laden with a regular cowboy equipment of spurs, quirt, revolver, cartridge-belt, and the too common accompaniment of a bottle of whiskey. If the sleeping man on the floor were called on to defend himself for any cause he need not suffer for want of ammunition. I had less fear of his awakening since seeing the half-emptied bottle, but far greater fear of what he might do when he did awake.

Surely, there never was a wiser dog than Guard! He had not made a sound since our entrance, although he had certainly cocked a disdainful eye at the recumbent figure on the floor as we passed it. Now, in obedience to the warning of my uplifted finger, he crept silently to my side. He watched my movements with an air of intelligent comprehension as I quietly took possession of the bottle, revolver, and cartridge-belt, and then followed me without a sound as I stole breathlessly into the deepest recess of the cavern. The rocky roof sloped down over this recess, until, at its farthest extremity, there was scarcely room for a person to crouch under it, close to the wall, and it was so dark that I could barely make out the form of the dog crouching beside me. Safe hidden in the darkness, I determined to rid the sleeping man of at least one of his enemies. Pulling the cork from the bottle, I poured its contents on the rocks, thereby, as I found, running imminent risk of a sneeze from Guard, who rolled his head from side to side in distress as the pungent liquor penetrated his nostrils. The danger passed, luckily, without noise. We crouched in perfect silence, waiting for the hail-storm to pass. It was too violent to be of long duration, yet I could not tell, after some minutes of anxious listening, when it ceased, for the hail was followed by a fresh deluge of rain. It was comfortable in the cavern—warm and dry. The man, as his regular breathing testified, slept soundly, and I thought, while I waited, that I, too, might as well make myself easy. Softly pulling off the wet coat, I turned the driest side outward, and, rolling it into a compact bundle, placed it under my head for a pillow. With the sleeper's armament between myself and the rock at my back, with Guard vigilantly

alive to any motion of anything, inside the cavern or out, I felt entirely safe, and wearily closed my eyes. It was pleasant lying there so sheltered and guarded, to listen to the heavy rush of the rain—or was it hail?—or the far-heard cry of wolves, or the rushing swirl of the river. I had not slept well the night before, but I could not have been asleep many minutes when I was awakened by a low growl from Guard. Brief as my nap had been, it was, nevertheless, so sound that at first I was bewildered and unable to recall what had happened. I started up quickly, bumping my head against the rocky roof, and so effectually recalling my scattered senses and the necessity for caution.

The sleeping cowboy had also awakened and was wandering aimlessly about the cavern. He was muttering to himself, and his incoherent talk soon told me that he was in anxious quest of the bottle that I was at that moment sitting upon.

The sound of his own voice had, apparently, drowned that of Guard's. Seeing this I put one hand on that attendant's collar and shook the other threateningly in his face. He had been standing up, but sat down, with, I was sure from the very feel of his fur, a most discontented expression. In the silence the stranger's plaint made itself distinctly audible:

"Leff' 'em on a table; 'n' whar is they at now? Reckon I must 'a' been locoed, or, like 'nuff that ar ole hermutt's done played a trick on me. S'h'd think he'd have more principle than t' play a trick on a pore feller what's jest stopped t' rest in his hole for a few hours."

He overturned the bench to peer inquiringly at the place where it had stood, then, straightening himself as well as he could—which was not very well—he looked slowly around the cavern. "It stan's to reason," he muttered thoughtfully, "that if airy one had come in whilst I was asleep I'd 'a' woke up, so the hermutt must 'a' done it. What a ghost kin want of a gun beats me, too! Why in thunderation didn't he take his ole flint-lock, if he was wantin' a gun so mighty bad, instead of sneakin' back t' rob a pore feller in his sleep! I wonder if the ole thing is loaded, anyway. There's a pair of eyes shinin' back yon in the corner; I ain't afeared of 'em, but I wisht he'd 'a' left my gun. Who's agoin' t' draw a bead on a pair of eyes in the dark with a

ole flint-lock that you have to build a bonfire around before the powder'll take fire?"

Clearly, as his drunken muttering told, he had caught the gleam of Guard's angry eyes, yet, it was evident, as he had said, that he was not at all afraid. Wild beast or tame, it was all one to him, that I well knew, for now that he was on his feet, and standing in the shaft of pale light streaming in at the cavern entrance, I recognized him as Big Jim.

Big Jim was a cowboy with a more than local fame for reckless daring, as well as for his unfortunate appetite for strong drink. I had seen him but once before, but I had been able on that occasion to render him a slight service. It did not seem to me, however, as I crouched trembling under the rock, watching his irresponsible movements, that the memory of that service would aid my cause with him just now, even if I were daring enough to recall it. People said that Big Jim never forgave any one who came between him and his whiskey bottle. Recalling this gossip, as the man staggered toward the corner where the rusty old musket stood, I decided that it was time to act. The flint-lock, even if loaded, would probably be as harmless in his incapable hands as any other iron rod, but under the circumstances it did not look particularly safe to linger.

As the man's back was turned I sprang suddenly to my feet. "Seek him, Guard! Take him!" I cried, and Guard literally obeyed. Startled and sobered by the sound of a voice, Big Jim whirled around, facing the direction whence the voice came, to be met by the dog's fierce charge. Guard's leap was so impetuous that the man staggered under it, and, losing his balance, fell to the floor. Guard fastened his teeth in the skirt of his coat as he fell. There was a momentary struggle on the floor. While it was taking place I darted out of the cavern, revolver, cartridge-belt, and even the empty whiskey bottle in my hands. Safely outside, I halted, and with what little breath I had left whistled for Guard. A load was off my heart when the dog came bounding to my side, none the worse for his brief encounter with an unarmed cowboy.

I had hoped to get out of sight before Big Jim discovered me, but he came out of the cavern on Guard's heels. Evidently quite sobered, he stopped

when he saw me. He glanced at the armament in my hands, at the empty bottle, and, lifting his hat with its great flapping brim, scratched his head in perplexity. It was still raining, a fact which Big Jim seemed suddenly to discover.

“Wet, ain’t it?” he observed.

“Rain is usually wet,” I informed him, with unnecessary explicitness.

“Yes, I reckon ’tis. Say, that’s my bottle you’ve got in your hands.”

“So I supposed.”

“You’re welcome to the whiskey—I see it’s gone, and ’tis a good thing to take off a chill—when a body gets wet—but I’d like the bottle again.”

“I am going to put the bottle and the revolver and the belt in the hollow of the big pine near the lower crossing. You can get them there.”

“Oh, ain’t you goin’ t’ give ’em to me now?”

“No, I am not.”

“’Fraid of me, I reckon.”

“Yes, I am.”

“I won’t hurt you, Miss Leslie Gordon. I remember you first-rate. Got that little white handkercher that you done up my hand in the day I burned it so at the Alton camp yet.”

“You might not hurt me, but I think you would hurt my dog.”

“Yes, Miss Gordon, I’m ’bleeged t’ say that if I had a shootin’ iron in my hands jest now I’d be mighty glad t’ let daylight through that dog o’ yours. He’s too fractious t’ live in the same country as a white man.”

I grasped the revolver tighter. “How came you in the cavern?”

“Well, if you want t’ know, I took a drop too much at the dance last night, an’ the ole man, he’d said if sech a thing as that ar’ took place again he’d

feel obligated t' give me the marble heart. Mighty cranky the ole man is. So I jest wended up here along, thinkin' I'd bunk with the ole hermutt till I got a little nigher straight. It's a thing that don't often happen," he added, in self-extenuation; "but the party, it done got away with me. Now you know all about it, an' you'd better hand over them weapons."



"YOU BETTER HAND OVER THEM WEAPONS!"

(Page [220](#))

In spite of his civility, he was plainly angry, and I was the more resolved not to yield. The storm had been gradually lessening, the rain had subsided to a mere drizzle, and, in the increasing silence, I plainly heard the musical tinkle of old Cleo's bell. It came from beyond the ridge, so that it was certain that the cows were in the little green valley where I had hoped to

find them. I started to climb the ridge, remarking over my shoulder to the baffled cowboy, “You’ll find your things in the pine, where I told you.”

“Say, now, don’t make me go down there on the high road!” he pleaded; “some one might see me and tell the boss. I won’t touch the consarned dog if you’ll give me the gun; I won’t, honest! The boss, he thinks I’m on the range now, an’ it’s where I had ort to be.”

I was sorry for him, but my fear was greater than my sympathy. Guard had torn the skirt of his coat in such a manner that it trailed behind as he walked, like a long and very disreputable pennant, and I could not be blind to the malevolent looks that he turned on my canine follower in spite of his fair promises.

“I never heard of any one’s being the better for drinking whiskey,” I volunteered, as a bit of information that might be of interest to him. Then I started on again, to be brought to an abrupt halt by hearing a voice on the trail below calling in a tone of piercing anxiety:

“Leslie! Leslie! Leslie!” The voice was Jessie’s.

“Jessie, I am here!” I called back re-assuringly, and ran down in the direction of the voice, leaving the cowboy staring.

In a moment I came face to face with my sister as she panted, breathless, up the trail.

“Oh, Leslie! Leslie!” she gasped. “What a chase I have had after you!”

“Why did you follow me? I have the cows—or they have themselves—and your skirts are all wet.”

For answer, Jessie gazed at me with an expression curiously compounded of horror and dismay.

“The coat! Where is the coat?” she gasped.

I remembered then that in my eagerness to escape from the cave I had left the coat lying as I had used it, rolled up for a pillow.

“It’s in the Hermit’s cave,” I said meekly, ashamed to admit that I had forgotten the thing that she held so sacred that, for its sake, she had followed me in the rain for some toilsome upward miles.

“Go back and get it instantly, instantly!” cried my usually calm sister, wringing her hands in distress. The distress was so unnecessarily acute for the cause that I resented it.

“The coat is all right, Jessie; it is safe; and I do not want to go back there now.”

“Why not?”

I told her.

“You must!” said Jessie, with whitening lips. “You must! Come!” and she rushed up the trail toward the cavern.

“What have you done with Ralph?” I asked, hurrying after her. Jessie turned an anguished glance back at me over her shoulder.

“I have left him locked up in the house with a pair of scissors and a picture book; hurry!”

“I hope they’ll keep him from thinking of the matches,” I said, bitterly. It seemed to me at that moment that Jessie showed more concern for the out-worn garment of the dead than she did for the safety of the living.

Big Jim had gone back into the cavern; he, too, had evidently been searching it, for when, at the sound of our approaching footsteps, he appeared at the entrance, it was with father’s coat in his hands. Jessie went boldly to his side.

“I want that coat, if you please,” she said firmly.

Jim backed off a little, holding the coat out at arm’s length, and examining it critically.

“Whose is it?” he asked.

“It was my father’s; it is ours; please give it to me.”

Big Jim shook his head. “No; your dog done tore my coat half offen my back; your sister made way with my tonic—I’m ’bleeged to take it for my lungs—an’ she’s got my gun an’ fixin’s, an’ won’t give ’em up. I reckon as I’ll jest keep this coat till she forks them things over.”

“Give him his things, Leslie,” Jessie commanded.

“No,” I remonstrated; “no, Jessie, if I do he will shoot Guard; I’m sure of it.”

Jessie turned on the dog: “Go home! go home, sir!” she cried, stamping her foot. Guard slunk off, his tail between his legs, and his bright eyes fixed reproachfully on me. I threw the gun with its trappings at the cowboy’s feet. “There, take them! You can shoot me if you like. I threw away your whiskey.”

“I wouldn’t ’a’ cared a bit if you’d ’a’ drunk it, as I reckoned you did,” Jim returned with a light laugh, as he picked up the gun. “I ain’t agoin’ to hurt you; tole you so in the first place. Got your little handkercher yet, I have. Here’s the coat.” He tossed it into Jessie’s outstretched arms. Claspings it tightly to her breast she started quickly down the trail.

Following her for a few steps before taking my way over the ridge, I observed that her hands were wandering swiftly over the coat, from pocket to pocket; as if seeking something. Suddenly the expression of intense anxiety on her face gave way to one of unspeakable relief. She turned around quickly and caught my hand: “Come on, you poor, abused girl! Let’s run, I am so anxious about Ralph.”

“I’m glad you’ve got some affection left for him!” I retorted scornfully. “It seemed to me from the way you’ve gone on, that you cared less for either of us than for father’s old coat.”

Jessie gave the hand that lay limply in her’s an ecstatic little squeeze. “Our money, Leslie, is all in a little bag that is pinned in the lining of this old coat; it’s here now, all safe.”

I could only gasp, as she had done before me, with a difference of names, “Oh, Jessie!”

“Yes,” Jessie repeated, nodding, “and it’s quite safe, I can feel it. Our cowboy friend did not have time to find it. I only hope that Ralph has not got into mischief.” He had not. I was obliged to leave Jessie and go over the ridge for the cows, but she told me, when I presently followed her into the house, that she had found Ralph still contentedly destroying his picture book.

CHAPTER XVIII

A VITAL POINT

It was the day but one after our exciting trip to the Water Storage Reservoir when, as we were busy about our usual work, our attention was attracted by a loud voice at the gate, shouting: "Whoa! Whoa, sir! Whoa, now, I tell you!" and I was guilty of a disrespectful laugh.

"There comes Mr. Wilson, Jessie. You can always tell when he is coming, for he begins shouting to his horses to stop as soon as he sights a point where he wishes them to halt. Evidently he is intending to call on us."

"Good morning, young folks, good morning!" was the hearty salutation, a moment after, as our neighbor himself stood on the threshold.

"No, I can't stop," he declared, as usual, when Jessie offered him a chair. "If I set," he continued, "I shall stay right on, like a big clam that's got fixed to his liking, prob'ly, and I've got a heap to do to-day."

Nevertheless, he dropped easily into the seat as he continued:

"Day after to-morrow's the day, I s'pose?"

"Yes," Jessie responded, dejectedly, "it is."

"Hu—m—wal', wal', you don't seem real animated about it, if you'll excuse my saying so. I swan, I 'lowed you all would be right pleased to think the long waiting's so nearly over."

"It isn't that," Jessie told him, trying to keep her lips from quivering, "but—Joe has gone."

"What!"

Jessie repeated the statement.

“Pshaw! Now, that’s too bad!” Mr. Wilson exclaimed, rubbing his hair upright, as he always did when perplexed. “Wal’, I don’t know when I’ve heard anything more surprising,” he continued, when Jessie had detailed the manner of Joe’s disappearance to him; “I’d a banked on that old man to the last breath o’ life. And he’s gone! Appearances are all-fired deceivin’, that’s so, but don’t you grieve over it, girls; it’ll all come out all right in the end. The old man has stayed right by you and helped you good since your pa was taken, but we must remember that he never was in the habit of tyin’ himself down to one place before this, and, more’n likely’s not, his old, rovin’ habits have suddenly proved too strong fer him, and he’s jest lit out because he couldn’t stan’ the pressure any longer.”

“But Joe is so faithful; he has always been just like one of the family, and he knows so well how badly we need him,” I objected; “it does not seem possible for him to have deserted us.”

“Desert is a purty ha’sh word, Miss Leslie. There’s some mystery about it, take my word for it. Joe’ll be back again, and when he comes I’ll guarantee that he’ll be able to give some good reason for going away.”

Jessie shook her head, tearfully. “I don’t believe he will ever come back,” she said.

“Wal’, s’pose he doesn’t? I reckon you two ain’t goin’ to let go your grip on that account. But troubles do seem to kind o’ thicken around you! That’s so.”

He paused a moment, musing over our troubles, and Ralph took advantage of his silence to call his attention to the kitten with which one of the neighbors had presented him to the jealous torment of his old playfellow, the big cat: “My new tat tan wink wiv bof he eyes, see?” he proclaimed, holding the animal up for inspection.

“Yes, yes, I see, little feller,” was the absent reply.

Encouraged, Ralph put the kitten on his lap. “Her won’t bite; ’oo needn’t be ’fraid,” he said.

Mr. Wilson stroked the small cat mechanically and then lifted it to the ground—using its tail for a handle, to Ralph’s speechless indignation—then he faced us again, his forehead puckered with anxious wrinkles: “There’s one thing that I never thought of until early this morning—when I did, I hurried through with my chores and came right over here. It’s a stunner to find that Joe’s gone, now, in addition to all the rest, but we must keep a stiff upper lip. Fact is, I’m to blame for not thinking of this thing six weeks—yes, three months ago. I ought to have thought of it, children,” he swept us all with a compassionate glance, “the day that your father died. I’d be willing to bet a big sum, if I was a betting man—which I’m thankful to say that I ain’t—that Jake Horton thought of it, and has kept it well in mind all along; he ain’t the man to overlook such a thing as that.” Wiping his perplexed face with the red silk handkerchief that he always kept in his hat for that purpose, he continued, desperately: “This claim was taken up, lived on, built on, notices for proving up by Ralph C. Gordon. Ralph C. Gordon! Wal’,” he ran his fingers again through his iron-gray hair, making it stand more defiantly upright than ever, “there ain’t no Ralph C. Gordon!”

The point that we had overlooked, presented to us now, for the first time, almost on the eve of our proving up, was of such vital importance, as it occurred to our awakened understanding, that, at first, we could do nothing but stare at each other, and at him, in stunned dismay. But hope, as that saving angel will, stirred, and began to brighten as our friend proceeded.

“There are ways,” he said. “I’ve been thinking of some of ’em; but I am desperate afraid that none of ’em will do. The agent might, if he was disposed to be obligin’, transfer your father’s claim to you, Jessie, if you could swear that you are the head of a family, and that’s what you can’t do—not as the law requires it, you can’t. The law don’t recognize any one as the head of a family until of legal age. Even if you were of legal age, the agent might refuse, if he saw fit. If he should, all that you can do will be to file on the claim again and go in for another five years’ tussle with the homesteading problem. ’Pears like there was a pretty fair prospect of your whole family coming of age before another siege of homesteading is ended. Why didn’t I think of all this before? ’Cause I’m an old wooden head, I s’pose! No, I’m mighty afeared that the only thing we can do is for you to

jest go down and file on the land in your own name, and say nothing about age, if the agent asks no questions. As I said before, you'll be old enough for anything before it comes time for a second proving up."

Jessie, who had been listening intently, here suddenly interposed with sparkling eyes, "I'm old enough now, Mr. Wilson, or, at least, I shall be to-morrow. To-morrow is my birthday, and I shall be eighteen!"

Mr. Wilson sprang up so suddenly that he overturned his chair, and sent Ralph's new pet scurrying from the room in wild alarm.

"Hooray for us!" he cried, seizing Jessie's hand. "The Gordons forever! Now we're all right. I've felt certain all along that the agent would give you a deed if he could, but he couldn't if you were all under age. 'Twouldn't 'a' been legal. But if one of you is of legal age, the homestead business is settled."

"But suppose he should refuse to give us a deed on account of the claim's standing in father's name?" Jessie asked.

"In that case the thing to do is to file on it again, right there and then, in your own name—strange, ain't it," he interjected, suddenly, "that the law 'pears to declare that a girl's as smart at eighteen as a boy is at twenty-one? Wal', the law don't know everything; you must go down there day after to-morrow, prepared to enter the claim again, though I do hope it won't come to that."

"That will cost a good deal, too, won't it?" Jessie inquired, dejectedly.

"Yes; it will. I don't see but you must go down with money enough not only to pay up the final fees, but to file on the land again in case of the agent's refusal."

"Will that take more than the fees would amount to?" I inquired.

"Bless you, yes! I don't know jest how much, but a right smart. How much have you got now?"

It needed no reckoning to tell the sum total of our painfully garnered hoard. Mr. Wilson shook his head when Jessie named the sum total. "Not enough; not enough, by half! And, as the worst luck will have it, I'm clean out of money myself jest now. I declare, I don't see where my money all goes! It don't 'pear to matter how much I may have one day, it's all gone the next; beats all, it does!" He looked at us solemnly, sitting with his lips pursed up, his hair standing bolt upright, and his brows knit over the problem of his own financial shortage, yet, to one who knew him, no problem was of easier solution. Up and down the length and breadth of the valley, in miner's lonely cabin, in cowboy's rough shack, or struggling rancher's rude domicile—wherever a helpful friend was needed, Mr. Wilson was known and loved, and, if money was needed, all that he had was freely given. So it was no surprise to learn that he was suffering from temporary financial embarrassment at a time when he would have liked, as usual, to help a friend.

"Say," he suddenly exclaimed, starting from his troubled reverie; "in order to make all safe, you've got to have money enough to file on that land when you go down; there's no 'if's' nor 'and's' about that! Your father would never 'a' hesitated a minute about borrowing the money for such a purpose, if he had it to do. Now, Jim Jackson—over Archeleuta way—he's owing me quite a consid'able. I'll go over there to-day and see what I can do with him. He'll help us out if he can, but he's been having sickness in his family, and maybe he can't; we'll have to take our chances. I do' no's a hold-up is ever justifiable," he continued, with a humorous twinkle in his bright eyes; "but if it is, this would be one of the times. I hope we won't be drove to that!"

He took his departure shortly after, going back home to exchange his team—to the detriment of his own affairs, I'm afraid—for a saddle-horse, the better to perform the somewhat hazardous journey up "Archeleuta way," but, before going, he enjoined us, if we had any written proof of Jessie's coming of age on the morrow, to look it up and have it in readiness to offer in evidence, in case the fact were questioned.

"Your coming of age to-morrow is of so much importance that it seems almost too good to be true," he said, earnestly.

So, after he had gone, Jessie took the big family Bible down from the book shelf, and, opening the book, turned to the pages where the Gordon family record had been carefully kept for many years. We knew, of course, that there could be no mistake, but it was pleasant to see the proof of our security in indisputable black and white.

“I’m afraid that Mr. Wilson will get nothing out of the Jacksons,” Jessie remarked, as we turned away from a prolonged inspection of the record; “he has had bad luck, and I heard, the other day, that Ted had broken his arm.”

“I’m not going to be afraid about anything now,” I declared valiantly. “I’m sure we’ll come out all right. Mercy on us! What was that?” I broke off, as a chorus of mingled outcries came to our ears. Outside the doorway there appeared to be, judging by the sound, a lively commotion, in which cat, dog, and boy were each bearing a part. We ran out in alarm and found Ralph just picking himself up off the ground upon which he seemed to have been thrown with some force.

Ralph, unnoticed in the interest of our talk with Mr. Wilson, had been amusing himself in his own way. His way had been to overturn the empty bushel basket and put it over Guard, who was lying by the doorstep. Guard had submitted to imprisonment with placid indifference until it came to Ralph’s thrusting the new cat in with him; this he instantly resented, so, to insure the dog’s staying within, Ralph had climbed upon the basket. Whereupon Guard sprang up, overturning both jail and jailor. The liberated cat fled with all speed, and Guard walked off in disgust.

“What on earth are you trying to do?” I demanded.

Ralph raised his violet eyes soberly to my face as he replied: “Us was havin’ a round-up; now us all ’tampeded,” and the violet eyes were drenched with raindrops, as the little cattleman threw himself on the ground, sobbing.

“Never mind, darling, your herd will all come home,” I said, consolingly.

“Me don’t want ’em to tum back; me’s so mad!” was the uncompromising reply.

CHAPTER XIX

MR. HORTON MAKES US A VISIT

Late that same evening Mr. Wilson called again. He was on his way home, and stopped to tell us—with evident chagrin—that his mission had been a failure.

“You’ll have to take the trail in the morning, Leslie, and see what you can do,” he said, as he went away.

The cows broke out of the corral that night, and it took so long to hunt them up, get them back into the corral, and milk them, that it was quite the middle of the day when I was ready to start out on my unwelcome business. Try as I might to convince myself to the contrary, the effort to borrow money seemed to me, somehow, akin to beggary. In my heart I had a cowardly wish that Joe had been on hand to take my place, but I kept all such reflections to myself. I had changed my print dress for the worn old riding habit of green serge, and was about starting for the barn to get Frank, when Jessie remarked:

“While you are hunting for a chance to borrow money, I’ll be earning some. If I can finish this work to-day—it’s Annie Ellis’ wrapper—I’ll have two dollars to add to the fund. Why, Leslie, I’d pretty nearly sell the dress off my back to raise money to-day!”

“Well, I know I’d do that, with half the reason for it that we have now. Dresses are a bother, anyway”—my habit was too short and too tight, not having kept pace with my growth—“but, all the same, I hate to see you working so hard. You’ve really grown thin and pale lately,” I added.

“It won’t be for long; I’ll soon be through with it now—” Jessie was beginning, when a cheerful voice from the doorway echoed her words:

“No; it won’t be for long! That’s a comfort, ain’t it?”

We both started. We had been so engrossed that we had heard no one approaching, and, even if we had, we could scarcely have been less startled, for the man leaning comfortably against the door-jamb was Jacob Horton. It had been many weeks since he had, to our knowledge, set foot on our premises.

“Good morning, Miss Jessie and Leslie,” he began affably. “Nice morning, ain’t it? I’ve been living in this valley going on eight year, and I don’t recollect as ever I see a nicer mornin’ than this is.”

He put one foot upon the door sill—a suggestive attitude—but neither of us invited him to enter. He was not easily daunted, however. The hand that rested against the door-jamb was still bandaged, and, as I made out with a swift glance, a button was still missing from his coat. It was the coat that he had worn on the night that he had ostensibly salted the cattle in the far pasture. From his point of observation Mr. Horton, turning slightly, threw an admiring glance around. The glance seemed to include the outer prospect as well as the inner.

“This is a sightly place for a house, ain’t it?” he remarked. “I do’no—I really do’no but I’d like that knoll t’other side the river just as well, though, and it would be nigher the spring. I’ll speak to my wife about it; if she likes this spot better, why, here our house goes up. I shan’t object. We can move this contraption that your father built, back for a hen house, or a pig-pen; just as she says. I always try to please my wife.”

“When you get ready, perhaps you’ll kindly tell us what you are talking about, Mr. Horton,” Jessie said, rising from the sewing machine and going toward the door, whither I followed her.

“Tell you? Oh, yes, I forgot. Of course you girls can’t be expected to know—young as you be—that you can’t hold this claim. This claim was open for re-entry the day that your father was drowned. I wasn’t ready to take it up just then; I am ready now. Odd, ain’t it? I’ve been hearin’ some talk—my wife told me, in fact—that you girls had laid out to go down to the land office with your witnesses to offer final proof to-morrow; Well, now—he,

he! That's a reg'lar joke, for if you'll believe it, to-morrow's the day I've set to go down and file on this claim, 'count of it's being vacant! I don't s'pose, now, that you girls are reely in earnest about trying to keep the place? It would be a sight of trouble to you, even if the law would allow it, which it won't."

"Why not, Mr. Horton?" I asked.

"Why not? Wal', I don't know just why; I didn't make the homestead laws—reasonable laws they be, though; I couldn't 'a' made better ones myself—but I can tell you two girls one big, fundamental clause, so to speak, of the Homestead Act, under which you don't come—yes, two of 'em. First, foremost, and enough to swamp your whole outfit, if there was nothing else, you ain't neither of you of age. Second, not being of age, you ain't neither of you the head of a family."

I looked at Mr. Horton's bandaged hand, and a thrill of genuine delight went through me, as I hastened to dispute one of his fundamental clauses.

"Jessie is the head of a family, Mr. Horton—Ralph and I are her family."

"Maybe! Maybe! I s'pose, no doubt, you regard yourselves in that light. No harm's done, as long as you keep it to yourselves, but you'll find that the law won't recognize you in that way. The law's everlastin' partic'lar about such things. But, again, there's the matter of your both being under age! Now, what a misfortune that is to you—s'posing that you're in earnest about wanting to keep this place, but I reckon you ain't—if you recollect, you two, I've always said that I'd have this place. It may save you some trouble and expense, if I say right here and now, that I mean to have it! I mean to have it! Don't forget that! But I ain't a hard man—not at all—and I'm willing to make it as easy as I can for you. Why, I could 'a' filed on this any time since your pa died, but I didn't, and why not?"

"If you ask me," I said, speaking very quietly, though I was trembling with indignation, "I suppose you didn't file on it because you thought it would be better to let us get a crop in before you did it; then you could steal the crop along with the place."

“Leslie!” Jessie exclaimed, aghast.

But Mr. Horton’s thin lips parted in a wolfish smile. “Oh—ho! you’re up on the homestead laws to some extent, I see. Crops do go with the land when the claimant forfeits his right to the land that bears them. Your father, he forfeited his right by getting drowned, and no one has entered the claim since, so I’m about to enter it. As I said before I ain’t a hard man, and I’m willing to make it as easy as I can for you, so I’ll tell you what I’ll do. I’ll pay a fair price for such improvements as your father made. They don’t amount to much—”

“But if you should decide to commute the claim, instead of waiting five years to prove up, it would be worth a good deal to you to be able to swear that such and such things had stood on the place so long, which you could not do if we took our improvements away; for we have a right to remove whatever we have built, if we do not keep the claim.”

Mr. Horton’s narrow eyes rested on me with anything but a friendly expression. “You’re posted quite a consid’able; ain’t you, Miss Smarty? Pity you didn’t know jest a little mite more. Well; we won’t quarrel over a little thing like that. I’ll pay for the improvements, and you’ll jest leave ’em where they are. This house, now, I’ll take a look at it; it don’t amount to much, that’s so, but such as ’tis, I’ll look at it.”

“You are welcome to do so,” Jessie assured him.

I think it came into her mind, as it certainly did into mine, that he wished to ascertain if the house were not lacking in some one or more of the essential equipments of a homesteader’s claim. If he should discover such a lack his task would be all the easier. I ran over a hasty, furtive inventory on my fingers: “Cat, clock, table, chairs, stove—”

The cat was lying comfortably outstretched on the window ledge, her head resting on the open pages of the Bible, that we had both neglected to replace. The clock ticked loudly from its place on the mantel-piece; there was a fire in the stove, and, absorbed in staring, Mr. Horton stumbled over one of the chairs. The result of his inspection did not please him; he scowled at the cat, who resented his glance by springing from the window

and hissing spitefully at his legs as she passed him on her way out. Her sudden spring drew our visitor's attention to the book on which her head had been resting; the written pages attracted his notice.

"What's that?" he demanded, going nearer, the better to examine them.

"That is our family Bible," Jessie replied, laying her hand upon it reverently. "This"—she looked up at him with a kind of still, pale defiance—"this is the Gordon family record! It has been kept in these pages since the days of our great-great-grandfather, and"—she turned the book so that Mr. Horton's eyes rested on the entry—"it may interest you to know that I am eighteen, of legal age, to-day."

Mr. Horton's jaw dropped, and for a speechless instant he looked the picture of blank amazement, then he rallied.

"Records can lie," he declared, brutally. "You don't look eighteen, Jessie Gordon, and I don't believe you are. It's a likely story, ain't it now, that you should happen to be of age on the very day, almost, that it's a matter of life or death, as one might say, that you should be! No, that's too thin; it won't wash. You've made a little mistake in your entry, that's all. One of them convenient mistakes that folks are apt to make when it's to their interest to do so."

"As there is no man here to kick you out of the house, I suppose you feel at liberty to say whatever comes into your wicked head, and we must bear it!" Jessie said, her voice shaken with anger.

In spite of himself, Mr. Horton winced at that. "I ain't one to take advantage of your being helpless," he declared, virtuously. "You've no call to hint as much. But you know as well as I do that you don't look a day over sixteen, if you do that, and you couldn't make nobody—no land agent—believe that you are of age, if you didn't have that record to swear by."

"As we do have it, it will probably answer our purpose."

"Oh, well; maybe 'twill; maybe 'twill!" his glance ranged up and down the window, where lay the book with its irrefutable evidence. Then his eyes fell, and his tones changed to blandness once more. "I must be going," he

announced, edging toward the door; “I was passing along, and an idee popped into my head. You’ve been to some expense in helping to find your pa’s body—though why you should ’a’ been so set on finding it, nobody knows; folks is so cur’ous, that way! If it had been my case, I reckon my folks would ’a’ had sense enough to leave me where I was—”

“I am sure they would—gladly!” I interposed, quickly.

Mr. Horton shot an evil glance in my direction, and went on: “Well, you’ve been to some expense, and the mines have shut down so’s ’t that old crackerjack of a nigger that hangs ’round your place is out of work. I’m going to pre-empt this place—none o’ your slack-twisted homestead rights for me—and I thought it would be neighborly if I was to step in and tell you, Jess, that my wife’s wanting a hired girl. She was speaking of it last night, and the thought came into my head right off, though I didn’t mention it to her, that you was going to need a home, and there was your chance. Being so young and inexperienced—for you don’t look eighteen, no—I reckon you’d be willing to work without any more wages than jest your board and lodging until you had kind o’ got trained into doing things our way.”

“I’m afraid that I should never earn any wages at anything—not if I were to live a thousand years, if I had to be trained to do things your way first!” Jessie told him, with flashing eyes.

“Oh, that’s all right; you’ll get over some of your high notions when you get to be a hired girl. You’ll prob’ly acquire the ornament of a meek and quiet spirit, same’s the Bible speaks of, and it’s one that you ain’t got at present. As for you”—he turned on me savagely, and it was evident that he held me in even less esteem than he did my sister—“you can get out, and that brat”—he glared at Ralph, who had drawn near, and was regarding him with a kind of solemn, impersonal interest—“you can get shet of him easy enough—you can send him to the poor-house.”

CHAPTER XX

GUARD MAKES A MISTAKE

Mr. Horton was returning to the charge when I eagerly caught at an opportunity that now presented itself, of speeding his departure. He was standing with his back to the open door, and had not observed, as we did, that his horse—contrary to the usual habit of mountain ponies—was not standing patiently where his master had left him.

Weary of waiting, he was walking away along the homeward road as rapidly as the dangling bridle reins would allow.

“Mr. Horton,” I said, “your horse is leaving.” A wicked impulse forced me to add: “I am sure you would hate to lose your horse here—as you did a coat button, one night not so long ago.”

It was a reckless speech to make, as I felt when I looked at him. His face turned of a livid pallor; he looked murderous as he stood in his tracks, glaring at me. He was, I am certain, afraid to trust himself to speak, or to remain near me. He bounded out of the house shouting “Whoa! Whoa!” as he ran. Guard was dozing by the doorstep. Mr. Horton’s action and call were so sudden that he sprang up, wide awake, looking eagerly around, under the impression that his services were in requisition. Though nearly full grown he was still a puppy, with many things to learn. The horse, also startled by Mr. Horton’s outcry, raised his head, turning it from side to side as he looked back in search of the creature that had made such a direful noise. He quickened his pace into a trot, checked painfully whenever he stepped on the trailing bridle.

An older and wiser dog than Guard, seeing the saddle and the trailing bridle, would have known better than to attempt to practice his “heeling” accomplishments on the animal that wore them. But Guard, eager to air his lately-acquired knowledge, stopped for no such considerations. Passing Mr.

Horton, who was running after the horse, like a flash, he made a bee-line for that gentleman's mount. Reaching the animal, he crouched and bit one of his heels sharply. As the horse bounded away, he followed, nipping the flying heels and yelping with excitement. Mr. Horton toiled along in their rear and I ran after him—not actuated by any strong desire to come to his assistance, but in fear of what might happen should he succeed in laying hands on Guard. The very set of his vanishing shoulders told me that he was purple with rage and fatigue, and I had good cause to fear for the safety of the dog, to whom I called and whistled, imploringly. After a chase of about half a mile, Guard, making a wide detour around Mr. Horton, came slinking back to me. He was evidently troubled with misgivings as to the propriety of his conduct, and crouched in the dust at my feet, looking up at me with beautiful beseeching eyes. “You did very, very wrong!” I admonished him, earnestly. “You are never—ne-ver—to heel a horse that has a saddle or bridle on. Do you understand?”

Guard hung his head dejectedly, his bright eyes seeming to say that he understood, and would profit by the lesson.

Returning to the house I went in again instead of mounting the waiting horse and getting about my delayed errand.

“Did Mr. Horton catch his horse?” Jessie inquired.

“I don't know; I hope not, I'm sure. I think a five-mile walk will do him good. He'll have time to cool off a little.”

“He thinks that we have made a false entry here,” Jessie went on, resentfully, approaching the window ledge and turning the leaves of the record. “Why,” she continued, “it does not seem to me that even a hardened criminal would dare to do a thing like that! And I'm not a hardened criminal—yet. I am not sure but that I might become one if I am obliged to see much of Mr. Horton, though!” She closed the book and, stepping up on a chair, laid it on the shelf where our few books were kept. When she stepped down again she had another book in her arms. It was a large, square, leather-bound volume, almost identical in appearance with the one that she had just laid away.

“What are you looking in the dictionary for?” I asked, as she laid the book on the broad window ledge that made such a convenient reading-desk.

“I want to know exactly what ‘fundamental’ means,” she replied. “I know pretty well, or I think I do, but I want to know exactly.”

Finding the word, she presently read aloud:

“‘Fundamental—pertaining to the foundation; hence, essential, elementary; a leading or primary principle; an essential.’”

“Well, that’s plain enough,” she said, closing the book; “but I think we have looked out for fundamental clauses pretty faithfully. I wish that Joe was at home; we must get an early start to-morrow. It is foolish to feel so, when we know just how matters stand; but, somehow, Mr. Horton’s threats have made me uneasy.”

“No wonder! The very sight of him is enough to make one shudder. But I don’t see that there is anything that we can do, more than we are doing, Jessie.”

“You might ride over, since you are going out anyway, and tell Mr. Wilson what Mr. Horton has been saying. If you call on Mr. Drummond, who is our main hope for raising the money, you’ll pass Wilson’s, anyway.”

“Oh, yes! I’ll see him, sure; and now I must be going.”

I went out accordingly, observing in an absent way, as I left the room, that, since no fundamental clause required Jessie to replace the dictionary on its shelf, it was still lying on the window-ledge.

I rode immediately over to Mr. Wilson’s, and was fortunate in finding him at home. He promised to “turn the thing over in his mind,” and, if there seemed to him, as a result of this process, anything, any new move, called for on our part, to ride over during the day and let us know.

Then I went on to the two or three places that we had in mind as most promising, if one desired to raise money, and failed distinctly, in every case. It was, as one of the ranchmen feelingly explained, “a dry time; between

hay and grass. Too late for the spring round-up and too early for the fall harvest." Every one was, accordingly, lacking in ready cash.

I returned home, not greatly dejected by my failure, since, thanks to Mr. Wilson, I had so well understood the existing conditions before starting out that I would have been surprised if I had succeeded.

Joe being still absent, I was obliged to care for Frank myself. When, in the dusky twilight, I at length entered the house, it was to find little Ralph already fast asleep and Jessie about starting for the corral with the milk-pail.

"Haven't you got the milking done yet, Jessie?"

"No; I waited for Ralph to get to sleep and for you to come. Did you get any money?"

"No."

Jessie sighed. "I don't know, after all, that I much expected that you would. Well, if you can wait a little for your supper, come out to the corral and let me tell you what Mr. Wilson has been saying."

"Has he been here again?"

"Yes; he just left a few minutes before you came."

We went on out to the corral where the cows were waiting to be milked, Guard following after us with as much sedateness and dignity as if he had never contemplated, much less committed, a foolish act in his life.

CHAPTER XXI

A FRIEND IN NEED

Jessie seated herself on the milking-stool by old Cleo's side, while I leaned against the corral bars, watching her.

"You're tired, aren't you, Leslie?" she asked, glancing up at me, as under her nimble fingers, the streams of milk began to rattle noisily into the pail.

"Yes; I am, rather. I think I'm some disappointed too, maybe. What did Mr. Wilson say?"

"He said that my best plan—for it must go in my name, now—is to get to town to-morrow before Mr. Horton does, explain to the agent about father's death—he must have heard of it, Mr. Wilson says, but he is not obliged to take official note of a thing that has not been reported to him, and that he has only heard of incidentally—and ask him to make out the deed to me, as the present head of the family. Mr. Wilson says that I must be there, ready to tell my story, the minute the office opens. He hopes that, in that way, we may frustrate Mr. Horton, who is likely, he says, to be one of the very first on hand to-morrow morning. After I have explained matters to the agent, he will be forced to wait the arrival of my witnesses, of course, before he can do anything. But Mr. Wilson thinks that anything that Mr. Horton may say, after the agent has seen me, and heard my story, will be likely to work in my favor, it will show so plainly what Mr. Horton is up to. Mr. Wilson says that I had better take a horse and start for town to-morrow, just as soon as it is light enough to see."

"Twenty miles!" I said. "How long will it take you to ride it?" I knew how long it would take me, on Frank's back, but Jessie is less wonted to the saddle than I.

“It will take me nearly four hours, I should think, shouldn’t you?” She stopped milking while she looked at me, anxiously awaiting my reply.

“Just about that, Jessie.”

“It would kill me to keep up such a gait as you and Frank seem to both take delight in,” she continued. “So I must be poking along for four hours doing the distance that you could cover in two. The Land Office opens at seven o’clock—there’s a rush of business just now, Mr. Wilson says—and I must start not later than half-past two.”

“Dear me, Jessie, I hate to have you start out alone in the night, that way!”

“I don’t like it very well myself,” Jessie admitted. “But Mr. Wilson thought we’d better not say a word to any one about my going—lest it should get to Mr. Horton’s ears some way, and he will drive around later in the morning and pick up the witnesses and bring them down. Oh, and Leslie, above all things, don’t forget the Bible. Be sure to put that in the wagon when Mr. Wilson comes.”

“Certainly I shall! Do you imagine that I would forget the one fundamental clause of our proving up?”

“No, of course you wouldn’t. Mr. Wilson said that he would go down with me—we could drive his fast horse down in the light cart, if only Joe were here to bring down our witnesses. But he isn’t, and I must go alone.”

It was evident that Jessie did not relish the prospect of taking a lonely night ride.

“I will leave the money—what little there is of it—for Mr. Wilson to bring down,” Jessie presently remarked. “Then, if I am held up, we will have saved that much, anyhow.”

“And much good it will do us, with our fundamental clause in the hands of brigands,” I retorted laughingly. For, indeed, there was about as much danger of a hold-up as of an earthquake.

“What a fuss you are making, Guard—what’s the matter?” Jesse said, in a tone of remonstrance, as she resumed the milking. The dog had been looking toward the house, growling and bristling, for some minutes. His response to Jessie’s remonstrance was a tumultuous rush toward the house, around the corner of which he disappeared. Presently we saw him bounding away into the oak scrub beyond, apparently in hot pursuit of some retreating object, for his voice, breaking out occasionally in angry clamor, soon died away in the distance.

“I hope there isn’t another wildcat after the chickens,” Jessie remarked, as, the milking finished, we started toward the house.

“I don’t think it’s a wildcat,” I said; “from all the legends we have heard lately, a wildcat would have stood its ground: more likely it was a polecat.”

Entering the house that we had left vacant, save for the sleeping child in the bed-room, we were startled at sight of a dusky, silent figure, sitting motionless before the fire—for, in the mountain country, a blaze is always welcome after night-fall, even in midsummer. At the sound of our approaching footsteps the figure turned toward us a head crowned with white wool, and smiled benignly.

“Joe!” we both cried, in a breath.

“Joe I is!” returned the old man, placidly, stretching his gnarled hands toward the blaze, and grinning delightedly; “I reckon you all begin fur to projec’ ‘Whar’s Joe?’ long ’bout dish yer time o’ day, so I done p’inted my tracks in dish yer way.”

“It must have been you that Guard was barking at,” I said, stirring the fire into a brighter blaze.

“No; hit wa’nt me. I yeard his racketin’ as I come up along. Hit war’ some udder varmint, I reckons. What fur he want ter bark at me?”

“True enough. Well, we’re just awful glad you’ve come back, Joe,” Jessie told him. “Leslie has been out all the afternoon and she hasn’t had her supper. I waited for her before eating mine, so now I’ll fix yours on this little table beside the fire and we can all eat at the same time.”

Joe accepted the proposition thankfully, and, after seeing him comfortably established, we seated ourselves at the large table near the window. I was hungry after my long ride and fell to with a will, but I presently observed that Jessie ate nothing.

“Why don’t you eat your supper, Jessie?”

“I can’t,” she replied, pushing away her plate; “I’m so worried. Leslie, have you thought that if the agent refuses to issue a deed to us we shall have no home? I feel just sure of it, for we haven’t money enough to re-enter the claim, hire a surveyor, and all that.”

“Must there be a new survey made?”

“So Mr. Wilson says; he says that it will be the same, in the eye of the law, as if no entry had ever been made.”

“The eye of the law must be half blind, then!” I exclaimed, indignantly. “As if the survey already made and paid for, was not good enough, and when we know that a new one would only follow the same lines!”

“That’s just what I said to Mr. Wilson. He said that surveyors had to have a chance to earn their living, and this way of doing business was one of the chances,” Jessie replied, dropping her head dejectedly on her hand.

“Well; don’t let’s worry about it, Jessie dear, we must keep on hoping, as father used to say. He used to say, you know, that no one was ever really poor until he had ceased to hope. We will do our best and God will look out for the rest, I guess. I don’t believe He intends to let our home be taken from us. He wouldn’t have given us such good men for witnesses if He had.”

“Yes, they are good. If we were only able to borrow a little more money now I should feel quite safe. If we could just borrow money enough to—”

“Woe unto him that goeth up an’ down de lan’ seeking fur t’ borrow money! Borrowed money, hit stingeth like an adder; hit biteth like a surpunt! Hit weaves a chain what bin’s hit’s victims han’ an’ foot! Hit maketh a weight what breaks his heart, amen!”

In the interest of our conversation we had, for the nonce, forgotten Joe, who was quietly toasting his ragged shoes before the fire, until his voice thus solemnly proclaimed his presence.

“Dat’s w’at ole Mas’r Gordon, yo’ chillen’s gran’fadder, used fur t’ say, an’ hit’s true. Hit’s true! He knowed; Good Heaven, didn’t he know!”

There was the tragedy of some remembered bitter suffering in the old man’s voice, and, recalling father’s stern determination to endure all things, to lose all things, if need be, rather than to become a borrower, I felt that the misery hinted at in old Joe’s words had been something very real and poignant in the days of those Gordons, now beyond all suffering.

“Hit may be,” continued the old man reflectively, “dat I ain’ got all dem verses jess right, but dat was deir senses. W’at s’prises me, Miss Jessie, is dat yo’ alls is talkin’ ob wantin’ fur to borrow money, too. W’at fur yo’ wan’ ter borry money, w’en de’re’s a plenty in de fambly? A plenty ob hit, yes. W’at yo’ reckons I’s been doin’ all dese yer weeks, off an’ on? T’inks I’s a ’possum, an’ doan know w’en hit’s time ter come t’ life? Ain’ I been a knowin’ ’bout dish yer lan’ business an’ a gittin’ ready fur hit, ebber sense long ’fore Mas’r Ralph was took. I didn’t git drowned w’en he did—wish’t I had, I does—an’ long ’fore dat, I’s been sabin’ up my wages agin’ a time w’en Mas’r Ralph goin’ need ’em wustest. I reckoned he goin’ need ’em w’en hit comes to de provin’ up on dish yer claim. Hit doan tek’ much ter keep a ole nigger like me, an’ I ain’ been crippled wid de rheumatiz so bad until ’long dis summah, an’ so, chillen, I’s done got five hundred dollahs in de bank at Fa’hplay, fo’ de credit ob Mas’r Ralph Gordon—dat’s yo’s now, Miss Jessie, honey, cause yo’s ob age.”

Joe had remembered that important fact, too, it seemed. We could only stare at him in speechless amazement, while he concluded, abruptly: “So doan let’s heah no more fool talk ’bout borrowin’ money. We’s got a plenty, I tells yo’. I been a-keepin’ hit in de bank at Arnold—whar’ Mas’r Ralph an’ me stopped fur quite a spell ’afore we done come yer—an’ so, a few days ago, I done slipped ober to Arnold an’ drawed de money out, an’ put it in de bank at Fa’hplay, subject to de order ob Miss Jessie Gordon—dat’s yo’, honey,” he added, as if fearful that Jessie might not recognize herself under this

formal appellation. He was holding his coffee-cup suspended, half-way to his lips, while he looked at us exultantly, and then we both expressed our feelings in a characteristic manner. I ran to him, and threw my arms around his neck.

“Oh, Joe! Joe! you are an angel!” I sobbed, dropping my head on his shoulder.

“Maybe I is,” the old man admitted, stiffly, edging away; “but if dere’s airy angel, w’ite or black, w’at likes ter hab hot coffee spilled ober his laigs, I ain’ nebber met up wid him!”

“I’ll get you another cup, Joe,” I said, laughing, as I brushed away my tears. While I was getting it, Jessie clung to his rough old hand.

“God bless you, Joe! Oh, you have lifted such a weight from my heart! I don’t know how to thank you; but Joe, we’ll pay it all back to you! We will, if it takes the place to do it!”

Joe, freeing his hand from her clasp, rose to his feet—not stiffly, this time, but with a certain grave dignity. Motioning aside the coffee that I was bringing, he picked his ragged old hat up from the floor beside his chair, put it on, pulled it down over his eyes, and started for the door.

“’Fore Heaben! I wouldn’t ’a’ beliebed dat one ob Mas’r Ralph Gordon’s chillen gwine fur insult me like dis!” he muttered, huskily; “Talk ob payin’ me! Me, like I was a stranger, an’ didn’ belong to de fambly!”

“Wait!” cried Jessie, springing forward, as the old man laid a trembling hand on the door knob. “Wait, sit down, Joe, dear Joe, don’t desert us when we need you most! As for the money, God bless you for making sure of our home, for, of course, it’s your home, too, always, always! And I’ll never pay a cent of the money back; not if I use it all!”

“Yo’s gwine hab to use hit all, honey,” Joe returned, with a beaming face, as he resumed his seat. “Dere’s de fence buildin’ an’ breakin’ de new groun’, and de seedin’.”

“True enough! Oh, we shall come out all right, now, thanks to you, Joe.”

And Jessie spoke with the happy little laugh that we had not heard for a long, long time.

CHAPTER XXII

AN OPEN WINDOW

It was, apart from the pecuniary relief that his coming had brought us, a great satisfaction to have old Joe again with us. Remembering his habit of not speaking until he was, as he sometimes expressed it, “plumb ready,” we forbore to ask any more questions until he had finished his supper, and smoked his pipe afterward. Smoking is a bad habit, I know, but I am afraid that there are few good habits from which people derive more comfort than fell to Joe when he was puffing contentedly away at his old clay pipe. After a long interval of blissful enjoyment he knocked the ashes out of his pipe, pocketed it, and then remarked, rather wistfully, apparently to the fire as much as to either of us: “I reckons he’s fas’ asleep, shore’ nuff!” “He” meant Ralph, of course.

“Yes,” Jessie said, “he’s been asleep ever since a little while before dark.”

“Yo’ reckons hit gwine fur ’sturb him, jess fur me ter tek’ a look at him, honey?”

“Surely not, Joe.” Accordingly I took up a lamp, and stepped with it into the next room—the sitting-room, in which Ralph’s crib was stationed. The crib stood close to the window, which was open. I was surprised that Jessie had left it so, knowing, as she did, that Ralph caught cold with painful facility. Joe cast a disapproving look at the opening as we stood by the crib side, but, fearful of awakening the little sleeper, he said nothing. All children are lovely in their sleep, but as I held the lamp aloft, while we admiringly surveyed this one, I think the same idea occurred to us both—that never was there one more beautiful than our Ralph. Joe, cautiously advancing a horny fore-finger, softly touched the moist, dimpled little hand that lay relaxed outside the coverlet. Then he drew the coverlet a little closer over the baby sleeper’s shoulders, and, noiselessly closing the window, turned

away with a sigh that belonged, I felt, not to Ralph, but to some one whom he seemed to the old man to resemble.

When we were again in the kitchen, he said decidedly: "I 'clar fo' hit, Miss Jessie—fo' hit mus' 'a' been yo, w'at done hit; fo' yo' said Miss Leslie done been gone—I'se 'sprised fur to see yo' a-puttin' dat chile ter bed wid the winder beside him wide open, an' the nights plumb cole an' varmints a wanderin' roun'—"

"Why, Joe, what are you talking about? I never left it open. I'd be afraid that that cat of Ralph's would jump in and wake him, if nothing else. When it's open at all I'm careful to open it from the top; but it's so cool to-night that I didn't open it."

"I jess reckons yo' furgot ter shet it, honey," Joe insisted.

"I'm quite sure it hasn't been opened," returned Jessie, who did not give up a point easily. I could see, though I had no doubt that Joe was right, that the matter really puzzled her.

"Ralph, he de libin' picter ob Mas'r Ralph, w'en he was a little feller, an' hit in' no ways likely dat I gwine ter set still an' see Mas'r Ralph's onliest son lose his 'heritance; not ef I can holp it," Joe remarked reflectively, after Jessie had again proclaimed that she did not leave the window open.

The words reminded me of the danger which still threatened us, in spite of the providential help that Joe's coming had brought us.

A new idea occurred to me. "Jessie," I said, "there's nothing to hinder your going down to town as early as you please to-night, now that Joe has come, and Mr. Wilson will be left free to go with you."

Jessie sprang to her feet, as if she would go on the instant.

"That is so!" she exclaimed. "Oh, Joe, how glad I am that you came just as you did!"

The matter was then explained to Joe, who volunteered to go over at once to Mr. Wilson's and arrange to take his place in the morning, thus leaving him

free to go with Jessie.

It was past ten o'clock and the moon was just coming up over the tree-tops when Joe started on his two-mile tramp to Mr. Wilson's.

"You'd better take one of the horses," Jessie had told him.

"W'at fur I want ob a hoss? Rudder hab my own two footses to trabbel on—if dey is kine o' onsertain some times—dan airy four-legged hoss dat eber libed," Joe returned, disrespectfully.

Sure that our good neighbor would return with him, Jessie proceeded to make ready for the trip. We were not disappointed. After a wait of about an hour we heard the rattle of approaching wheels, and presently Mr. Wilson, with Joe in the cart beside him, stopped the fast colt before the gate.

"All ready, Miss Jessie?" he sang out in response to our eager greeting.

"Yes," said Jessie, "I'm quite ready."

"Climb right in, then, and we'll get well started before midnight. Whatever Horton does, he can't beat that, for we'll have our forces—part of 'em, any way—drawn up in battle array before the Land Office doors when they open at seven o'clock. We won't need to hurry to do it, either. We'll have time to brush up and eat our breakfasts like a couple of Christians after we get there."

"Had I better take the money with me?" Jessie asked.

"Certainly, all you can rake and scrape."

Jessie laughed gleefully; it was evident that Joe had not told Mr. Wilson of his recent financial transaction. When Jessie told him, he got up—the colt had been tied at the gate and we were all within doors again, in spite of Mr. Wilson's first entreaty to Jessie to "get right in"—crossed the room and held out his hand to the old negro.

"Shake, friend!" As Joe, rather reluctantly, I thought, for he was a shy old man, laid his black hand in Mr. Wilson's clasp, the latter continued: "I

reckon I know a man when I see one, be he white or black, and I tell you I'm proud to have the chance of shaking hands with you!"

Joe, furtively rubbing the hand that he had released—for, in his earnestness, Mr. Wilson had evidently given it a telling pressure—hung his head, and responded, sheepishly: "I reckons I'se be a whole Noah's Ark full of animals ef dish yer sort ob t'ing gwine keep on. Miss Leslie, she done call me a angel, and now yo' done says I'se a man. Kine o' ha'd on a ole feller like me, hit is!"

Mr. Wilson laughed good-humoredly.

"You're all right, Joe; we won't talk about it. And now, how is Miss Jessie to get the money?"

"I'se gwine draw a check on de bank in Fa'hplay to cobber de whole 'posit," returned Joe, with dignity; "I done axed the cashier 'bout hit, an' he tole me w'at ter do. He gin me some papers w'at he called blanket checks, an' tole me how to fill 'em out. I'se done been keepin' ob 'em safe." In proof of which statement Joe drew an old-fashioned leather wallet from an inner pocket of his ragged coat, undid the strap with which it was bound, and, opening it, carefully extracted therefrom two or three bits of paper, that a glance sufficed to show were blank checks on the First National Bank of Fairplay. While he was getting the checks out another paper, loosely folded and yellow with age, slipped from the wallet, falling to the hearth. As it fell there slid from its loose folds a soft curl of long, bright hair, of the exact hue of little Ralph's. Stooping, Jessie picked up the shining tendril, pausing to twine it gently around her finger before tendering it to Joe.

"Ralph's hair is a little darker, I believe, than it was when you cut this, Joe," she remarked, going to the light for a nearer view.

"Dat ar' cu'l didn' grow on dis Ralph's head, honey; I cut dat offen de head ob dat odder Ralph w'at's a lyin' in de grabeya'd, w'en he was littler dan dis one; an' I'se 'done carried dat cu'l close to my heart fo' upwa'ds ob fo'ty yeah," responded Joe simply, as he took the bit of hair from Jessie's finger, and carefully replaced it. "W'en I dies," he continued, "I ain' carin' w'at sort ob a berryin' I gets, ner w'at sort ob clo'se my ole body is

wrapped up in, but I'd like fur to be suah dat dish yer bit o' hair goes inter de groun' wid me."

He looked up at us, his beloved young master's children, solemnly and questioningly, as though exacting a promise, which was given, though no words were spoken on either side. Eyes have a language of their own.

"Now ef yo'll done fotch me de ink bottle, Miss Leslie, honey, I'se boun' ter fill out dish yer blanket check, same like de cashier done tole me," Joe went on with a business-like change of tone.

The ink bottle, with pen and holder, was produced and placed on the table which Joe immediately cleared for action by removing every article upon it until he had a clear sweep of some three or four feet, then he sat down and proceeded, slowly, slowly, to fill out the check in Jessie's favor. It was a task that required time and infinite painstaking. We had not known that Joe could write, and I am afraid that, even when he announced that the work was done and the check filled out, we were by no means sure of it, for wonderful indeed were the hieroglyphics through whose agency Joe proclaimed his purpose. There was one thing certain, however, no sane cashier, having once seen that unique signature, could for a moment doubt its authenticity.

Mr. Wilson glanced over the document, as Joe at length put it in Jessie's hand. "That's all right," he said, in his hearty, re-assuring way. "You've got it all as straight as a string, Joe"—which he had not, so far as mechanical execution went—"we'll have no trouble now. Put that away safely, Jessie, and let's be going."

"Shall we take the Bible now?" Jessie asked, after she had complied with his directions.

"Oh, no; time enough for that when Joe comes down. Put on a warm bonnet and shawl, now," he continued, "for the nights are chilly."

In the days of his youth women and girls wore bonnets and shawls, and I never knew him to refer to their cloaks or headgear in any other terms.

Jessie assured him that she was well protected, and Joe and I followed her and her sturdy escort out to the gate.

“Had Leslie better come down with the others to-morrow?” Jessie inquired after they were seated in the cart, and while Joe was tucking the lap robe around her feet.

“Oh, no! By no means. It isn’t necessary, and her being here will enable us to swear that the house hasn’t been vacant, day or night, since the claim was first filed on, and ain’t vacant even at the present minute. We can’t be too careful, you know. Good night to you both!”

He spoke to the colt; Jessie echoed his good night, and they were gone.

CHAPTER XXIII

ALONE ON THE CLAIM

Joe glanced at the clock as we re-entered the house, after the cart had disappeared down the road. "Now, if yo' gits right to bed, Leslie, chile, yo's gwine git right sma'ht ob sleep afore yo' has to git up ter holp me git stahted," he said.

It was past one o'clock. "I don't know, Joe," I returned. "It seems hardly worth while to try to sleep at all; we must get up so soon."

"Hit's wuf while ter git sleep w'enebber, an' wharebber yo' kin," the old man insisted, with the wisdom of experience.

Accordingly, I lay down on my bed without taking the trouble to undress—I was so fearful of oversleeping. For a long time I lay thinking of Jessie, on her hurried night ride, of old Joe, and the blessed relief that his coming had brought us, and, above all, of Mr. Horton and his machinations. I meant to be awake when the hour that Joe had suggested for rising struck. The hour was five o'clock, but it was well past, when a gentle tap on the door awoke me, and Joe's voice announced: "Hit's done struck fibe, Miss Leslie; yo's bettah be stirrin."

My reply was forestalled by a delighted cry from the crib, where Ralph was supposed to lie asleep: "Oho! Mine Joe is tum 'ome! Mine Joe is tum 'ome!"

I heard the negro shuffle quickly across the floor, and the next instant Ralph was in his arms and being borne triumphantly into the kitchen. The friendship between the two was mutual, and it was not at all surprising that Ralph was beside himself with joy at Joe's return. He hurried through his own breakfast, watched Joe, gravely, through his, and then announced his intention of accompanying the latter, "in 'e waggin." He had gathered from

our conversation that Joe was going somewhere, and, wherever it was, he was willing to bear him company.

“W’er my ’at?” he asked, trotting about in search of that article, as Joe drove up to the door with the horses and light wagon.

“Your hat is under your crib, dear, but you can’t go with Joe to-day.”

“’Ess; me doin’,” he returned, obstinately, securing the hat, while I was carrying the Bible out to Joe.

“Now, Joe, take good care of it!” I counseled him, as he stooped down to take the bulky volume from my arms.

“Keer? Ha! I reckons I’s boun’ fur tek’ keer ob dat book! Lots ob folks w’at done all sorts ob t’ings, shet up ’atween de leds ob dat book. Some good t’ings dey done, an’ a mighty lot o’ bad ones, an’ I ain’ goin’ let none ob ’em git out! Leslie, chile, I’s gwine sot on dat book, an’ keep dem folks squelched ’til we all roun’s up in front ob de ’lan’ office; yo’ kin count on dat!”

Placing the book on the wagon-seat, he spread a blanket over it, then planted himself, squarely and with emphasis, upon it. “Dere, dey’s safe!” He gathered up the lines; the outfit was in motion when its progress was suddenly arrested by a piercing cry from Ralph:

“’Top, ’top, Joe! Me’s doin’ wiv’ ’oo, me is!”

The little fellow was standing beside the wagon, his arms upstretched to be taken, and the tears streaming down his cheeks. Joe looked at him, and scratched his head in perplexity. “I’s wisht’ yo’d stayed asleep till I’s done got away, honey, chile—I does so!” he muttered, ruefully.

“Me’s doin’!” Ralph insisted, taking advantage of the halt to swarm up over the wheel-hub, and to get his white apron covered with wagon-grease.

“Me is doin’!” he repeated.

“Train up a chile in de way w’at he wants ter go, an’ w’en he is ole he won’t depart from it!” Joe quoted, with fatal aptness. “Dat chile cain’t be ’lowed

fur ter run t'ings dish yer way; he cain't be 'lowed ter go to town, noway; but I tell yo' w'at, honey, yo' might jess slip er clean aporn on ter him an' let him ride down ter Wilson's 'long 'er me. Dat Mis' Wilson, she always bein' tickled when she see Ralph."

"'Ess; me do see Mif' 'Ilson," Ralph declared, brightening. It was true that the good ranchman's wife had always made much of him, and was glad to have him with her, and I had a particular reason for being glad of the temporary freedom that his going over there would give me. I made haste to change his soiled dress and get him ready. "Tell her," I said, as I lifted him into the wagon, "that I'll come over after him some time this afternoon; it isn't far, and if I start early enough he can easily walk home with me before night."

"Dat's right; we's got dat all fixed," Joe responded cheerfully. He started the team again, while Ralph, his good humor restored, threw me kisses as the wagon rattled away.

I had mentioned it to no one, but I was secretly a good deal worried over the non-appearance of Guard. In the present absorbed interest in other matters, I think none of the family, save myself, had taken note of the fact that the dog had not been seen since his noisy scramble up the hillside in pursuit of some animal, the evening before.

Only hunters, or those who dwell in remote and lonely places, can realize how fully one's canine followers may become, in certain surroundings, at once comrades and friends. I missed the dog's shaggy black head and attentive eyes as I hurried through with the morning's milking. He was wont to sit beside me during that operation, and watch proceedings with absorbed and judicial interest. I missed him again as I heard a fluttering and squawking that might mean mischief, near the poultry yard. Above all, in the absence of the other members of the family, I missed his companionship. So, as I hastened with the morning's tasks, I resolved to take the opportunity afforded by Ralph's absence, and go in search of him. Disquieting recollections of the wildcat that he and I had dared, and of the wildcat that had dared Mrs. Lloyd, came to my mind. It seemed to me by no means improbable that Guard had treed one of these creatures and was

holding it until help came or until the cat should become tired of imprisonment and make a rush for liberty; a rush that, if it came to close quarters, would be pretty certain to result disastrously for Guard. So thinking, I took father's light rifle—which was always kept loaded—down from its place on the kitchen wall, buckled a belt of cartridges around my waist, and, locking the door behind me, started on my quest.

Guard's vanishing bark, on the previous evening, had led up the hillside, behind the house. So, up the hillside I went, scanning the ground eagerly for tracks, or for any sign that might indicate which direction to take. The ground was thickly strewn with pine needles and the search for tracks was fruitless; an elephant's track would not have shown on such ground as that. After a little, though, I did find something that puzzled me. Lying conspicuously near the cattle trail that led upward into the higher hills, was a large piece of fresh beef. Stopping, I turned the meat over cautiously with the toe of my shoe, wondering greatly how it came to be just there. It was cut—not torn—so it could not have been dropped there by any wild beast, but by some person. As I looked attentively at it, some white substance, lying half hidden in a deep cleft in the meat, attracted my attention. I stood still for a long time, studying that bit of beef. That the white substance was poison I had not a doubt. If some one were anxious to kill a dog—like a flash the recollection of Guard's indiscreet charge on Mr. Horton's horse, and of Mr. Horton's speechless rage thereat, came to my mind. An attempt to poison Guard did not strike me, at the moment, as an act indicating anything more than a determination to be revenged on him for the trouble that he had already given Mr. Horton. Afterward, I understood its full significance. A little beyond the spot where I found the poisoned meat, well out of sight from the house, or of any chance passers-by, I came to a tree under which a horse had evidently been recently tethered, and that, too, for a long time. I wondered at this, for, among us, people seldom tether a horse; it is considered an essential part of a cow pony's training to learn to remain long in one place without being fastened in any way. Still, as I reflected, the matter was not one to cause wonder. The ground was torn and trampled by the impatient, pawing hoofs, and I knew very well what horse it was that, for his recent sins, might have been compelled to do penance in this manner.

Something over half a mile from our house there was a break in the hills—the beginning of a long and dark ravine that, trending southward, led, if one cared to traverse it, in a tolerably straight course to the far lower end of the valley, near where the Hortons lived.

It was an uncanny place—dark at all times, as well as damp, and so uninviting in its wildness, even as a short cut to a brighter place, that it was very seldom entered. As I stood on the hill above it, peering down into its shadows, a great longing took possession of me to know whether Mr. Horton had really gone to town as he threatened. Besides, if Guard were really standing sentinel over a wildcat, no more promising place to search for him could be found. So thinking, I readjusted my cartridge-belt, swung the rifle muzzle to the front, ready for instant use, should occasion demand it, and, not without some unpleasant, creepy sensations at the roots of my hair, I dropped down into the ravine.

CHAPTER XXIV

HUNTING FOR GUARD

The ravine was a mile or more in length, and I traversed it rapidly without coming upon any traces of Guard or the wildcat.

Sooner than I had expected, despite my anxiety, the ravine widened, the encroaching walls became lower, the light stronger, and, in a moment more, I came out on a wide, park-like opening, back of Mr. Horton's house.

I had not met Mrs. Horton since the morning that the wheat crop was destroyed, although I had seen her passing the house frequently on her way to and from the store. It was plain that she avoided us, through no fault or desire of her own, but out of very shame because of the brand on the cattle that had ruined our crops. Casting about in my mind for an excuse for calling on her now, I was impelled to go on, even without an excuse. My conscience told me that I had treated her with less kindness on that occasion than she deserved. Striking into the cattle trail that, bordering the park, led to Horton's corral, I followed it to the corral gate, and was soon after knocking at Horton's front door. My knock was answered by Mrs. Horton, who exclaimed in astonishment at sight of me:

"Why, I declare! I thought you'd be gone to town to-day, sure. Has Jessie gone?"

"Oh yes; and Ralph is at Mrs. Wilson's."

"Well, well! Come right in! And so you didn't go. I don't see how you managed it, hardly."

"Joe came home in time to drive down, and Mr.—we thought it best not to leave the homestead alone."

Mrs. Horton nodded her head approvingly.

“That was a good thought; you can’t be too careful. I declare, I wish you had brought Ralph over here—the precious! I’ve been feeling as lonesome as an owl this morning. Generally I don’t mind being left alone, not a bit; I’m used to it; but I was feeling disappointed to-day, and so everything goes against the grain, I s’pose.”

I must have looked sympathetic, for she presently broke out:

“I don’t feel, Leslie, as if I was an unreasonable or exacting kind of woman, in general, but Jake talked last night as if he thought I was. You see, I had set my heart on going to town when it came time for you girls to prove up. I’d thought of lots of little things that I was going to mention to the Land Agent, to influence him in your favor, and I guess there aren’t many folks that know better than I do how you’ve tried and tried to fill all the requirements. But Jake—”

She paused, her mouth, with its gentle-looking curves, closing as if she would say no more. But her grievance was too fresh and too bitter to admit of her keeping silence. In answer to my respectful inquiry as to why she didn’t go, she burst out impatiently:

“Jake wouldn’t let me. Said if I did I’d be interfering with what was none of my business—as if I ever interfered with any one else’s business—and, besides, he said it wasn’t convenient to take me. He went on horseback himself.”

“Oh, he’s gone, then?”

“Gracious, yes! Gone! He’s been in town nearly all night. He was out somewhere last evening, looking up cattle, he said, and he didn’t get in till almost nine o’clock; then he ate supper and started right off. I thought it was a rather dark time to be starting for town, but he said the moon would be rising before he got out on to the plains, and he didn’t care for the dark.”

“Why was he so anxious to get to town early this morning?” I asked, with what I inwardly felt to be almost insolent persistency. Mr. Horton’s good wife suspected nothing, however.

“Why, I suppose, to help you folks, if help was needed,” she replied, readily. “I’ve felt awfully cut up, Leslie, about the way our cattle destroyed your crops. It just went to my heart to think that it was our cattle that did it”—and the tears in her honest blue eyes attested the sincerity of her words —“I’ve talked to Jake a good deal about it. He hasn’t said straight out that he’d pay damages, but I’ve been thinking maybe he intended to do it in his own way, and his way was to get to town and help you all he could with the Land Agent. As he’s been known to the claim so long, his word ought to have weight. Don’t you think so?”

“I am afraid—I mean yes, certainly,” I stammered. It was not re-assuring to think of the weight that his word might have.

“When do you look for Mr. Horton to return?” I asked, rising from my chair as I spoke.

“Oh, not until your business is all settled; he said he’d stay and see it all through. He said that he’d have a surprise for me when he got back; but I guess he won’t. I imagine that he thought I’d feel surprised to learn that you’d received your papers, but I’d be surprised if you didn’t, after the way you’ve kept the faith, so to speak. Oh, now, sit down! You’re not going yet, are you? And after such a walk as it is from your house here, too!”

“I came down by the trail, Mrs. Horton.” And then I told her about Guard, thus accounting for the gun, which I had caught her glancing at, once or twice, rather curiously.

“Young dogs are foolish,” was her comment, when she had heard the story. “If he was older, I should tell you not to be a mite worried, but as he’s a young one, it’s different. I’ve known a young dog to get on a hot trail, and follow it until he was completely lost. My father lost a fine deerhound that way once. The dog got on the trail of a buck, and last we ever heard of him he was twenty miles away, and still going. I do hope you won’t have such bad luck with your dog.”

I bade good-by to Mrs. Horton, and started homeward, again taking the trail through the ravine. I was not much cheered by her words in regard to Guard, and heavily depressed by the knowledge that Mr. Horton had, after

all, beaten Mr. Wilson and Jessie in his start for town—though what difference it could make, either way, until the Land Office was open in the morning no one could have told. Being troubled, I walked slowly, this time, with my eyes on the ground. Half-way through the ravine I came to a point where a break in the walls let in the sunlight. Through this low, ragged depression the light was streaming in in a long, brilliant shaft as I approached the spot. The warm, bright column of golden light had so strange an effect, lighting up the gray rocks and the moist, reeking pathway, that I paused to admire it. “If it were only a rainbow, now,” I thought, “I should look under the end of it, there, for a bag of gold.” My eyes absently followed the column of light to the point where it seemed suddenly to end in the darkness of the ravine, and I uttered a startled cry. Under the warm, bright light I saw the distinct impression of a dog’s foot. It was as clearly defined in the oozy reek as it would have been had some one purposely taken a cast of it, but after the first start, I reflected that it did not necessarily follow that the print was made by Guard. Still, examination showed that it might well be his. Searching farther, I found more tracks—above the break in the wall, but none in the ravine below it. The footprints had been a good deal marred by my own as I came down the ravine, and, what I thought most singular, supposing the tracks to have been made by Guard, there were also the hoof-marks of a horse—not a range-horse, for this one wore shoes, and, developing Indian lore as I studied the trail, I presently made the important discovery that, while the dog’s tracks occasionally overlaid those of the horse, the horse’s tracks never covered the dog’s. Clearly, then, if those footprints belonged to Guard, as I had a quite unaccountable conviction that they did, he was quietly following some horseman. For an indignant instant I suspected some reckless cowboy of having lassoed and stolen him, but a little further study of the footprints spoiled that theory. Guard would have resisted such a seizure, and the footprints would have been blurred and dragging. The clean impressions left by this canine were not those of an unwilling captive. I followed the tracks along the trail to the upper end of the ravine for some time, but learning nothing further in that way, returned again to the break in the wall. Looking attentively at that, I at length discovered a long, fresh mark on the slippery rock. Such a mark as might have been made by the iron-shod hoof of a horse, scrambling up the wall in haste, and slipping dangerously on the

insecure foothold. With the recognition of this, I was scrambling up the bank myself. Scarcely had my head reached the level of the bank when a loud, eager whinny broke the silence. Startled, I slipped into a thicket of scrub-oaks, and, from their friendly shelter, made a cautious reconnoissance. Not far away, and standing in clear view, a bay horse was tethered to the over-hanging limb of a pine tree. It did not need a second glance for me to recognize Don, Mr. Horton's favorite saddle-horse. That the poor creature had had a long and tedious wait, his eager whinnying, and the pawing of his impatient hoof, as he looked over in my direction, plainly told.

I watched him for awhile, breathlessly, and in silence, but he was far too anxious to keep silent himself. His distress was so apparent that I felt sorry for him, and finally decided that I might, at least, venture to approach and speak to him. Leaving my place of concealment I started toward him, but stopped abruptly with my heart in my mouth, before I had taken a dozen steps, as a new sound broke the silence. A new sound, but familiar, and doubly welcome in that wild place. It was the sharp, excited yelping that Guard was wont to make when he had treed game and needed help.

CHAPTER XXV

GUARD'S PRISONER

At the sound of Guard's voice, regardless of caution, and waiting only to raise the hammer of the rifle that I held ready in my hand, I ran forward. Guard evidently had his eyes on me, although I could not see him; his yelps ceased for an instant to break forth with redoubled energy as I came within sight of him. He was standing over a heap of rubbish, into which he was glaring with vindictive watchfulness, but with one alert ear bent in my direction and the tip of his bushy tail quivered in joyful recognition as I advanced toward him. Before reaching him, however, I had found my bearings, as the hunters say, and knew the locality. Still, the place had an unfamiliar air. It was a minute or two before I saw the cause of this; then I missed the one thing that particularly designated the spot, setting it apart to that extent from many similar places. I had not seen the lonely, secluded little park more than two or three times in all the years that we had lived so near it, but whenever I had seen it, hitherto, a hunter's shack, long abandoned, had stood on the farther edge of the opening. It had always seemed on the verge of falling, and, as I neared Guard, I saw that this was the thing that had happened: the cabin had collapsed, and, more than that, Guard had run something to earth under it.

The dog's excited yelping, now that relief was at hand, was ear-splitting, but his vigilant watch did not for an instant relax.

"What is it, Guard—have you got a wildcat in there?" I panted, breathlessly, halting beside him. "Well; you just wait, now; we're going to get him this time!" So speaking, I cautiously trained the muzzle of the rifle on the spot that his vigilant eyes never left off watching. Then I cast a hasty glance around. If half the wildcat stories that I had been hearing of late were true, it would be well to have some place of retreat to fall back upon, in case the cat, proving obdurate, should decline to die easily. Fortunately, as I thought,

there was a large pine tree close at hand; it was, indeed, immensely large. I could no more have swarmed up that scaly trunk, had I flown to it for protection, than I could have spread out a pair of wings and flown to its topmost branches. In my excitement, I never thought of that, nor of the equally unpleasant fact that wildcats are expert climbers. Sure that the refuge at hand would suit, I dropped on one knee, training the rifle-muzzle into a crevice between a couple of fallen logs, and sighting along the barrel. I could see nothing, but, with my finger on the trigger, I was prepared to fire whether I sighted the enemy or not. Guard drew back, silent, now, but trembling with excitement.



“HOLD ON, I AIN’T NO WILDCAT!”

(Page [306](#))

“Hold on!” cried a voice from the rubbish heap, “I ain’t no wildcat!” The voice was shrill and sharp with terror, but I knew it instantly for that of Jacob Horton. The rifle slipped unheeded from my nerveless hand, while Guard, since there was evidently to be no shooting, resumed his former post and growled menacingly.

“Why—why,” I stammered, “if you are not a wildcat—if you are a man—I thought you had gone to town!”

“Gone to town!” the voice, losing its tone of terror, degenerated into a snarl. “I’ve been here all night. I’ve met up with an accident. I’m pinned down

under a log, and that infernal dog of yours has stood and growled at me all night; I ain't dared to say my soul was my own."

"I don't believe that any one else would care to claim it."

The words broke from me involuntarily. I had the grace to feel ashamed the minute they were spoken. Guard's prisoner answered my unfeeling observation with a groan, and I looked reproachfully at Guard, who returned the look with a hopeful glance of his bright eye and wagged his tail cheerfully. I think that he quite expected to receive orders to go in and drag his fallen enemy out to the light of day. Realizing that as a general thing Guard understood his own business I forbore to reproach him, at the moment, for having treed or grounded Mr. Horton.

"Are you badly hurt?" I inquired, falling on my knees before the crevice, and trying to catch a glimpse of the victim of an accident.

"I do' no's I'm hurt in none of my limbs," was the cautious reply, "but I'm covered with bruises, and I'm pinned fast. I couldn't 'a' got away if I hadn't been, for that brute was determined to have my life. Turn about's fair play; we'll see how he comes out after this!"

Clearly, the victim's temper had not been improved by the night's adventures, and it was easy to see that he had made almost no effort at all to escape from a position which, although certainly uncomfortable, had the great advantage of keeping the dog at bay. I thought of the Land Office in Fairplay and of the business that was probably being transacted there at that moment, and resolved to give Guard the whole of the roast that was left over from yesterday's dinner when we reached home again.

"Ain't you even goin' to try to help me? Goin' to let me lay here an' die?" demanded the angry voice from under the ruins.

"Oh, no, certainly not. I'll try to help you out. I guess you've been here long enough," I replied, cheerfully.

"Huh! I should think I had been here long enough. This night's work'll prob'ly cost me thousands of dollars—but I'll have that whelp's life when I do git out; that's one comfort."

For a wicked instant I was tempted to turn away and leave our unrepentant enemy where he was. The impulse passed as quickly as it came, but I am not ashamed to confess that before setting to work to try to extricate the prisoner I threw my arms around Guard's neck and hugged him ecstatically. "It's all right; we're safe!" I whispered in his ear, as if he could understand me—and I am not sure to this day that he could not. Then I began tugging away at the rotten pieces of wood that, fallen in a heap, formed a rough sort of wickiup, under which Mr. Horton reclined at length. It was a pretty hard task, for some of the timbers were heavy enough to tax all my strength; but an opening was made at last, and through it Mr. Horton slowly crawled into the light. He was compelled to advance backward, after the manner of the crawfish, and as he finally got clear of the ruins and staggered to his feet, he was a most disreputable-looking figure. Apart from a good many scratches and bruises, he did not seem to be injured in the least. The timbers had fallen in such a way that their weight did not rest on him. His scowling face, as he turned it to the light, was further disfigured by several long scratches and by a dry coating of blood and dirt. His coat—the coat, again—was torn, his hat gone, and his bushy iron-gray hair stood fiercely upright. The change from the semi-darkness of his place of imprisonment to the full light of day partially blinded him, and he stood, blinking and winking for a full minute after getting on his feet; then he apprehensively examined his arms and legs.

"I reckon there ain't none of 'em broken," he said at last, grudgingly. "But it's no thanks to that dog of your'n that I ain't chewed into mince-meat—confound you!"—this to Guard, who was sniffing inquiringly at the legs of his late quarry. The words were further emphasized by a vicious kick, which, missing its intended victim, did astounding execution on something else.

We were standing, at the moment, on a drift of leaves that had lain inside the hut. Mr. Horton's vigorous kick sent a shower of these leaves flying in all directions, and disclosed, half hidden beneath them, a large, square, leather-bound volume, on which my eyes rested in amazed recognition, while Guard, with a bark of delight, took his station beside it, wagging his tail joyfully.

I looked at Mr. Horton, whose face, under its mask of blood and dirt, had turned the color of gray ashes. He began to back slowly away toward his horse.

“Wait!” I cried; “I want you to tell me—you must tell me, Mr. Horton, what you were doing last night. How came Jessie’s dictionary here?”

“Jessie’s dictionary?” His voice rose in a shrill cry, that made me jump, and drew a warning growl from Guard.

I thought of the window beside Ralph’s crib, that Jessie so stoutly averred she did not leave open, and light dawned upon me. “Yes!” I repeated, sternly, contempt for the wretch before me overcoming all fear; “Jessie’s dictionary.” I had, by this time, picked up the book. Mr. Horton extended his hand toward it; and his tone was almost humble as he said:

“Let me see it.”

When the book was in his hands, he turned over the leaves, examining them with evident surprise and bewilderment. Finally:

“It is a dictionary, ain’t it?” he said, feebly, and repeated, under his breath. “It is a dictionary!”

“You thought, when you opened the window last night, and stole it off the ledge, that it was the Bible, with our family record in it, didn’t you?” I recklessly inquired. But Mr. Horton was past being angry.

“Yes, I did,” he said, making the admission as if still dazed.

“And you left the window open?” I went on.

“Yes, I did. The dog took after me—the dog has been hot on my trail from first to last, it ’pears, and you ain’t been fur behind him.”

“No,” I admitted, glancing at his torn coat, from which the upper button was still absent, “I don’t think I have. I even have a bit of your property as a reward for some of my work. There’s a button missing from your coat. I found it.”

“Where?” Mr. Horton inquired, in a low voice.

“Under the window that you are so fond of visiting; the one that you started the fire under some weeks ago.”

Mr. Horton stirred uneasily, and again glanced toward his horse. “You think I lost the button there, do you?”

“I know you did.”

Mr. Horton did not dispute the statement. He had dropped down on a log, after the discovery of the dictionary, as if his knees were too weak to sustain him. He looked at Guard, and then at me, studying us both for a full minute.

“You make quite a pair of detectives, you and the dog,” he said. Then, suddenly, he rose to his feet, his bunched up figure straightened, he lifted his head, as one might who had inwardly made some strong resolve, and I felt, with a curious kind of thrill, that a new atmosphere enveloped us both.

Quite irrelevantly, as it then seemed to me, some words that father had spoken many weeks ago, came into my mind: “They all tell me,” he had said, “that Horton’s as good a friend as one need ask for, once let him be fairly beaten at his own game.” Could that be true? Surely, if ever a man was fairly and very badly beaten, this one was. The result had been brought about, in a measure, by his own blundering, but it was none the less effective for that. If he would but acknowledge it—if he would cease to persecute us! At the very thought of such a thing as that the world seemed suddenly to grow radiant. I had not seemed to realize before how much of our trouble, our unspoken apprehension and dread of impending calamity was due to this man.

“Say,” Mr. Horton suddenly exclaimed, looking squarely in my face for the first time, “I reckon I’ve been making an everlastin’ fool of myself long enough!”

CHAPTER XXVI

MR. HORTON CAPITULATES

I had not been very polite to Mr. Horton before that morning, but when he made the abrupt declaration that he had made a fool of himself long enough, I was civil enough to refrain from contradicting him.

"I ain't had no breakfast," he went on, presently, glancing at his torn dress. "I'm a pretty tough-looking subject, too, I reckon." Again I did not dispute the statement. Looking away from me, he took a step or two toward the spot where his horse awaited him, then turned resolutely back again. "Say, I'm going to own up while I've got courage to do it!" he exclaimed, speaking rapidly and with suppressed excitement: "I ain't treated you and your folks right, Miss Leslie; I've knowed it all along; but, you see, I'd got my mind set on that bit of land that your father took up—not that I needed it, or anything of that kind—a claim would 'a' been more bother than good to me as a general thing; but I'd said to folks that I meant to have it and I'd managed to get up a kind of ugly pride in showing folks that what I said went, whether or no.

"My wife—she's a good woman—I do'no what she'd do if she was to know all that I've done or tried to do, but I reckon you know pretty well, Miss Leslie. Well, you've known Jake Horton as he was. I'm going to give you all a chance to know him as he is now. When a man undertakes to do a bit of spite work like this; work that he's no call to feel proud of, and knows that so well that he tries to do it alone and in the dark, and is held back from making a consummate idiot of himself, and a criminal, too, like enough, by a dog and a young girl, it's time to call a halt. That's what I'm going to do. I'm going to call a halt and travel a new trail from this on. I don't ask you to believe anything that I say, Miss Leslie, there ain't no reason at present why you should, but there will be!" He paused to moisten his dry lips. I looked up at him expectantly. "I'm going to do what's right by you and yours, from

this on,” he said, in answer to the look. Despite my past acquaintance with him I believed him, and indignantly strove to smother the tormenting little recollection that would keep obtruding itself—the recollection that, from the moment that the deed to the homestead was secured this man would be powerless to injure us, unless he did it openly and in ways that might be easily brought home to him, and it was now too late for him to do us any harm at the Land Office.

I am ashamed to be obliged to record that Mr. Horton’s declaration of a change in his feelings toward us, and his promises of better conduct toward us in the future were accompanied in my secret thought by such damaging reflections, but such was the case. The dictionary was under my arm and glancing down at it I said: “I would like to know, if you don’t mind, Mr. Horton, how this book—and you—came to be under the ruins of that shack?”

There was a big black and blue bruise on the back of Mr. Horton’s right hand, the hand that some weeks previously had been injured by an oak splinter, as he told his wife, on the night that I had fired at a man fleeing up the hillside. Looking attentively at the bruise, and not at all at me, Mr. Horton replied:

“Well; it was an easier thing to undertake than it is to tell; that’s so. ’Bout as easy to tell though as it was to go through with. That’s a wide-awake dog of yours, Miss Leslie, lives up to his name, too. He was living right up to it last night when I sneaked up to your window after watching you and Miss Jessie go out to the corral, and making sure that the boy was asleep. I opened the window, got the book that, I made sure, was the Bible that I had seen put on the window ledge that morning, and started back toward my horse. But I’d forgot one thing, I’d forgot about the dog. He didn’t forget himself, though; he came round the corner after me and I had to leg it like scat. I had studied some about him earlier in the day; enough so that I had thrown a piece of poisoned meat near the upper trail. Not seeing anything of him in the evening I never thought of him again until I felt him a-holt of my coat-tail, for he caught up with me in a minute. I do’no how it would ’a’ come out between us, but jest then while I was pulling up the hill and he was pulling back for all he was worth, we come to the meat, stumbled over

it, in fact. The dog let go my coat—he's young, I reckon—" the victim interpolated, impartially; "an old dog wouldn't 'a' give up his game for such a thing as that—and stopped to sniff the meat. That give me time to reach my horse, but he come tearing after me like a whole pack o' bloodhounds. After I was fairly in the saddle, though, I didn't hear anything more of the dog. I 'lowed that he'd given up and gone back, or else that he'd swallowed the meat and the poison had got in its work. I rode down along the ravine, feeling good. As I said, I'd planned it out beforehand. I knew jest what I was going to do with the Bi—dictionary. I didn't 'low to plumb destroy it. I 'lowed that when it was too late for it to be of any use to you—that is, after I'd entered the claim—I'd see to it that it accidentally come to light again. I didn't want to plumb destroy it," he repeated apologetically.

I made no comment, and Mr. Horton, plucking a pine branch, began divesting it of its needles with fingers that shook a little in spite of himself as he proceeded:

"I'd made up my mind to hide the Bi—dictionary in the old shack here until it was time to bring it to light again. When I got to that break in the cañon wall, down here, I put the horse up the break and rode to the shack, and then—I made a mistake." He paused to silently review this mistake, then continued: "Instead of dismounting and carefully covering the book with the leaves, as I'd ought to 'a' done, I jest slung it into the shack, letting it fall where it would. I heard it fall, soft like, on the leaves, and then I went on home. My wife, she had supper all ready, and I sot down and et it. I told her I was going to start right off, as soon as I'd done eating, for town. She kind o' objected to my going then; said she'd been wanting to go herself, to help you folks when it come to proving up. That made me some mad, for I wan't figuring on helping you then. But all the time that I was eating supper, and all the time that she was talking, I kept thinking: 'S'pos'n some one should come along past that shack, look in there, and see that book lying there?' I felt that I'd ought to 'a' covered it up with leaves"—"and Robin Redbreast painfully did cover them with leaves," ran the silent under-current of my thought, while I listened gravely to Mr. Horton's elucidation of the mystery of the book. "I felt it so strong that nothing would suit me, at

last, but I must make my way back there and cover it before I started for town. So, while my wife thought, after I'd mounted again, that I was riding toward town, I was sneaking back up the cañon. I tied my horse near the break in the wall, and went to the shack on foot, this time. It was as dark as a stack of black cats inside the shack. I couldn't see a thing—I stooped down, and was feeling 'round 'mong the leaves for the book, when I run up ag'in' a surprise." Mr. Horton dropped the branch, now denuded of its needles, and stared thoughtfully at the bruise on his hand. "That dog—he wan't dead, as it turned out; he hadn't even gone back, or gone before. He was all there and ready for business—I had time to study the thing out whilst I was a lyin' on my back, last night, starin' up into his eyes that was glarin' down into mine, through a chink in the logs—and I figured it out that he'd follered me, quiet, after I'd mounted; then, when I threw the book into the shack, he'd gone in there and stayed with it. He knew that it belonged to his folks, and he meant to guard it. He did, too. As I was stoopin' down, feeling 'round, something gave a yell, all at once, that made my hair stan' up, stiff and spiky, all over my head, and, next thing, something—some animal—sprung at me with such force that I reeled and fell back ag'in' the side of the shack, and then—the shack it fell, too. I do' know's I fainted!" Mr. Horton continued, reflectively; "I never have lost conscientiousness as I know of, but there was quite a spell that I didn't realize where I was, nor what had happened. When I did come to I found that I was pinned to the ground, and the animal—I hadn't recognized him for your dog yet—was stretched out on the rubbish above my body, looking down at me and growling. The critter growled so ferocious whenever I tried to move that I gin up trying. I had found out, though, that the animal was a dog, and, natterally, I'd a pretty clear idea whose dog it was."

Mr. Horton concluded abruptly. He got up slowly and stiffly, and again started toward his horse. Watching him, as he walked away, I saw that he looked broken and humbled, and an impulsive desire to help him, who had so often hindered us, took possession of me. "Wait," I cried, starting up suddenly, for I had also found a seat on one of the fallen logs; "wait a minute, Mr. Horton!" He stopped, and I went up to him. "Mr. Horton," I said, earnestly, "I want to do what's right. I am sure that you are sorry for what you have done—"

“I am, you may believe me, Miss Leslie; I am sorry. I’ve done many a mean thing in my life, but none meaner than this job of persecutin’ a couple of orphan girls and their baby brother, and I’ve known it, and been ashamed of it, all along in my own heart. But I’d never ’a’ given in, nor given nor owned up to what I’m telling you this minute, Leslie Gordon, if you’d ’a’ shown less spunk and courage; and I’ll be as good a friend to you after this as I’ve been merciless enemy before it. I don’t ask you to believe me—”

“But I do believe you! I do believe you! If I—if we can begin again—if keeping still about what happened last night—and—about other things; the button, and the fire, and the crops, with your cattle brand on them,” I stammered, eagerly, not making things very clear in my haste, but Mr. Horton understood me.

“You are a good girl, Leslie,” he said, looking away from me; “you are a good girl. You see, my wife believes in me—she’s a better man than I am.”

“Yes; she must not know. No one need know anything about it, for I have told no one. I have kept my own counsel, and I will keep it still.”

Mr. Horton faced me now, holding out his hand. There was a mist over his hard eyes, and wonderfully softened and improved those same eyes were in such unaccustomed setting. I laid my hand in his, he clasped it closely for an instant, then dropping it, observed in his usual tones:

“Well, I reckon I’ll ride over to the fur pasture; then I’ll git home again jest about the time the folks come in from town.”

“No,” I said; “come home with me first and have some breakfast, and get brushed up a little.”

“I will,” he replied, readily, adding, with a rueful glance at his torn clothing, “I need a little mending done about as bad as any one I’ve seen lately.”

Guard and I walked along the ravine with him, while he led his horse. On emerging from the ravine Mr. Horton suddenly stopped, and began looking anxiously around. “That meat, now,” he observed, at length, “it ought not to be left layin’ around.”

I had put the poisoned meat up in the fork of a pine tree, and now showed it to him. "We'd better dispose of it," he said, taking it down. Reaching the house, I went on in to prepare breakfast for my unlooked-for guest, who lingered outside until his horse was cared for; then he came in, and, going straight to the stove, lifted the lid and dropped the meat on the glowing coals. "There!" he exclaimed, replacing the lid, "that bit of death won't hurt anything now."

An hour afterward, washed, brushed, and partially mended—for I do hate mending, even in a righteous cause, like this—breakfasted, and with his horse equally refreshed, Mr. Horton rode away, looking like, and, I am sure, feeling like, another man.

Early in the afternoon I went over to the Wilsons', and brought Ralph back with me. Long before they could possibly arrive we were both watching for Jessie's and Joe's return. The stars were shining big and bright, and Ralph was nodding sleepily in his high chair when the bays and the light wagon, with Jessie and Joe perched on the front seat, came rattling down the homeward road. Snatching Ralph, who was wide awake on the instant, up in my arms, I ran out to meet them.

"We didn't have one bit of trouble, Leslie!" cried Jessie, jubilantly, as the team stopped at the gate; "Mr. Horton never came near us. I'm afraid we've been almost too ready to believe evil of him; but it won't matter now, anyway, for the land is ours, Leslie, ours!"

"Hit is so, honey, chile!" echoed old Joe's gentle voice. His black face was one expansive grin of satisfaction. "Young Mas'r Ralph Gordon ain't nebber gwine want fur place to lay he head, now; yo' listen at dat!"

"Neither is Joe!" said Jessie, brightly, as she sprang to the ground. "Every one has been so kind, Leslie," she continued, as we turned back into the house, while Joe drove on to the barn with the horses. "Lots of the neighbors were down there, besides our witnesses. I feel so cheered, Leslie, dear. We have so many friends."

That was true, indeed; but, as time passed, not one among them all proved to be more helpful, steadfast, and efficient than was our erstwhile enemy,

Mr. Jacob Horton.

THE END

Best Books

FOR BOYS AND GIRLS



A series of books for young people that contains the latest and best works of the most popular writers for boys and girls. The stories are not only told in an interesting and charming manner, but most of them contain something in the way of information or instruction, and all are of a good moral tone.

For this reason they prove doubly good reading; for, while the child is pleasantly employing his time, he is also improving his mind and developing his character. Nowhere can better books be found to put into the hands of young people. They are profusely and handsomely illustrated by the best artists and are well printed on good paper with exceedingly handsome and durable bindings.

Sold by the leading booksellers everywhere, or sent prepaid on receipt of price.

Cloth, each, \$1.25

The Penn Publishing Company

923 ARCH STREET

PHILADELPHIA

STORIES FOR GIRLS

The Ferry Maid of the Chattahoochee

By Annie M. Barnes

Illustrated by Ida Waugh

An heroic little Georgia girl, in her father's extremity, takes charge of his ferry, and through many vicissitudes and several impending calamities, succeeds in carrying out her purpose of supporting her invalid parent and his family. The heroine's cheerfulness and hearty good humor, combined with an unflinching zeal in her determination to accomplish her work, make a character which cannot fail to appeal to young people.

A Maid of the First Century

By Lucy Foster Madison

Illustrated by Ida Waugh

A little maid of Palestine goes in search of her father, who, for political reasons, has been taken as a slave to Rome. She is shipwrecked in the Mediterranean, but is rescued by a passing vessel bound for Britain. Eventually an opportunity is afforded her for going to Rome, where, after many trying and exciting experiences, she and her father are united and his liberty is restored to him.

My Lady Barefoot

By Mrs. Evelyn Raymond

Illustrated by Ida Waugh

A beautifully told story of the trials of a little backwoods girl who lives in a secluded place with an eccentric uncle, until his death. The privations she undergoes during his life-time, her search for other relatives, her rather uncongenial abode with them, her return to her early home to acquire her uncle's

estate, and thus to enjoy a useful and happy life, form a most interesting narrative of a girl whose ruggedness and simplicity of character must appeal to the admiration of all readers.

Dorothy Day

By Julie M. Lippmann

Illustrated by Ida Waugh

This is a most interesting story of a bright and spirited young girl whose widowed mother re-marries. The impulsive girl chafes under the new relationship, being unwilling to share with another the bounteous love of her mother which she had learned to claim wholly for her own. By the exercise of great tact and kindness, the obdurate Dorothy is at last won over, and becomes a most estimable girl.

Miss Wildfire

By Julie M. Lippmann

Illustrated by Ida Waugh

The story of a governess' attempt to win the love and confidence of her ward, who, owing to a lack of early restraint, is inclined to be somewhat of a hoyden. The development of the girl's character and her eventual victory over her turbulent disposition combine to form a story of unusual merit and one which will hold its reader's eager attention throughout.

"A story of girls for girls that teaches a moral without labeling or tagging it at the end."—*Western Christian Advocate*, Cincinnati, O.

An Odd Little Lass

By Jessie E. Wright

Illustrated by Ida Waugh

This is a story of the regeneration of a little street waif. She begins life in a lowly court of a large city. Her adventures are numerous, and often quite exciting. After a time she is

transplanted to the country, where after many thrilling experiences she eventually grows into a useful and lovable young woman. The story is pleasantly told, and abounds in interesting incident.

“The story is an intensely interesting one, and abounds in pleasing and unique situations.”—*Religious Telescope*, Dayton, O.

Two Wyoming Girls

By Mrs. Carrie L. Marshall

Illustrated by Ida Waugh

Two girls, thrown upon their own resources, are obliged to “prove up” their homestead claim. This would be no very serious matter were it not for the persecution of an unscrupulous neighbor, who wishes to appropriate the property to his own use. The girls endure many privations, have a number of thrilling adventures, but finally secure their claim and are generally well rewarded for their courage and perseverance.

The Girl Ranchers

By Mrs. Carrie L. Marshall

Illustrated by Ida Waugh

A story of life on a sheep ranch in Montana. The dangers and difficulties incident to such a life are vividly pictured, and the interest in the story is enhanced by the fact that the ranch is managed almost entirely by two young girls. By their energy and pluck, coupled with courage, kindness, and unselfishness they succeed in disarming the animosity of the neighboring cattle ranchers, and their enterprise eventually results successfully.

An Every-Day Heroine

By Mary A. Denison

Illustrated by Ida Waugh

The heroine is not an impossible character but only a pure, winsome, earnest girl, who at fourteen years of age is suddenly bereft of fortune and father and becomes the chief support of a semi-invalid mother. While there are many touching scenes, the story as a whole is bright and cheerful and moves forward with a naturalness and ease that carries its readers along and makes them reluctant to put down the book until the end is reached.

Her College Days

By Mrs. Clarke Johnson

Illustrated by Ida Waugh

This is a most interesting and healthful tale of a girl's life in a New England college. The trustful and unbounded love of the heroine for her mother and the mutual and self-sacrificing devotion of the mother to the daughter are so beautifully interwoven with the varied occurrences and exciting incidents of college life as to leave a most wholesome impression upon the mind and heart of the reader.

STORIES FOR BOYS

Uncrowning a King

By Edward S. Ellis, A. M. Illustrated by J. Steeple Davis

A tale of the Indian war waged by King Philip in 1675. The adventures of the young hero during that eventful period, his efforts in behalf of the attacked towns, his capture by the Indians, and his subsequent release through the efforts of King Philip himself, with a vivid account of the tragic death of that renowned Indian chieftain, form a most interesting and instructive story of the early days of the colonies.

The Young Gold Seekers

By Edward S. Ellis, A. M. Illustrated by F. A. Carter

A thrilling account of the experiences of two boys during a trip to the gold fields of Alaska. The hardships that they endure, the disappointments they suffer, the courage and perseverance that they manifest in the face of seemingly insurmountable obstacles, and their eventual success in their undertaking, are all most graphically portrayed.

True to His Trust

By Edward S. Ellis, A. M. Illustrated by J. Steeple Davis

The hero of this story will win his way at once into the heart of every one, and his pluck and perseverance will carry the sympathy of every reader through his many adventures, struggles, and singular experiences. Like all of the author's works, the incidents teach in the most convincing manner that

true manliness and sturdy integrity are the only principles through which happiness and success in life are possible.

Comrades True

By Edward S. Ellis, A. M.

Illustrated

In following the career of two friends from youth to manhood, the author weaves a narrative of intense interest. This story is more realistic than is usual, as the two heroes pass through the calamitous forest fires in Northern Minnesota and barely escape with their lives. They have other thrilling adventures and experiences in which the characteristics of each are finely portrayed.

“Among juveniles there is not one of greater interest, or more wholesome influence than ‘Comrades True.’”—*Sentinel*, Milwaukee, Wis.

Among the Esquimaux

By Edward S. Ellis, A. M.

Illustrated

The scenes of this story are laid in the Arctic region, the central characters being two sturdy boys whose adventurous spirit often leads them into dangerous positions. They visit Greenland; go on a hunting expedition, have a number of stirring adventures, but ultimately reach home safe and sound.

“A capital and instructive book for boys.”—*Post*, Boston, Mass.

TRANSCRIBER’S NOTE:

Minor changes have been made to correct typesetters’ errors; otherwise, every effort has been made to remain true to the author’s words and intent.

*** END OF THE PROJECT GUTENBERG EBOOK TWO WYOMING
GIRLS AND THEIR HOMESTEAD CLAIM: A STORY FOR GIRLS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual

work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in

the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of

exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b)

alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up

to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.